

Gouverneur Morris

Theodore Roosevelt

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*** START OF THE PROJECT GUTENBERG EBOOK GOUVERNEUR
MORRIS ***

[Transcriber's notes:

blank pages have been removed

Inconsistencies in spelling and hyphenation have been retained. Corrected obvious printer errors:

page [51](#), "comparision" changed to "comparison." ("A comparison of the men")

page [270](#), "Tuilleries" changed to "Tuileries." ("... the poor king was driven from the

Tuilleries.")

page [315](#), missing " added. ("... à casser les œufs.""")

page [365](#), missing "." added. ("Dalrymple, General, 125.")

page [366](#), "De Lancys" changed to "De Lanceys." ("De Lanceys, 16, 21, 45.")

page [368](#), "salôn" changed to "salon." ("literary life of the salon")]

American Statesmen

**EDITED BY
JOHN T. MORSE, JR**

American Statesmen

GOUVERNEUR MORRIS

BY
THEODORE ROOSEVELT



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INTRODUCTION.

Two generations ago the average American biographer was certainly a marvel of turgid and aimless verbosity; and the reputations of our early statesmen have in no way proved their vitality more clearly than by surviving their entombment in the pages of the authors who immediately succeeded them. No one of the founders of the Constitution has suffered more in this respect than has he who was perhaps the most brilliant, although by no means the greatest, of the whole number,—Gouverneur Morris.

Jared Sparks, hitherto Morris's sole biographer, wrote innumerable volumes on American history, many of which are still very valuable, and some of them almost indispensable, to the student. The value, however, comes wholly from the matter; Mr. Sparks is not only a very voluminous writer, but he is also a quite abnormally dull one. His "Life of Gouverneur Morris" is typical of most of his work. He collected with great industry facts about Mr. Morris, and edited a large number of his letters and state papers, with numerous selections, not always well chosen, from his Diary. Other merits the book has none, and it has one or two marked faults. He failed to understand that a biographer's duties are not necessarily identical with those of a professional eulogist; but for this he is hardly to blame, as all our writers then seemed to think it necessary to shower indiscriminate praise on every dead American—whether author, soldier, politician, or what not—save only Benedict Arnold. He was funnily unconscious of his own prolix dullness; and actually makes profuse apologies for introducing extracts from Morris's bright, interesting writings into his own drearily platitudinous pages, hoping that "candor and justice" will make his readers pardon the "negligence" and "defects of style," which the extracts contain. He could not resist the temptation now and then to improve Morris's English, and to soften down, or omit anything that he deemed either improper or beneath the stilted "dignity" of history. For example, Morris states that Marie Antoinette, when pursued by the Parisian fishwives, fled from her bed "in her shift and petticoat, with her stockings in her hand;" such particularity struck Mr. Sparks as shockingly coarse, and with much refinement he

replaced the whole phrase by "in her undress." An oath he would not permit to sully his pages on any terms; thus when Morris wrote that Pennsylvania would find Sir Henry Clinton "a most damnable physician," Mr. Sparks simply left out the offending sentence altogether. This kind of thing he did again and again.

Still he gives almost all of Morris's writings that are of political interest. It is, however, greatly to be desired that we should have a much more complete edition of his letters and Diary, on account of the extremely interesting descriptions they contain of the social life of the period, both in America and in Europe. As regards his public career, and his views and writings on public subjects, we already have ample material, much of which has appeared since Sparks's biography was written, and some of which is here presented for the first time.

Morris's speeches in the Constitutional Convention have been preserved, in summarized form, by Madison in his "Debates:" of these, of course, Sparks was necessarily ignorant. Miss Annie Carey Morris has written two articles in "Scribner's Magazine" for January and February, 1887, on her grandfather's life in Paris during the French Revolution, giving some new and interesting details. A good article appeared in "Macmillan's Magazine" for November, 1885, the writer evidently having been attracted to the subject by the way in which Taine made Morris's writings a basis for so much of his own great work on the Revolution. Decidedly the best piece upon Morris that has yet been written, however, is the admirable sketch by Mr. Henry Cabot Lodge in the "Atlantic Monthly" for April, 1886.

My thanks are especially due the Hon. John Jay for furnishing me many valuable letters, hitherto unpublished, of both Jay and Morris; and for giving me additional information about Morris's private life, and other matters. All the letters here quoted that are not given by Sparks are to be found either in the Jay MSS. or the Pickering MSS. Mr. Jay also furnished me with the account of the way in which Louis Philippe was finally persuaded to pay the debt he owed Morris.

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GOUVERNEUR MORRIS.

CHAPTER I.

HIS YOUTH: COLONIAL NEW YORK.

When, on January 31, 1752, Gouverneur Morris was born in the family manor-house at Morrisania, on the lands where his forefathers had dwelt for three generations, New York colony contained only some eighty thousand inhabitants, of whom twelve thousand were blacks. New York city was a thriving little trading town, whose people in summer suffered much from the mosquitoes that came back with the cows when they were driven home at nightfall for milking; while from among the locusts and water-beeches that lined the pleasant, quiet streets, the tree frogs sang so shrilly through the long, hot evenings that a man in speaking could hardly make himself heard.

Gouverneur Morris belonged by birth to that powerful landed aristocracy whose rule was known by New York alone among all the northern colonies. His great-grandfather, who had served in the Cromwellian armies, came to the seaport at the mouth of the Hudson, while it was still beneath the sway of Holland, and settled outside of Haerlem, the estate being invested with manorial privileges by the original grant of the governor. In the next two generations the Morrisses had played a prominent part in colonial affairs, both the father and grandfather of Gouverneur having been on the bench, and having also been members of the provincial legislature, where they took the popular side, and stood up stoutly for the rights of the Assembly in the wearisome and interminable conflicts waged by the latter against the prerogatives of the crown and the powers of the royal governors. The Morrisses were restless, adventurous men, of erratic temper and strong intellect; and, with far more than his share of the family talent and brilliancy, young Gouverneur also inherited a certain whimsical streak that ran through his character. His mother was one of the Huguenot Gouverneurs, who had been settled in New York since the revocation of the Edict of Nantes; and it was perhaps the French blood in his veins that gave him the alert vivacity and keen sense of humor that distinguished him from most of the great Revolutionary statesmen who were his contemporaries.

He was a bright, active boy, fond of shooting and out-door sports, and was early put to school at the old Huguenot settlement of New Rochelle, where the church service was still sometimes held in French; and he there learned to speak and write this language almost as well as he could English. Thence, after the usual preparatory instruction, he went to King's College—now, with altered name and spirit, Columbia—in New York.

The years of his childhood were stirring ones for the colonies; for England was then waging the greatest and most successful of her colonial contests with France and Spain for the possession of eastern North America. Such contests, with their usual savage accompaniments in the way of Indian warfare, always fell with especial weight on New York, whose border lands were not only claimed, but even held by the French, and within whose boundaries lay the great confederacy of the Six Nations, the most crafty, warlike, and formidable of all the native races, infinitely more to be dreaded than the Algonquin tribes with whom the other colonies had to deal. Nor was this war any exception to the rule; for battle after battle was fought on our soil, from the day when, unassisted, the purely colonial troops of New York and New England at Lake George destroyed Baron Dieskau's mixed host of French regulars, Canadian militia, and Indian allies, to that still more bloody day when, on the shores of Lake Champlain, Abercrombie's great army of British and Americans recoiled before the fiery genius of Montcalm.

When once the war was ended by the complete and final overthrow of the French power, and the definite establishment of English supremacy along the whole Atlantic seaboard, the bickering which was always going on between Great Britain and her American subjects, and which was but partially suppressed even when they were forced to join in common efforts to destroy a common foe, broke out far more fiercely than ever. While the colonists were still reaping the aftermath of the contest in the shape of desolating border warfare against those Indian tribes who had joined in the famous conspiracy of Pontiac, the Royal Parliament passed the Stamp Act, and thereby began the struggle that ended in the Revolution.

England's treatment of her American subjects was thoroughly selfish; but that her conduct towards them was a wonder of tyranny, will not now be seriously asserted; on the contrary, she stood decidedly above the general European standard in such matters, and certainly treated her colonies far

better than France and Spain did theirs; and she herself had undoubted grounds for complaint in, for example, the readiness of the Americans to claim military help in time of danger, together with their frank reluctance to pay for it. It was impossible that she should be so far in advance of the age as to treat her colonists as equals; they themselves were sometimes quite as intolerant in their behavior towards men of a different race, creed, or color. The New England Puritans lacked only the power, but not the will, to behave almost as badly towards the Pennsylvania Quakers as did the Episcopalian English towards themselves. Yet granting all this, the fact remains, that in the Revolutionary War the Americans stood towards the British as the Protestant peoples stood towards the Catholic powers in the sixteenth century, as the Parliamentarians stood towards the Stewarts in the seventeenth, or as the upholders of the American Union stood towards the confederate slave-holders in the nineteenth; that is, they warred victoriously for the right in a struggle whose outcome vitally affected the welfare of the whole human race. They settled, once for all, that thereafter the people of English stock should spread at will over the world's waste spaces, keeping all their old liberties and winning new ones; and they took the first and longest step in establishing the great principle that thenceforth those Europeans, who by their strength and daring founded new states abroad, should be deemed to have done so for their own profit as freemen, and not for the benefit of their more timid, lazy, or contented brethren who stayed behind.

The rulers of Great Britain, and to a large extent its people, looked upon the American colonies as existing primarily for the good of the mother country: they put the harshest restrictions on American trade in the interests of British merchants; they discouraged the spread of the Americans westward; and they claimed the right to decide for both parties the proportions in which they should pay their shares of the common burdens. The English and Americans were not the subjects of a common sovereign; for the English were themselves the sovereigns, the Americans were the subjects. Whether their yoke bore heavily or bore lightly, whether it galled or not, mattered little; it was enough that it was a yoke to warrant a proud, free people in throwing it off. We could not thankfully take as a boon part only of what we felt to be our lawful due. "We do not claim liberty as a privilege, but challenge it as a right," said the men of New York, through their legislature, in 1764; and all Americans felt with them.

Yet, for all this, the feeling of loyalty was strong and hard to overcome throughout the provinces, and especially in New York. The Assembly wrangled with the royal governor; the merchants and shipmasters combined to evade the intolerable harshness of the laws of trade that tried to make them customers of England only; the householders bitterly resented the attempts to quarter troops upon them; while the soldiers of the garrison were from time to time involved in brawls with the lower ranks of the people, especially the sailors, as the seafaring population was large, and much given to forcibly releasing men taken by the press-gang for the British war-ships; but in spite of everything there was a genuine sentiment of affection and respect for the British crown and kingdom. It is perfectly possible that if British statesmen had shown less crass and brutal stupidity, if they had shown even the wise negligence of Walpole, this feeling of loyalty would have been strong enough to keep England and America united until they had learned how to accommodate themselves to the rapidly changing conditions; but the chance was lost when once a prince like George the Third came to the throne. It has been the fashion to represent this king as a well meaning, though dull person, whose good morals and excellent intentions partially atoned for his mistakes of judgment; but such a view is curiously false. His private life, it is true, showed the very admirable but common-place virtues, as well as the appalling intellectual littleness, barrenness, and stagnation, of the average British green-grocer; but in his public career, instead of rising to the level of harmless and unimportant mediocrity usually reached by the sovereigns of the House of Hanover, he fairly rivaled the Stuarts in his perfidy, wrongheadedness, political debauchery, and attempts to destroy free government, and to replace it by a system of personal despotism. It needed all the successive blunders both of himself and of his Tory ministers to reduce the loyal party in New York to a minority, by driving the moderate men into the patriotic or American camp; and even then the loyalist minority remained large enough to be a formidable power, and to plunge the embryonic state into a ferocious civil war, carried on, as in the Carolinas and Georgia, with even more bitterness than the contest against the British.

The nature of this loyalist party and the strength of the conflicting elements can only be understood after a glance at the many nationalities that in New York were being blended into one. The descendants of the old Dutch inhabitants were still more numerous than those of any other one race,

while the French Huguenots, who, being of the same Calvinistic faith, were closely mixed with them, and had been in the land nearly as long, were also plentiful; the Scotch and Scotch- or Anglo-Irish, mostly Presbyterians, came next in point of numbers; the English, both of Old and New England, next; there were large bodies of Germans; and there were also settlements of Gaelic Highlanders, and some Welsh, Scandinavians, etc. Just prior to the Revolution there were in New York city two Episcopalian churches, three Dutch Reformed, three Presbyterian (Scotch and Irish), one French, two German (one Lutheran and one Calvinistic, allied to the Dutch Reformed); as well as places of worship for the then insignificant religious bodies of the Methodists, Baptists (largely Welsh), Moravians (German), Quakers and Jews. There was no Roman Catholic church until after the Revolution; in fact before that date there were hardly any Roman Catholics in the colonies, except in Maryland and Pennsylvania, and in New York they did not acquire any strength until after the War of 1812.

This mixture of races is very clearly shown by the ancestry of the half-dozen great men brought forth by New York during the Revolution. Of these, one, Alexander Hamilton, stands in the very first class of American statesmen; two more, John Jay and Gouverneur Morris, come close behind him; the others, Philip Schuyler, Robert Livingston, and George Clinton, were of lesser, but still of more than merely local, note. They were all born and bred on this side of the Atlantic. Hamilton's father was of Scotch, and his mother of French Huguenot, descent; Morris came on one side of English, and on the other of French Huguenot, stock; Jay, of French Huguenot blood, had a mother who was Dutch; Schuyler was purely Dutch; Livingston was Scotch on his father's, and Dutch on his mother's, side; the Clintons were of Anglo-Irish origin, but married into the old Dutch families. In the same way, it was Herkomer, of German parentage, who led the New York levies, and fell at their head in the bloody fight against the Tories and Indians at Oriskany; it was the Irishman Montgomery who died leading the New York troops against Quebec; while yet another of the few generals allotted to New York by the Continental Congress was MacDougall, of Gaelic Scotch descent. The colony was already developing an ethnic type of its own, quite distinct from that of England. No American state of the present day, not even Wisconsin or Minnesota, shows so many and important "foreign," or non-English elements, as New York, and for that matter Pennsylvania and Delaware, did a century or so ago. In fact, in New

York the English element in the blood has grown greatly during the past century, owing to the enormous New England immigration that took place during its first half; and the only important addition to the race conglomerate has been made by the Celtic Irish. The New England element in New York in 1775 was small and unimportant; on Long Island, where it was largest, it was mainly tory or neutral; in the city itself, however, it was aggressively patriotic.

Recent English writers, and some of our own as well, have foretold woe to our nation, because the blood of the Cavalier and the Roundhead is being diluted with that of "German boors and Irish cotters." The alarm is needless. As a matter of fact the majority of the people of the middle colonies at the time of the Revolution *were* the descendants of Dutch and German boors and Scotch and Irish cotters; and in a less degree the same was true of Georgia and the Carolinas. Even in New England, where the English stock was purest, there was plenty of other admixture, and two of her most distinguished Revolutionary families bore, one the Huguenot name of Bowdoin, and the other the Irish name of Sullivan. Indeed, from the very outset, from the days of Cromwell, there has been a large Irish admixture in New England. When our people began their existence as a nation, they already differed in blood from their ancestral relatives across the Atlantic much as the latter did from their forebears beyond the German Ocean; and on the whole, the immigration since has not materially changed the race strains in our nationality; a century back we were even less homogeneous than we are now. It is no doubt true that we are in the main an offshoot of the English stem; and cousins to our kinsfolk of Britain we perhaps may be; but brothers we certainly are not.

But the process of assimilating, or as we should now say, of Americanizing, all foreign and non-English elements was going on almost as rapidly a hundred years ago as it is at present. A young Dutchman or Huguenot felt it necessary, then, to learn English, precisely as a young Scandinavian or German does now; and the churches of the former at the end of the last century were obliged to adopt English as the language for their ritual exactly as the churches of the latter do at the end of this. The most stirring, energetic, and progressive life of the colony was English; and all the young fellows of push and ambition gradually adopted this as their native language, and then refused to belong to congregations where the service

was carried on in a less familiar speech. Accordingly the Dutch Reformed churches dwindled steadily, while the Episcopalian and Presbyterian swelled in the same ratio, until in 1764 the former gained a new and lasting lease of life by reluctantly adopting the prevailing tongue; though Dutch was also occasionally used until forty years later.

In fact, during the century that elapsed between the final British conquest of the colony and the Revolution, the New Yorkers—Dutch, French, German, Irish, and English—had become in the main welded into one people; they felt alike towards outsiders, having chronic quarrels with the New England States as well as with Great Britain, and showing, indeed, but little more jealous hostility towards the latter than they did towards Connecticut and New Hampshire.

The religious differences no longer corresponded to the differences of language. Half of the adherents of the Episcopalian Church were of Dutch or Huguenot blood; the leading ministers of the Dutch Church were of Scotch parentage; and the Presbyterians included some of every race. The colonists were all growing to call themselves Englishmen; when Mayor Cruger, and a board of aldermen with names equally Dutch, signed the non-importation agreement, they prefaced it by stating that they claimed "their rights as Englishmen." But though there were no rivalries of race, there were many and bitter of class and religion, the different Protestant sects hating one another with a virulence much surpassing that with which they now regard even Catholics.

The colony was in government an aristocratic republic, its constitution modeled on that of England and similar to it; the power lay in the hands of certain old and wealthy families, Dutch and English, and there was a limited freehold suffrage. The great landed families, the Livingstons, Van Rennselaers, Schuylers, Van Cortlandts, Phillipses, Morrisses, with their huge manorial estates, their riches, their absolute social preëminence and their unquestioned political headship, formed a proud, polished, and powerful aristocracy, deep rooted in the soil; for over a century their sway was unbroken, save by contests between themselves or with the royal governor, and they furnished the colony with military, political, and social leaders for generation after generation. They owned numerous black slaves, and lived in state and comfort on their broad acres, tenant-farmed, in the great, roomy manor-houses, with wainscoted walls and huge fireplaces, and

round about the quaint old gardens, prim and formal with their box hedges and precise flower beds. They answered closely to the whig lords of England, and indeed were often connected with the ruling orders abroad by blood or marriage; as an example, Staats Long Morris, Gouverneur's elder brother, who remained a royalist, and rose to be a major-general in the British army, married the Duchess of Gordon. Some of the manors were so large that they sent representatives to the Albany legislature, to sit alongside of those from the towns and counties.

Next in importance to the great manorial lords came the rich merchants of New York; many families, like the Livingstons, the most prominent of all, had representatives in both classes. The merchants were somewhat of the type of Frobisher, Hawkins, Klaesoon, and other old English and Dutch seaworthies, who were equally keen as fighters and traders. They were shrewd, daring, and prosperous; they were often their own ship-masters, and during the incessant wars against the French and Spaniards went into privateering ventures with even more zest and spirit than into peaceful trading. Next came the smaller landed proprietors, who also possessed considerable local influence; such was the family of the Clintons. The law, too, was beginning to take high rank as an honorable and influential profession.

Most of the gentry were Episcopalians, theirs being practically the state church, and very influential and wealthy; some belonged to the Calvinistic bodies,—notably the Livingstons, who were in large part Presbyterians, while certain of their number were prominent members of the Dutch congregations. It was from among the gentry that the little group of New York revolutionary leaders came; men of singular purity, courage, and ability, who, if they could not quite rank with the brilliant Virginians of that date, nevertheless stood close behind, alongside of the Massachusetts men and ahead of those from any other colony; that, too, it must be kept in mind, at a time when New York was inferior in wealth and population to Massachusetts, Pennsylvania, or Virginia, and little, if at all, in advance of Maryland or Connecticut. The great families also furnished the leaders of the loyalists during the war; such were the De Lanceys, whose influence around the mouth of the Hudson was second to that of none others; and the Johnsons, who, in mansions that were also castles, held half-feudal, half-barbaric sway over the valley of the upper Mohawk, where they were absolute rulers, ready and willing to wage war on their own account, relying

on their numerous kinsmen, their armed negro slaves, their trained bands of Gaelic retainers, and their hosts of savage allies, drawn from among the dreaded Iroquois.

The bulk of the people were small farmers in the country, tradesmen and mechanics in the towns. They were for the most part members of some of the Calvinistic churches, the great majority of the whole population belonging to the Presbyterian and Dutch Reformed congregations. The farmers were thrifty, set in their ways, and obstinate; the townsmen thrifty also, but restless and turbulent. Both farmers and townsmen were thoroughly independent and self-respecting, and were gradually getting more and more political power. They had always stood tenaciously by their rights, from the days of the early Stuart governors, who had complained loudly of the "Dutch Republicans." But they were narrow, jealous of each other, as well as of outsiders, and slow to act together.

The political struggles were very bitter. The great families, under whose banners they were carried on, though all intermarried, were divided by keen rivalries into opposing camps. Yet they joined in dreading too great an extension of democracy; and in return were suspected by the masses, who grumblingly followed their lead, of hostility to the popular cause. The Episcopalians, though greatly in the minority, possessed most power, and harassed in every way they dared the dissenting sects, especially the Presbyterians—for the Dutch Reformed and Huguenot churches had certain rights guaranteed them by treaty. The Episcopalian clergy were royalists to a man, and it was in their congregations that the main strength of the Tories lay, although these also contained many who became the staunchest of patriots. King's College was controlled by trustees of this faith. They were busy trying to turn it into a diminutive imitation of Oxford, and did their best to make it, in its own small way, almost as much a perverse miracle of backward and invariable wrong-headedness as was its great model. Its president, when the Revolution broke out, was a real old wine-bibbing Tory parson, devoted to every worn-out theory that inculcated humble obedience to church and crown; and he was most summarily expelled by the mob.

Some important political consequences arose from the fact that the mass of the people belonged to some one or other of the branches of the Calvinistic faith—of all faiths the most republican in its tendencies. They were strongly inclined to put their republican principles into practice as well in state as in

church; they tended towards hostility to the crown, and were strenuous in their opposition to the extension of the Episcopal power, always threatened by some English statesmen; their cry was against "the King and the Bishops." It is worth noting that the Episcopalian churches were shut up when the Revolution broke out, and were reopened when the British troops occupied the city. The Calvinistic churches, on the contrary, which sided with the revolutionists, were shut when the British came into New York, were plundered by the troops, and were not reopened until after the evacuation.

Thus three parties developed, although the third, destined to overwhelm the others, had not yet come to the front. The first consisted of the royalists, or monarchists, the men who believed that power came from above, from the king and the bishops, and who were aristocratic in their sympathies; who were Americans only secondarily, and who stood by their order against their country. This party contained many of the great manorial families and also of the merchants; and in certain places, as in Staten Island, the east end of Long Island, the upper valley of the Mohawk, and part of Westchester County, the influence of the upper classes combined with the jealousy and ignorance of large sections of the lower, to give it a clear majority of the whole population. The second party was headed by the great families of Whig or liberal sympathies, who, when the split came, stood by their country, although only very moderate republicans; and it held also in its ranks the mass of moderate men, who wished freedom, were resolute in defense of their rights, and had republican leanings, but who also appreciated the good in the system under which they were living. Finally came the extremists, the men of strong republican tendencies, whose delight it was to toast Pym, Hampden, and the regicides. These were led by the agitators in the towns, and were energetic and active, but were unable to effect anything until the blunders of the British ministers threw the moderate men over to their side. They furnished none of the greater revolutionary leaders in New York, though the Clintons came near the line that divided them from the second party.

The last political contest carried on under the crown occurred in 1768, the year in which Morris graduated from college, when the last colonial legislature was elected. It reminds us of our own days when we read of the fears entertained of the solid German vote, and of the hostility to the Irish,

who were hated and sneered at as "beggars" by the English party and the rich Episcopalians. The Irish of those days, however, were Presbyterians, and in blood more English than Gaelic. St. Patrick's Day was celebrated then as now, by public processions, as well as otherwise; but when, for instance, on March 17, 1766, the Irish residents of New York celebrated the day by a dinner, they gave certain toasts that would sound strangely in the ears of Milesian patriots of the present time, for they included "The Protestant Interest," and "King William, of glorious, pious, and immortal memory."

The royalist or conservative side in this contest in 1768 was led by the De Lanceys, their main support being drawn from among the Episcopalians, and most of the larger merchants helping them. The Whigs, including those with republican leanings, followed the Livingstons, and were drawn mainly from the Presbyterian and other Calvinistic congregations. The moderate men on this occasion went with the De Lanceys, and gave them the victory. In consequence the colonial legislature was conservative and loyal in tone, and anti-republican, although not ultra-tory, as a whole; and thus when the revolutionary outbreak began it went much slower than was satisfactory to the patriot party, and its actions were finally set aside by the people.

When Morris graduated from college, as mentioned above, he was not yet seventeen years old. His college career was like that of any other bright, quick boy, without over much industry or a passion for learning. For mathematics he possessed a genuine taste; he was particularly fond of Shakespeare; and even thus early he showed great skill in discussion and much power of argument. He made the oration, or graduating address, of his class, choosing for the subject "Wit and Beauty;" it was by no means a noteworthy effort, and was couched in the dreadful Johnsonian English of the period. A little later, when he took his master's degree, he again delivered an oration,—this time on "Love." In point of style this second speech was as bad as the first, disfigured by cumbrous Latinisms and a hopeless use of the superlative; but there were one or two good ideas in it.

As soon as he graduated, he set to work to study law, deciding on this profession at once as being best suited for an active, hopeful, ambitious young man of his social standing and small fortune, who was perfectly self-confident and conscious of his own powers. He soon became interested in his studies, and followed them with great patience, working hard and

mastering both principles and details with ease. He was licensed to practice as an attorney in 1771, just three years after another young man, destined to stand as his equal in the list of New York's four or five noted statesmen, John Jay, had likewise been admitted to the bar; and among the very few cases in which Morris was engaged of which the record has been kept is one concerning a contested election, in which he was pitted against Jay, and bore himself well.

Before this, and while not yet of age, he had already begun to play a part in public affairs. The colony had been run in debt during the French and Indian wars, and a bill was brought forward in the New York Assembly to provide for this by raising money through the issue of interest-bearing bills of credit. The people, individually, were largely in debt, and hailed the proposal with much satisfaction, on the theory that it would "make money more plenty;" our revolutionary forefathers being unfortunately not much wiser or more honest in their ways of looking at the public finances than we ourselves, in spite of our state repudiators, national greenbackers, and dishonest silver men.

Morris attacked the bill very forcibly, and with good effect, opposing any issue of paper money, which could bring no absolute relief, but merely a worse catastrophe of bankruptcy in the end; he pointed out that it was nothing but a mischievous pretense for putting off the date of a payment that would have to be met anyhow, and that ought rather to be met at once with honest money gathered from the resources of the province. He showed the bad effects such a system of artificial credit would have on private individuals, the farmers and tradesmen, by encouraging them to speculate and go deeper into debt; and he criticised unsparingly the attitude of the majority of his fellow-citizens in wishing such a measure of relief, not only for their short-sighted folly, but also for their criminal and selfish dishonesty in trying to procure a temporary benefit for themselves at the lasting expense of the community; finally he strongly advised them to bear with patience small evils in the present rather than to remedy them by inflicting infinitely greater ones on themselves and their descendants in the future.

At the law he did very well, having the advantages of his family name, and of his own fine personal appearance. He was utterly devoid of embarrassment, and his perfect self-assurance and freedom from any

timidity or sense of inferiority left his manner without the least tinge of awkwardness, and gave clear ground for his talents and ambition to make their mark.

However, hardworking and devoted to his profession though he was, he had the true family restlessness and craving for excitement, and soon after he was admitted to the bar, he began to long for foreign travel, as was natural enough in a young provincial gentleman of his breeding and education. In a letter to an old friend (William Smith, a man of learning, the historian of the colony, and afterwards its chief justice), in whose office he had studied law, he asks advice in the matter, and gives as his reasons for wishing to make the trip the desire "to form my manners and address by the example of the truly polite, to rub off in the gay circle a few of the many barbarisms which characterize a provincial education, and to curb the vain self-sufficiency which arises from comparing ourselves with companions who are inferior to us." He then anticipates the objections that may be made on the score of the temptations to which he will be exposed by saying: "If it be allowed that I have a *taste* for pleasure, it may naturally follow that I shall avoid those low pleasures which abound on this as well as on the other side of the Atlantic. As for these poignant joys which are the lot of the affluent, like Tantalus I may grasp at them, but they will certainly be out of my reach." In this last sentence he touches on his narrow means; and it was on this point that his old preceptor harped in making his reply, cunningly instilling into his mind the danger of neglecting his business, and bringing up the appalling example of an "Uncle Robin," who, having made three pleasure trips to England, "began to figure with thirty thousand pounds, and did not leave five thousand;" going on "What! '*Virtus post nummos*? Curse on inglorious wealth?' Spare your indignation. I, too, detest the ignorant miser; but both virtue and ambition abhor poverty, or they are mad. Rather imitate your grandfather [who had stayed in America and prospered] than your uncle."

The advice may have had its effect; at any rate Morris stayed at home, and, with an occasional trip to Philadelphia, got all he could out of the society of New York, which, little provincial seaport though it was, was yet a gay place, gayer than any other American city save Charleston, the society consisting of the higher crown officials, the rich merchants, and the great landed proprietors. Into this society Morris, a handsome, high-bred young

fellow, of easy manners and far from puritanical morals, plunged with a will, his caustic wit and rather brusque self-assertion making him both admired and feared. He enjoyed it all to the full, and in his bright, chatty letters to his friends pictures himself as working hard, but gay enough also: "up all night—balls, concerts, assemblies—all of us mad in the pursuit of pleasure."

But the Revolution was at hand; and both pleasure and office-work had to give way to something more important.

CHAPTER II.

THE OUTBREAK OF THE REVOLUTION: MORRIS IN THE PROVINCIAL CONGRESS.

During the years immediately preceding the outbreak of the Revolution, almost all people were utterly in the dark as to what their future conduct should be. No responsible leader thought seriously of separation from the mother country, and the bulk of the population were still farther from supposing such an event to be possible. Indeed it must be remembered that all through the Revolutionary War not only was there a minority actively favorable to the royal cause, but there was also a minority—so large that, added to the preceding, it has been doubted whether it was not a majority—that was but lukewarm in its devotion to the American side, and was kept even moderately patriotic almost as much by the excesses of the British troops and blunders of the British generals and ministers, as by the valor of our own soldiers, or the skill of our own statesmen. We can now see clearly that the right of the matter was with the patriotic party; and it was a great thing for the whole English-speaking race that that section of it which was destined to be the most numerous and powerful should not be cramped and fettered by the peculiarly galling shackles of provincial dependency; but all this was not by any means so clear then as now, and some of our best citizens thought themselves in honor bound to take the opposite side,—though of necessity those among our most high-minded men, who were also far-sighted enough to see the true nature of the struggle, went with the patriots.

That the loyalists of 1776 were wrong is beyond question; but it is equally beyond question that they had greater grounds for believing themselves right than had the men who tried to break up the Union three quarters of a century later. That these latter had the most hearty faith in the justice of their cause need not be doubted; and he is but a poor American whose veins do not thrill with pride as he reads of the deeds of desperate prowess done by the confederate armies; but it is most unfair to brand the "tory" of 1776 with a shame no longer felt to pertain to the "rebel" of 1860. Still, there is

no doubt, not only that the patriots were right, but also that they were as a whole superior to the tories; they were the men with a high ideal of freedom, too fond of liberty, and too self-respecting, to submit to foreign rule; they included the mass of hard-working, orderly, and yet high-spirited yeomen and freeholders. The tories included those of the gentry who were devoted to aristocratic principles; the large class of timid and prosperous people (like the Pennsylvania Quakers); the many who feared above all things disorder; also the very lowest sections of the community, the lazy, thriftless, and vicious, who hated their progressive neighbors, as in the Carolinas; and finally the men who were really principled in favor of a kingly government.

Morris was at first no more sure of his soundings than were the rest of his companions. He was a gentleman of old family, and belonged to the ruling Episcopalian Church. He was no friend to tyranny, and he was a thorough American, but he had little faith in extreme democracy. The Revolution had two sides; in the northern Atlantic States at least it was almost as much an uprising of democracy against aristocracy as it was a contest between America and England; and the patriotic Americans, who nevertheless distrusted ultra-democratic ideas, suffered many misgivings when they let their love for their country overcome their pride of caste. The "Sons of Liberty," a semi-secret society originating among the merchants, and very powerful in bringing discontent to a head, now showed signs of degenerating into a mob; and for mobs Morris, like other clear-headed men, felt the most profound dislike and contempt.

Throughout 1774 he took little part in the various commotions, which kept getting more and more violent. He was angered by the English encroachments, and yet was by no means pleased with the measures taken to repel them. The gentry, and the moderate men generally, were at their wits' ends in trying to lead the rest of the people, and were being pushed on farther and farther all the time; the leadership, even of the revolutionary party, still rested in their hands; but it grew continually less absolute. Said Morris: "The spirit of the English constitution has yet a little influence left, and but a little. The remains of it, however, will give the wealthy people a superiority this time; but, would they secure it, they must banish all schoolmasters and confine all knowledge to themselves.... The gentry begin to fear this. Their committee will be appointed; they will deceive the

people, and again forfeit a share of their confidence. And if these instances of what with one side is policy, with the other perfidy, shall continue to increase and become more frequent, farewell, aristocracy. I see, and see it with fear and trembling, that if the dispute with Britain continues, we shall be under the worst of all possible dominions; we shall be under the dominion of a riotous mob. It is the interest of all men, therefore, to seek for reunion with the parent state." He then goes on to discuss the terms which will make this reunion possible, and evidently draws ideas from sources as diverse as Rousseau and Pitt, stating, as preliminaries, that when men come together in society, there must be an implied contract that "a part of their freedom shall be given up for the security of the remainder. But what part? The answer is plain. The least possible, considering the circumstances of the society, which constitute what may be called its political necessity;" and again: "In every society the members have a right to the utmost liberty that can be enjoyed consistent with the general safety;" while he proposes the rather wild remedy of divorcing the taxing and the governing powers, giving America the right to lay her own imposts, and regulate her internal police, and reserving to Great Britain that to regulate the trade for the entire empire.

Naturally there was no hope of any compromise of this sort. The British ministry grew more imperious, and the Colonies more defiant. At last the clash came, and then Morris's thorough Americanism and inborn love of freedom and impatience of tyranny overcame any lingering class jealousy, and he cast in his lot with his countrymen. Once in, he was not of the stuff to waver or look back; but like most other Americans, and like almost all New Yorkers, he could not for some little time realize how hopeless it was to try to close the breach with Great Britain. Hostilities had gone on for quite a while before even Washington could bring himself to believe that a lasting separation was inevitable.

The Assembly, elected as shown in the previous chapter, at a moment of reaction, was royalist in tone. It contained several stanch patriots, but the majority, although unwilling to back up the British ministers in all their doings, were still more hostile to the growing body of republican revolutionists. They gradually grew wholly out of sympathy with the people; until the latter at last gave up all attempts to act through their ordinary representatives, and set about electing delegates who should prove

more faithful. Thereupon, in April, 1775, the last colonial legislature adjourned for all time, and was replaced by successive bodies more in touch with the general sentiment of New York; that is, by various committees, by a convention to elect delegates to the Continental Congress, and then by the Provincial Congress. The lists of names in these bodies show not only how many leading men certain families contributed, but also how mixed the lineage of such families was; for among the numerous Jays, Livingstons, Ludlows, Van Cortlandts, Roosevelts, Beekmans, and others of Dutch, English, and Huguenot ancestry appear names as distinctly German, Gaelic-Scotch, and Irish, like Hoffman, Mulligan, MacDougall, Connor.^[1]

To the Provincial Congress, from thenceforth on the regular governmental body of the colony, eighty-one delegates were elected, including Gouverneur Morris from the county of Westchester, and seventy were present at the first meeting, which took place on May 22 at New York. The voting in the Congress was done by counties, each being allotted a certain number of votes roughly approximating to its population.

Lexington had been fought, and the war had already begun in Massachusetts; but in New York, though it was ablaze with sympathy for the insurgent New Englanders, the royal authority was still nominally unquestioned, and there had been no collision with the British troops. Few, if any, of the people of the colony as yet aimed at more than a redress of their grievances and the restoration of their rights and liberties; they had still no idea of cutting loose from Great Britain. Even such an avowedly popular and revolutionary body as the Provincial Congress contained some few out and out tories and very many representatives of that timid, wavering class, which always halts midway in any course of action, and is ever prone to adopt half-measures,—a class which in any crisis works quite as much harm as the actively vicious, and is almost as much hated and even more despised by the energetic men of strong convictions. The timid good are never an element of strength in a community; but they have always been well represented in New York. During the Revolutionary War it is not probable that much more than half of her people were ever in really hearty and active sympathy with the patriots.

Morris at once took a prominent place in the Congress, and he showed the national bent of his mind when he seconded a resolution to the effect that implicit obedience ought to be rendered to the Continental Congress in all

matters pertaining to the general regulation of the associated colonies. The Assembly, however, was by no means certain how far it would be well to go; and the majority declined either to approve or disapprove of the proceedings of the late Continental Congress. They agreed to subscribe to the association, and recommended the same course to their constituents; but added that they did not believe the latter should be forced to do so.

Still, with all their doubting and faint-heartedness, they did set about preparing for resistance, and for at least the possibility of concerted action with the other colonies. The first step, of course, was to provide for raising funds; this was considered by a committee of which Morris was a member, and he prepared and drew up their report. In the state of public feeling, which was nearly a unit against "taxation without representation" abroad, but was the reverse of unanimous as to submitting even to taxation with representation at home, it was impossible to raise money by the ordinary method; indeed, though the mass of active patriots were willing to sacrifice much, perhaps all, for the cause, yet there were quite as many citizens whose patriotism was lukewarm enough already, and could not stand any additional chilling. Such people are always willing to face what may be called a staved-off sacrifice, however; and promises to pay in the future what they can, but will not pay in the present, come under this head. Besides, there would have been other difficulties in the way, and in fact it was impossible to raise the amount needed by direct taxation. Accordingly Morris, in his report on behalf of the committee, recommended an issue of paper money, and advised that this should not be done by the colony itself, but that the Continental Congress should strike the whole sum needed, and apportion the several shares to the different colonies, each of them being bound to discharge its own particular part, and all together to be liable for whatever any particular colony was unable to pay. This plan secured a wide credit and circulation to the currency, and, what was equally desirable, created throughout the colonies a common interest and common responsibility on a most important point, and greatly strengthened the bonds of their union. Morris even thus early showed the breadth of his far-seeing patriotism; he was emphatically an American first, a New Yorker next; the whole tone of his mind was thoroughly national. He took the chief part in urging the adoption of the report, and made a most telling speech in its favor before the Assembly, a mixed audience of the prominent men of the colony being also present. The report was adopted and forwarded to the

Continental Congress; Morris was felt on all sides to have already taken his place among the leaders, and from thenceforth he was placed on almost every important committee of the Provincial Congress.

This body kept on its course, corresponding with the other colonies, exchanging thinly veiled threats with the Johnsons, the powerful Tory overlords of the upper Mohawk, and preparing rather feebly for defense, being hampered by a total lack of funds or credit until the continental currency was coined. But they especially busied themselves with a plan of reconciliation with England; and in fact were so very cautious and moderate as to be reproached by their chosen agent in England, Edmund Burke, for their "scrupulous timidity." The Congress, by the way, showed some symptoms of an advance in toleration, at least so far as the Protestant sects went; for it was opened and closed by ministers of the Episcopalian, Dutch Reformed, Presbyterian, Baptist, and other sects, each in turn; but, as will shortly be seen, the feeling against Catholics was quite as narrow-minded and intense as ever. This was natural enough in colonial days, when Protestantism and national patriotism were almost interchangeable terms; for the hereditary and embittered foes of the Americans, the French and Spaniards, were all Catholics, and even many of the Indians were of the same faith; and undoubtedly the wonderful increase in the spirit of tolerance shown after the Revolution was due in part to the change of the Catholic French into our allies, and of the Protestant English into our most active foes. It must be remembered, however, that the Catholic gentry of Maryland played the same part in the Revolution that their Protestant neighbors did. One of the famous Carroll family was among the signers of the Declaration of Independence; and on the other hand, one of the Cliftons was a noted loyalist leader.

Morris took a prominent part, both in and out of committee, in trying to shape the plan of reconciliation, although utterly disapproving of many of the ways in which the subject was handled; for he had all the contempt natural to most young men of brains, decision, and fiery temper, for his timid, short-sighted, and prolix colleagues. The report was not all to his taste in the final shape in which it was adopted. It consisted of a series of articles recommending the repeal of the obnoxious statutes of the Imperial Parliament, the regulation of trade for the benefit of the whole empire, the establishment of triennial colonial legislatures, and also asserting the right

of the colonies to manage their internal polity to suit themselves, and their willingness to do their part, according to their capacities, for the general defense of the empire. The eighth article contained a denial of the right of "Great Britain, or any other earthly legislature or tribunal, to interfere in the ecclesiastical or religious concerns of the colonies," together with a "protest against the indulgence and establishment of popery all along their interior confines;" this being called forth by what was known as the "Quebec Bill," whereby the British Parliament had recently granted extraordinary powers and privileges to the Canadian clergy, with the obvious purpose of conciliating that powerful priesthood, and thereby converting—as was actually done—the recently conquered French of the St. Lawrence valley into efficient allies of the British government against the old Protestant colonies.

This eighth article was ridiculous, and was especially objected to by Morris. In one of his vigorous, deliciously fresh, and humorous letters, dated June 30, 1775, and addressed to John Jay, then in the Continental Congress, he writes:—

The foolish religious business I opposed until I was weary; it was carried by a very small majority, and my dissent entered.... The article about religion is most arrant nonsense, and would do as well in a high Dutch Bible as the place it now stands in.

I drew a long report for our committee, to which they could make no objections excepting that none of them could understand it.... I was pleased at the rejection, because, as I observed to you before, I think the question ought to be simplified.

I address this letter to you, but I shall be glad [if] you will read it to Livingstone, for I intend it for both of you; make my compliments to him, and tell him that I shall write to him when I have time to write a good letter—this is a damned bad one, and would not exist, if I did not think it a duty to myself to show my friends that I had no hand in that foolish religious business, I am, as you well know, your friend, etc.

Morris did not believe in a colonial assembly making overtures for a reconciliation, as he thought this was the province of the Continental Congress. The majority was against him, but he was a clever politician and

parliamentary tactician, as well as a great statesman, and he fairly outwitted and hoodwinked his opponents, persuading them finally to adopt the report in the form of a mere expression of opinions to be sent to their congressional delegates, with a prayer that the latter would "use every effort for the compromising of this unnatural quarrel between the parent and child." In this shape it was forwarded to the delegates, who answered that they would do all in their power to compromise the quarrel, and added a postscript, written by Jay himself, to the effect that they deemed it better not to make any mention of the religious article before the Congress, as they thought it wise to bury "all disputes on ecclesiastical points, which have for ages had no other tendency than that of banishing peace and charity from the world."

While all this was pending, and though Bunker Hill had been fought, and the war was in full progress round Boston, New York yet maintained what might almost be described as an attitude of armed neutrality. The city was so exposed to the British war-ships in the bay, and the surrounding population was so doubtful, that the patriot party dared not take the deciding steps, especially as so many of its members still clung to the hope of a peaceful settlement. Morris announced frankly that he did not believe in breaking the peace until they were prepared to take the consequences. Indeed, when the few British troops left the city to join the garrison in Boston, he strongly opposed the action of the Sons of Liberty, who gathered hastily together, and took away the cartloads of arms and ammunition that the soldiers were taking with them. The Congress, to their honor, discouraged, to the best of their power, the rioting and mobbing of Tories in the city.

In fact, New York's position was somewhat like that of Kentucky at the outbreak of the Civil War. Her backwardness in definitely throwing in her lot with the revolutionists was clearly brought out by a rather ludicrous incident. General Washington, on his way to take command of the continental army round Boston, passed through New York the same day the royal governor, Tryon, arrived by sea, and the authorities were cast into a great quandary as to how they should treat two such kings of Brentford when the one rose was so small. Finally they compromised by sending a guard of honor to attend each; Montgomery and Morris, as delegates from the Assembly, received Washington and brought him before that body,

which addressed him in terms of cordial congratulation, but ended with a noteworthy phrase,—that "when the contest should be decided by an accommodation with the mother country, he should deliver up the important deposit that had been confided to his hands."

These words give us the key to the situation. Even the patriots of the colony could not realize that there was no hope of an "accommodation"; and they were hampered at every step by the fear of the British frigates, and of the numerous Tories. The latter were very bold and defiant; when Congress tried to disarm them, they banded themselves together, bade the authorities defiance, and plainly held the upper land on Staten Island and in Queens County. New York furnished many excellent soldiers to the royal armies during the war, and from among her gentry came the most famous of the Tory leaders,—such as Johnson and De Lancey, whose prowess was felt by the hapless people of their own native province; De Peyster, who was Ferguson's second in command at King's Mountain; and Cruger, who, in the Carolinas, inflicted a check upon Greene himself. The Tories were helped also by the jealousy felt towards some of the other colonies, especially Connecticut, whose people took the worst possible course for the patriot side by threatening to "crush down" New York, and by finally furnishing an armed and mounted mob which rode suddenly into the city, and wrecked the office of an obnoxious loyalist printer named Rivington. This last proceeding caused great indignation, and nearly made a split in the revolutionary camp.

New York had thus some cause for her inaction; nevertheless, her lack of boldness and decision were not creditable to her, and she laid herself open to just reproaches. Nor can Morris himself be altogether freed from the charge of having clung too long to the hope of a reconciliation and to a policy of half measures. He was at that time chairman of a legislative committee which denounced any projected invasion of Canada (therein, however, only following the example of the Continental Congress), and refused to allow Ethan Allen to undertake one, as that adventurous partisan chieftain requested. But Morris was too clear-sighted to occupy a doubtful position long; and he now began to see things clearly as they were, and to push his slower or more timid associates forward along the path which they had set out to tread. He was instrumental in getting the militia into somewhat better shape; and, as it was found impossible to get enough

continental money, a colonial paper currency was issued. In spite of the quarrel with Connecticut, a force from that province moved in to take part in the defense of New York.

Yet, in the main, the policy of the New York Congress still continued both weak and changeable, and no improvement was effected when it was dissolved and a second elected. To this body the loyalist counties of Richmond and Queens refused to return delegates, and throughout the colony affairs grew more disorderly, and the administration of justice came nearly to a standstill. Finding that the local congress seemed likely to remain unable to make up its mind how to act, the continental leaders at last took matters into their own hands, and marched a force into New York city early in February, 1776. This had a most bracing effect upon the provincial authorities; yet they still continued to allow the British war-ships in the bay to be supplied with provisions, nor was this attitude altered until in April Washington arrived with the main continental army. He at once insisted that a final break should be made; and about the same time the third Provincial Congress was elected. Morris, again returned for Westchester, headed the bolder spirits, who had now decided that the time had come to force their associates out of their wavering course, and to make them definitely cast in their lot with their fellow Americans. Things had come to a point which made a decision necessary; the gathering of the continental forces on Manhattan Island and the threatening attitude of the British fleet and army made it impossible for even the most timid to keep on lingering in a state of uncertainty. So the Declaration of Independence was ratified, and a state constitution organized; then the die was cast, and thereafter New York manfully stood by the result of the throw.

The two Provincial Congresses that decided on this course held their sessions in a time of the greatest tumult, when New York was threatened hourly by the British; and long before their work was ended they had hastily to leave the city. Before describing what they did, a glance should be taken at the circumstances under which it was done.

The peaceable citizens, especially those with any property, gradually left New York; and it remained in possession of the raw levies of the continentals, while Staten Island received Howe with open arms, and he was enabled without difficulty to disembark his great force of British and German mercenaries on Long Island. The much smaller, motley force

opposed to him, unorganized, ill armed, and led by utterly inexperienced men, was beaten, with hardly an effort, in the battle that followed, and only escaped annihilation through the skill of Washington and the supine blundering of Howe. Then it was whipped up the Hudson and beyond the borders of the State, the broken remnant fleeing across New Jersey; and though the brilliant feats of arms at Trenton and Princeton enabled the Americans to reconquer the latter province, southern New York lay under the heel of the British till the close of the war.

Thus Morris, Jay, and the other New York leaders were obliged for six years to hold up their cause in a half-conquered State, a very large proportion of whose population was lukewarm or hostile. The odds were heavy against the patriots, because their worst foes were those of their own household. English writers are fond of insisting upon the alleged fact that America only won her freedom by the help of foreign nations. Such help was certainly most important, but, on the other hand, it must be remembered that during the first and vital years of the contest the revolutionary colonists had to struggle unaided against the British, their mercenary German and Indian allies, Tories, and even French Canadians. When the French court declared in our favor the worst was already over; Trenton had been won, Burgoyne had been captured, and Valley Forge was a memory of the past.

We did not owe our main disasters to the might of our foes, nor our final triumph to the help of our friends. It was on our own strength that we had to rely, and it was with our own folly and weakness that we had to contend. The revolutionary leaders can never be too highly praised; but taken in bulk the Americans of the last quarter of the eighteenth century do not compare to advantage with the Americans of the third quarter of the nineteenth. In our Civil War it was the people who pressed on the leaders, and won almost as much in spite of as because of them; but the leaders of the Revolution had to goad the rank and file into line. They were forced to contend not only with the active hostility of the Tories, but with the passive neutrality of the indifferent, and the selfishness, jealousy, and short-sightedness of the patriotic. Had the Americans of 1776 been united, and had they possessed the stubborn, unyielding tenacity and high devotion to an ideal shown by the North, or the heroic constancy and matchless valor shown by the South, in the Civil War, the British would have been driven off the continent before three years were over.

It is probable that nearly as great a proportion of our own people were actively or passively opposed to the formation of our union originally as were in favor of its dissolution in 1860. This was one of the main reasons why the war dragged on so long. It may be seen by the fact, among others, that when in the Carolinas and Georgia a system of relentless and undying partisan warfare not only crushed the Tories, but literally destroyed them from off the face of the earth, then the British, though still victorious in almost every pitched battle, were at once forced to abandon the field.

Another reason was the inferior military capacity of the revolutionary armies. The continental troops, when trained, were excellent; but in almost every battle they were mixed with more or less worthless militia; and of the soldiers thus obtained all that can be said is that their officers could never be sure that they would fight, nor their enemies that they would run away. The revolutionary troops certainly fell short of the standard reached by the volunteers who fought Shiloh and Gettysburg. The British rarely found them to be such foes as they afterwards met at New Orleans and Lundy's Lane. Throughout the Revolution the militia were invariably leaving their posts at critical times; they would grow either homesick or dejected, and would then go home at the very crisis of the campaign; they did not begin to show the stubbornness and resolution to "see the war through" so common among their descendants in the contending Federal and Confederate armies.

The truth is that in 1776 our main task was to shape new political conditions, and then to reconcile our people to them; whereas in 1860 we had merely to fight fiercely for the preservation of what was already ours. In the first emergency we needed statesmen, and in the second warriors; and the statesmen and warriors were forthcoming. A comparison of the men who came to the front during these, the two heroic periods of the Republic, brings out this point clearly.

Washington, alike statesman, soldier, and patriot, stands alone. He was not only the greatest American; he was also one of the greatest men the world has ever known. Few centuries and few countries have ever seen his like. Among the people of English stock there is none to compare with him, unless perhaps Cromwell, utterly different though the latter was. Of Americans, Lincoln alone is worthy to stand even second.

As for our other statesmen: Franklin, Hamilton, Jefferson, Adams, and their fellows, most surely stand far above Seward, Sumner, Chase, Stanton, and Stevens, great as were the services which these, and those like them, rendered.

But when we come to the fighting men, all this is reversed. As a mere military man Washington himself cannot rank with the wonderful war-chief who for four years led the Army of Northern Virginia; and the names of Washington and Greene fill up the short list of really good Revolutionary Generals. Against these the Civil War shows a roll that contains not only Lee, but also Grant and Sherman, Jackson and Johnson, Thomas, Sheridan, and Farragut,—leaders whose volunteer soldiers and sailors, at the end of their four years' service, were ready and more than able to match themselves against the best regular forces of Europe.

CHAPTER III.

INDEPENDENCE: FORMING THE STATE CONSTITUTION.

The third Provincial Congress, which came together in May, and before the close of its sessions was obliged to adjourn to White Plains, had to act on the Declaration of Independence, and provide for the foundation of a new state government.

Morris now put himself at the head of the patriotic party, and opened the proceedings by a long and very able speech in favor of adopting the recommendation of the Continental Congress that the colonies should form new governments. In his argument he went at length into the history and growth of the dispute with Great Britain, spoke of the efforts made in the past for reconciliation, and then showed clearly how such efforts were now not only hopeless, but also no longer compatible with the dignity and manhood of Americans. He sneered at those who argued that we ought to submit to Great Britain for the sake of the protection we got from her. "Great Britain will not fail to bring us into a war with some of her neighbors, and then protect us as a lawyer defends a suit: the client paying for it. This is quite in form, but a wise man would, I think, get rid of the suit and the lawyer together. Again, how are we to be protected? If a descent is made upon our coasts and the British navy and army are three thousand miles off, we cannot receive very great benefit from them on that occasion. If, to obviate this inconvenience, we have an army and navy constantly among us, who can say that we shall not need a little protection against *them*?" He went on to point out the hopelessness of expecting Great Britain to keep to any terms which would deprive Parliament of its supremacy over America: for no succeeding Parliament could be held bound by the legislation of its predecessor, and the very acknowledgment of British supremacy on the part of the Americans would bind them as subjects, and make the supremacy of Parliament legitimate. He bade his hearers remember the maxim "that no faith is to be kept with rebels;" and said: "In this case, or in any other case, if we fancy ourselves hardly dealt with, I

maintain there is no redress but by arms. For it never yet was known that, when men assume power, they will part with it again, unless by compulsion."

He then took up the subject of independence, showed, for the benefit of the good but timid men who were frightened at the mere title, that, in all but name, it already existed in New York, and proved that its maintenance was essential to our well-being. "My argument, therefore, stands thus: As a connection with Great Britain cannot again exist without enslaving America, an independence is absolutely necessary. I cannot balance between the two. We run a hazard in one path, I confess; but then we are infallibly ruined if we pursue the other.... We find the characteristic marks and insignia of independence in this society, considered in itself and compared with other societies. The enumeration is conviction. Coining moneys, raising armies, regulating commerce, peace, war: all these things you are not only adepts in, but masters of. Treaties alone remain, and even those you have dabbled at. Georgia you put under the ban of empire, and received her upon repentance as a member of the flock. Canada you are now treating with. France and Spain you ought to treat with, and the rest is but a name. I believe, sir, the Romans were as much governed, or rather oppressed, by their emperors, as ever any people were by their king. But emperor was more agreeable to their ears than king. [So] some, nay, many, persons in America dislike the word independence."

He then went on to show how independence would work well alike for our peace, liberty, and security. Considering the first, he laughed at the apprehensions expressed by some that the moment America was independent all the powers of Europe would pounce down on her, to parcel out the country among themselves; and showed clearly that to a European power any war of conquest in America would be "tedious, expensive, uncertain, and ruinous," and that none of the country could be kept even if it should come to pass that some little portion of it were conquered. "But I cannot think it will ever come to this. For when I turn my eyes to the means of defense, I find them amply sufficient. We have all heard that in the last war America was conquered in Germany. I hold the converse of this to be true, namely, that in and by America his Majesty's German dominions were secured.... I expect a full and lasting defense against any and every part of the earth." After thus treating of the advantages to be hoped for on the score

of peace, he turns attention "to a question of infinitely greater importance, namely, the liberty of this country;" and afterwards passes to the matter of security, which, "so long as the system of laws by which we are now governed shall prevail, is amply provided for in every separate colony. There may indeed arise an objection because some gentlemen suppose that the different colonies will carry on a sort of land piracy against one another. But how this can possibly happen when the idea of separate colonies no longer exists I cannot for my soul comprehend. That something very like this has already been done I shall not deny, but the reason is as evident as the fact. We never yet had a government in this country of sufficient energy to restrain the lawless and indigent. Whenever a form of government is established which deserves the name, these insurrections must cease. But who is the man so hardy as to affirm that they will not grow with our growth, while on every occasion we must resort to an English judicature to terminate differences which the maxims of policy will teach them to leave undetermined? By degrees we are getting beyond the utmost pale of English government. Settlements are forming to the westward of us, whose inhabitants acknowledge no authority but their own." In one sentence he showed rather a change of heart, as regarded his former aristocratic leanings; for he reproached those who were "apprehensive of losing a little consequence and importance by living in a country where all are on an equal footing," and predicted that we should "cause all nations to resort hither as an asylum from oppression."

The speech was remarkable for its incisive directness and boldness, for the exact clearness with which it portrayed things as they were, for the broad sense of American nationality that it displayed, and for the accurate forecasts that it contained as to our future course in certain particulars,—such as freedom from European wars and entanglements, a strong but purely defensive foreign policy, the encouragement of the growth of the West, while keeping it united to us, and the throwing open our doors to the oppressed from abroad.

Soon after the delivery of this speech news came that the Declaration of Independence had been adopted by the Continental Congress; and Jay, one of the New York delegates to this body, and also a member of the Provincial Congress, drew up for the latter a resolution emphatically indorsing the declaration, which was at once adopted without a dissenting voice. At the

same time the Provincial Congress changed its name to that of "The Convention of the Representatives of the State of New York."

These last acts were done by a body that had been elected, with increased power, to succeed the third Provincial Congress and provide for a new constitution. Just before this, Morris had been sent to the Continental Congress in Philadelphia to complain that the troops from New England were paid more largely than those from the other colonies; a wrong which was at once redressed, the wages of the latter being raised, and Morris returned to New York in triumph after only a week's absence.

The Constitutional Convention of New York led a most checkered life; for the victorious British cheviated it up and down the State, hunting it in turn from every small town in which it thought to have found a peaceful haven of refuge. At last it rested in Fiskhill, such an out-of-the-way place as to be free from danger. The members were obliged to go armed, so as to protect themselves from stray marauding parties; and the number of delegates in attendance alternately dwindled and swelled in a wonderful manner, now resolving themselves into a committee of safety, and again resuming their functions as members of the convention.

The most important duties of the convention were intrusted to two committees. Of the first, which was to draft a plan for the Constitution, Morris, Jay, and Livingston were the three leading members, upon whom all the work fell; of the second, which was to devise means for the establishment of a state fund, Morris was the chairman and moving spirit.

He was also chairman of a committee which was appointed to look after the Tories, and prevent them from joining together and rising; and so numerous were they that the jails were soon choked with those of their number who, on account of their prominence or bitterness, were most obnoxious to the patriots. Also a partial system of confiscation of Tory estates was begun. So greatly were the Tories feared and hated, and so determined were the attempts to deprive them of even the shadow of a chance to do harm, by so much as a word, that the convention sent a memorial, drafted by Morris, to the Continental Congress, in which they made the very futile suggestion that it should take "some measures for expunging from the Book of Common Prayer such parts, and discontinuing in the congregations of all other denominations all such prayers, as interfere with the interests of the

American cause." The resolution was not acted on; but another part of the memorial shows how the Church of England men were standing by the mother country, for it goes on to recite that "the enemies of America have taken great pains to insinuate into the minds of the Episcopalians that the church is in danger. We could wish the Congress would pass some resolve to quiet their fears, and we are confident that it would do essential service to the cause of America, at least in this State."

Morris's position in regard to the Tories was a peculiarly hard one, because among their number were many of his own relatives, including his elder brother. The family house, where his mother resided, was within the British lines; and not only did he feel the disapproval of such of his people as were loyalists, on the one side, but, on the other, his letters to his family caused him to be regarded with suspicion by the baser spirits in the American party. About this time one of his sisters died; the letter he then wrote to his mother is in the usual formal style of the time, yet it shows marks of deep feeling, and he takes occasion, while admitting that the result of the war was uncertain, to avow, with a sternness unusual to him, his intention to face all things rather than abandon the patriot cause. "The worst that can happen is to fall on the last bleak mountain of America; and he who dies there in defense of the injured rights of mankind is happier than his conqueror, more beloved by mankind, more applauded by his own heart." The letter closes by a characteristic touch, when he sends his love to "such as deserve it. The number is not great."

The committee on the constitution was not ready to report until March, 1777. Then the convention devoted itself solely to the consideration of the report, which, after several weeks' discussion, was adopted with very little change. Jay and Morris led the debate before the convention, as they had done previously in committee. There was perfect agreement upon the general principles. Freehold suffrage was adopted, and a majority of the freeholders of the State were thus the ultimate governing power. The executive, judicial, and legislative powers were separated sharply, as was done in the other States, and later on in the Federal Constitution as well. The legislative body was divided into two chambers.

It was over the executive branch that the main contest arose. It was conceded that this should be nominally single headed; that is, that there should be a governor. But the members generally could not realize how

different was a governor elected by the people and responsible to them, from one appointed by an alien and higher power to rule over them, as in the colonial days. The remembrance of the contests with the royal governors was still fresh; and the mere name of governor frightened them. They had the same illogical fear of the executive that the demagogues of to-day (and some honest but stupid people, as well) profess to feel for a standing army. Men often let the dread of the shadow of a dead wrong frighten them into courting a living evil.

Morris himself was wonderfully clear-sighted and cool-headed. He did not let the memory of the wrong-doing of the royal governors blind him; he saw that the trouble with them lay, not in the power that they held, but in the source from which that power came. Once the source was changed, the power was an advantage, not a harm, to the State. Yet few or none of his companions could see this; and they nervously strove to save their new State from the danger of executive usurpation by trying to make the executive practically a board of men instead of one man, and by crippling it so as to make it ineffective for good, while at the same time dividing the responsibility, so that no one need be afraid to do evil. Above all, they were anxious to take away from the governor the appointment of the military and civil servants of the State.

Morris had persuaded the committee to leave the appointment of these officials to the governor, the legislature retaining the power of confirmation or rejection; but the convention, under the lead of Jay, rejected this proposition, and after some discussion adopted in its place the cumbrous and foolish plan of a "council of appointment," to consist of the governor and several senators. As might have been expected, this artificial body worked nothing but harm, and became simply a peculiarly odious political machine.

Again, Morris advocated giving the governor a qualified veto over the acts passed by the legislature; but instead of such a simple and straightforward method of legislative revision, the convention saw fit to adopt a companion piece of foolishness to the council of appointment, in the shape of the equally complicated and anomalous council of revision, consisting of the governor, chancellor, and judges of the supreme court, by whom all the acts of the legislature had to be revised before they could become laws. It is

marvelous that these two bodies should have lived on so long as they did—over forty years.

The convention did one most praiseworthy thing in deciding in favor of complete religious toleration. This seems natural enough now; but at that time there was hardly a European state that practiced it. Great Britain harassed her Catholic subjects in a hundred different ways, while in France Protestants were treated far worse, and, in fact, could scarcely be regarded as having any legal standing whatever. On no other one point do the statesmen of the Revolution show to more marked advantage when compared with their European compeers than in this of complete religious toleration. Their position was taken, too, simply because they deemed it to be the right and proper one; they had nothing to fear or hope from Catholics, and their own interests were in no wise advanced by what they did in the matter.

But in the New York convention toleration was not obtained without a fight. There always rankled in Jay's mind the memory of the terrible cruelty wrought by Catholics on his Huguenot forefathers; and he introduced into the article on toleration an appendix, which discriminated against the adherents of the Church of Rome, denying them the rights of citizenship until they should solemnly swear before the supreme court, first, "that they verily believe in their conscience, that no pope, priest, or foreign authority on earth has power to absolve the subjects of this State from their allegiance to the same;" and, second, "that they renounce ... the dangerous and damnable doctrine that the Pope or any other earthly authority has power to absolve men from sins described in and prohibited by the Holy Gospel." This second point, however important, was of purely theological interest, and had absolutely nothing to do with the state constitution; as to the first proposition, it might have been proper enough had there been the least chance of a conflict between the Pope, either in his temporal or his ecclesiastical capacity, and the United States; but as there was no possibility of such a conflict arising, and as, if it did arise, there would not be the slightest danger of the United States receiving any damage, to put the sentence in would have been not only useless, but exceedingly foolish and harmful, on account of the intense irritation it would have excited.

The whole clause was rejected by a two to one vote, and then all the good that it aimed at was accomplished by the adoption, on the motion of Morris,

of a proviso that the toleration granted should not be held to "justify practices inconsistent with the peace and safety of this State." This proviso of Morris remains in the Constitution to this day; and thus, while absolute religious liberty is guaranteed, the State reserves to itself full right of protection, if necessary, against the adherents of any religious body, foreign or domestic, if they menace the public safety.

On a question even more important than religious toleration, namely, the abolition of domestic slavery, Jay and Morris fought side by side; but though the more enlightened of their fellow-members went with them, they were a little too much in advance of the age, and failed. They made every effort to have a clause introduced into the constitution recommending to the future legislature of New York to abolish slavery as soon as it could be done consistently with the public safety and the rights of property; "so that in future ages every human being who breathes the air of this State shall enjoy the privileges of a free man." Although they failed in their immediate purpose, yet they had much hearty support, and by the bold stand they took and the high ground they occupied they undoubtedly brought nearer the period when the abolition of slavery in New York became practicable.

The Constitution was finally adopted by the convention almost unanimously, and went into effect forthwith, as there was no ratification by the people at large.

As soon as it was adopted a committee, which included Morris, Jay, and Livingston, was appointed to start and organize the new government. The courts of justice were speedily put in running order, and thus one of the most crying evils that affected the State was remedied. A council of safety of fifteen members—again including Morris—was established to act as the provincial government, until the regular legislature should convene. An election for governor was also held almost immediately, and Clinton was chosen. He was then serving in the field, where he had done good work, and, together with his brother James, had fought with the stubborn valor that seems to go with Anglo-Irish blood. He did not give up his command until several months after he was elected, although meanwhile keeping up constant communication with the council of safety, through whom he acted in matters of state.

Meanwhile Burgoyne, with his eight or nine thousand troops, excellently drilled British and Hessians, assisted by Tories, Canadians, and Indians, had crossed the northern frontier, and was moving down towards the heart of the already disorganized State, exciting the wildest panic and confusion. The council of safety hardly knew how to act, and finally sent a committee of two, Morris being one, to the headquarters of General Schuyler, who had the supreme command over all the troops in the northern part of New York.

On Morris's arrival he found affairs at a very low ebb, and at once wrote to describe this condition to the president of the council of safety. Burgoyne's army had come steadily on. He first destroyed Arnold's flotilla on Lake Champlain. Then he captured the forts along the Lakes, and utterly wrecked the division of the American army that had been told off to defend them, under the very unfortunate General St. Clair. He was now advancing through the great reaches of wooded wilderness towards the head of the Hudson. Schuyler, a general of fair capacity, was doing what he could to hold the enemy back; but his one efficient supporter was the wilderness itself, through which the British army stumbled painfully along. Schuyler had in all less than five thousand men, half of them short service continental troops, the other half militia. The farmers would not turn out until after harvest home; all the bodies of militia, especially those from New England, were very insubordinate and of most fickle temper, and could not be depended on for any sustained contest; as an example, Stark, under whose nominal command the northern New Engenders won the battle of Bennington, actually marched off his whole force the day before the battle of Stillwater, alleging the expiration of the term of service of his soldiers as an excuse for what looked like gross treachery or cowardice, but was probably merely sheer selfish wrong-headedness and mean jealousy. Along the Mohawk valley the dismay was extreme, and the militia could not be got out at all. Jay was so angered by the abject terror in this quarter that he advised leaving the inhabitants to shift for themselves; sound advice, too, for when the pinch came and they were absolutely forced to take arms, they did very fairly at Oriskany. It was even feared that the settlers of the region which afterwards became Vermont would go over to the enemy; still, time and space were in our favor, and Morris was quite right when he said in his first letter (dated July 16, 1777): "Upon the whole I think we shall do very well, but this opinion is founded merely upon the barriers which nature has

raised against all access from the northward." As he said of himself, he was "a good guesser."

He outlined the plan which he thought the Americans should follow. This was to harass the British in every way, without risking a stand-up fight, while laying waste the country through which they were to pass so as to render it impossible for an army to subsist on it. For the militia he had the most hearty contempt, writing: "Three hundred of the militia of Massachusetts Bay went off this morning, in spite of the opposition—we should have said, entreaties—of their officers. All the militia on the ground are so heartily tired, and so extremely desirous of getting home, that it is more than probable that none of them will remain here ten days longer. One half was discharged two days ago, to silence, if possible, their clamor; and the remainder, officers excepted, will soon discharge themselves."

The council of safety grew so nervous over the outlook that their letters became fairly querulous; and they not unnaturally asked Morris to include in his letters some paragraphs that could be given to the public. To this that rather quick-tempered gentleman took exceptions, and replied caustically in his next letter, the opening paragraph being: "We have received yours of the 19th, which has afforded us great pleasure, since we are enabled in some measure to collect from it our errand to the northward, one of the most important objects of our journey being, in the opinion of your honorable body, to write the news," and he closes by stating that he shall come back to wait upon them, and learn their pleasure, at once.

Meanwhile the repeated disasters in the north had occasioned much clamor against Schuyler, who, if not a brilliant general, had still done what he could in very trying circumstances, and was in no wise responsible for the various mishaps that had occurred. The New England members of Congress, always jealous of New York, took advantage of this to begin intriguing against him, under the lead of Roger Sherman and others, and finally brought about his replacement by Gates, a much inferior man, with no capacity whatever for command. Morris and Jay both took up Schuyler's cause very warmly, seeing clearly, in the first place, that the disasters were far from ruinous, and that a favorable outcome was probable; and, in the second place, that it was the people themselves who were to blame and not Schuyler. They went on to Philadelphia to speak for him, but they arrived just a day too late, Gates having been appointed twenty-four hours previous to their coming.

When Gates reached his army the luck had already begun to turn. Burgoyne's outlying parties had been destroyed, his Indians and Canadians had left him, he had been disappointed in his hopes of a Tory uprising in his favor, and, hampered by his baggage-train, he had been brought almost to a stand-still in the tangled wilds through which he had slowly ploughed his way. Schuyler had done what he could to hinder the foe's progress, and had kept his own army together as a rallying point for the militia, who, having gathered in their harvests, and being inspirited by the outcome of the fights at Oriskany and Bennington, flocked in by hundreds to the American standard. Gates himself did literally nothing; he rather hindered his men than otherwise; and the latter were turbulent and prone to disobey orders. But they were now in fine feather for fighting, and there were plenty of them. So Gates merely sat still, and the levy of backwoods farmers, all good individual fighters, and with some excellent brigade and regimental commanders, such as Arnold and Morgan, fairly mobbed to death the smaller number of dispirited and poorly led regulars against whom they were pitted. When the latter were at last fought out and forced to give in, Gates allowed them much better terms than he should have done; and the Continental Congress, to its shame, snatched at a technicality, under cover of which to break the faith plighted through its general, and to avoid fulfilling the conditions to which he had so foolishly agreed.

Morris and Jay, though unable to secure the retention of Schuyler, had, nevertheless, by their representations while at Philadelphia, prevailed on the authorities largely to reinforce the army which was about to be put under Gates. Morris was very angry at the intrigue by which the latter had been given the command; but what he was especially aiming at was the success of the cause, not the advancement of his friends. Once Gates was appointed he did all in his power to strengthen him, and, with his usual clear-sightedness, he predicted his ultimate success.

Schuyler was a man of high character and public spirit, and he behaved really nobly in the midst of his disappointment; his conduct throughout affording a very striking contrast to that of McClellan, under somewhat similar circumstances in the Civil War. Morris wrote him, sympathizing with him, and asking him to sink all personal feeling and devote his energies to the common weal of the country while out of power just as strenuously as he had done when in command. Schuyler responded that he

should continue to serve his country as zealously as before, and he made his words good; but Gates was jealous of the better man whose downfall he had been the instrument of accomplishing, and declined to profit by his help.

In a later letter to Schuyler, written September 18, 1777, Morris praised the latter very warmly for the way he had behaved, and commented roughly on Gates' littleness of spirit. He considered that with such a commander there was nothing to be hoped for from skillful management, and that Burgoyne would have to be simply tired out. Alluding to a rumor that the Indians were about to take up the hatchet for us, he wrote, in the humorous vein he adopted so often in dealing even with the most pressing matters: "If this be true, it would be infinitely better to wear away the enemy's army by a scrupulous and polite attention, than to violate the rules of decorum and the laws of hospitality by making an attack upon strangers in our own country!" He gave Schuyler the news of Washington's defeat at the battle of Brandywine, and foretold the probable loss of Philadelphia and a consequent winter campaign.

In ending he gave a thoroughly characteristic sketch of the occupations of himself and his colleagues. "The chief justice (Jay) is gone to fetch his wife. The chancellor (Livingston) is solacing himself with his wife, his farm, and his imagination. Our senate is doing, I know not what. In assembly we wrangle long to little purpose.... We have some principles of fermentation which must, if it be possible, evaporate before business is entered upon."

CHAPTER IV.

IN THE CONTINENTAL CONGRESS.

At the end of 1777, while still but twenty-five years old, Morris was elected to the Continental Congress, and took his seat in that body at Yorktown in the following January.

He was immediately appointed as one of a committee of five members to go to Washington's headquarters at Valley Forge and examine into the condition of the continental troops.

The dreadful suffering of the American army in this winter camp was such that its memory has literally eaten its way into the hearts of our people, and it comes before our minds with a vividness that dims the remembrance of any other disaster. Washington's gaunt, half-starved continentals, shoeless and ragged, shivered in their crazy huts, worn out by want and illness, and by the bitter cold; while the members of the Continental Congress not only failed to support them in the present, but even grudged them the poor gift of a promise of half-pay in the future. Some of the delegates, headed by Samuel Adams, were actually caballing against the great chief himself, the one hope of America. Meanwhile the States looked askance at each other, and each sunk into supine indifference when its own borders were for the moment left unthreatened by the foe. Throughout the Revolutionary War our people hardly once pulled with a will together; although almost every locality in turn, on some one occasion, varied its lethargy by a spasm of terrible energy. Yet, again, it must be remembered that we were never more to be dreaded than when our last hope seemed gone; and if the people were unwilling to show the wisdom and self-sacrifice that would have insured success, they were equally determined under no circumstances whatever to acknowledge final defeat.

To Jay, with whom he was always intimate, Morris wrote in strong terms from Valley Forge, painting things as they were, but without a shadow of doubt or distrust; for he by this time saw clearly enough that in American warfare the darkest hour was often followed close indeed by dawn. "The

skeleton of an army presents itself to our eyes in a naked, starving condition, out of health, out of spirits. But I have seen Fort George in 1777." The last sentence refers to what he saw of Schuyler's forces, when affairs in New York State were at the blackest, just before the tide began to turn against Burgoyne. He then went on to beseech Jay to exert himself to the utmost on the great question of taxation, the most vital of all. Morris himself was so good a financier that revolutionary financial economics drove him almost wild. The Continental Congress, of which he had just become a member, he did not esteem very highly, and dismissed it, as well as the currency, as having "both depreciated." The State of Pennsylvania, he remarked, was "sick unto death;" and added that "Sir William [the British general] would prove a most damnable physician."

Most wisely, in examining and reporting, he paid heed almost exclusively to Washington's recommendations, and the plan he and his colleagues produced was little more than an enlargement of the general's suggestions as to filling out the regiments, regulating rank, modeling the various departments, etc. In fact, Morris now devoted himself to securing the approval of Congress for Washington's various plans.

In urging one of the most important of these he encountered very determined opposition. Washington was particularly desirous of securing a permanent provision for the officers by the establishment of a system of half-pay, stating that without some such arrangement he saw no hope whatever for the salvation of the cause; for as things then were the officers were leaving day by day; and of those who went home on furlough to the Eastern and Southern States, many, instead of returning, went into some lucrative employment. This fact, by the way, while showing the difficulties with which Washington had to deal, and therefore his greatness, since he successfully dealt with them, at the same time puts the officers of the Revolution in no very favorable light as compared with their descendants at the time of the great rebellion; and the Continental Congress makes a still worse showing.

When Morris tried to push through a measure providing for half-pay for life he was fought, tooth and nail, by many of his colleagues, including, to their lasting discredit be it said, every delegate from New England. The folly of these ultra-democratic delegates almost passes belief. They seemed incapable of learning how the fight for liberty should be made. Their

leaders, like Samuel Adams and John Hancock, did admirable service in exciting the Americans to make the struggle; but once it was begun, their function ended, and from thence onward they hampered almost as much as they helped the patriot cause. New England, too, had passed through the period when its patriotic fervor was at white heat. It still remained as resolute as ever; and if the danger had been once more brought home to its very door-sill, then it would have risen again as it had risen before; but without the spur of an immediate necessity it moved but sluggishly.

The New Englanders were joined by the South Carolina delegates. Morris was backed by the members from New York, Virginia, and the other States, and he won the victory, but not without being obliged to accept amendments that took away some of the good of the measure. Half-pay was granted, but it was only to last for seven years after the close of the war; and the paltry bounty of eighty dollars was to be given to every soldier who served out his time to the end.

At the same period Morris was engaged on numerous other committees, dealing chiefly with the finances, or with the remedy of abuses that had crept into the administration of the army. In one of his reports he exposed thoroughly the frightful waste in the purchase and distribution of supplies, and, what was much worse, the accompanying frauds. These frauds had become a most serious evil; Jay, in one of his letters to Morris, had already urgently requested him to turn his attention especially to stopping the officers, in particular those of the staff, from themselves engaging in trade, on account of the jobbing and swindling that it produced. The shoddy contractors of the Civil War had plenty of predecessors in the Revolution.

When these events occurred, in the spring of 1778, it was already three years after the fight at Lexington; certainly, the continental armies of that time do not compare favorably, even taking all difficulties into account, with the Confederate forces which, in 1864, three years after the fall of Sumter, fronted Grant and Sherman. The men of the Revolution failed to show the capacity to organize for fighting purposes, and the ability to bend all energies towards the attainment of a given end, which their great-grandsons of the Civil War, both at the North and the South, possessed. Yet, after all, their very follies sprang from their virtues, from their inborn love of freedom, and their impatience of the control of outsiders. So fierce had they been in their opposition to the rule of foreigners that they were now

hardly willing to submit to being ruled by themselves; they had seen power so abused that they feared its very use; they were anxious to assert their independence of all mankind, even of each other. Stubborn, honest, and fearless, they were taught with difficulty, and only by the grinding logic of an imperious necessity, that it was no surrender of their freedom to submit to rulers chosen by themselves, through whom alone that freedom could be won. They had not yet learned that right could be enforced only by might, that union was to the full as important as liberty, because it was the prerequisite condition for the establishment and preservation of liberty.

But if the Americans of the Revolution were not perfect, how their faults dwindle when we stand them side by side with their European compeers! What European nation then brought forth rulers as wise and pure as our statesmen, or masses as free and self-respecting as our people? There was far more swindling, jobbing, cheating, and stealing in the English army than in ours; the British king and his ministers need no criticism; and the outcome of the war proves that their nation as a whole was less resolute than our own. As for the other European powers, the faults of our leaders sink out of sight when matched against the ferocious frivolity of the French noblesse, or the ignoble, sordid, bloody baseness of those swinish German kinglets who let out their subjects to do hired murder, and batten on the blood and sweat of the wretched beings under them, until the whirlwind of the French Revolution swept their carcasses from off the world they cumbered.

We must needs give all honor to the men who founded our Commonwealth; only in so doing let us remember that they brought into being a government under which their children were to grow better and not worse.

Washington at once recognized in Morris a man whom he could trust in every way, and on whose help he could rely in other matters besides getting his officers half-pay. The young New Yorker was one of the great Virginian's warmest supporters in Congress, and took the lead in championing his cause at every turn. He was the leader in putting down intrigues like that of the French-Irish adventurer Conway, his ready tongue

and knowledge of parliamentary tactics, no less than his ability, rendering him the especial dread and dislike of the anti-Washington faction.

Washington wrote to Morris very freely, and in one of his letters complained of the conduct of some of the officers who wished to resign when affairs looked dark and to be reinstated as soon as they brightened a little. Morris replied with one of his bright caustic letters, sparing his associates very little, their pompous tediousness and hesitation being peculiarly galling to a man so far-seeing and so prompt to make up his mind. He wrote: "We are going on with the regimental arrangements as fast as possible, and I think the day begins to appear with respect to that business. Had our Saviour addressed a chapter to the rulers of mankind, as he did many to the subjects, I am persuaded his good sense would have dictated this text: *Be not wise overmuch*. Had the several members who compose our multifarious body been only wise *enough*, our business would long since have been completed. But our superior abilities, or the desire of appearing to possess them, lead us to such exquisite tediousness of debate that the most precious moments pass unheeded away.... As to what you mention of the extraordinary demeanor of some gentlemen, I cannot but agree with you that such conduct is not the most *honorable*. But, on the other hand, you must allow that it is the most *safe* and certainly you are not to learn that, however ignorant of that happy art in your own person, the bulk of us bipeds know well how to balance solid pudding against empty praise. There are other things, my dear sir, beside virtue, which are their own *reward*."

Washington chose Morris as his confidential friend and agent to bring privately before Congress a matter in reference to which he did not consider it politic to write publicly. He was at that time annoyed beyond measure by the shoals of foreign officers who were seeking employment in the army, and he wished Congress to stop giving them admission to the service. These foreign officers were sometimes honorable men, but more often adventurers; with two or three striking exceptions they failed to do as well as officers of native birth; and, as later in the Civil War, so in the Revolution, it appeared that Americans could be best commanded by Americans. Washington had the greatest dislike for these adventurers, stigmatizing them as "men who in the first instance tell you that they wish for nothing more than the honor of serving in so glorious a cause as

volunteers, the next day solicit rank without pay, the day following want money advanced to them, and in the course of a week want further promotion, and are not satisfied with anything you can do for them." He ended by writing: "I do most devoutly wish that we had not a single foreigner among us, except the Marquis de Lafayette, who acts upon very different principles from those which govern the rest." To Lafayette, indeed, America owes as much as to any of her own children, for his devotion to us was as disinterested and sincere as it was effective; and it is a pleasant thing to remember that we, in our turn, not only repaid him materially, but, what he valued far more, that our whole people yielded him all his life long the most loving homage a man could receive. No man ever kept pleasanter relations with a people he had helped than Lafayette did with us.

Morris replied to Washington that he would do all in his power to aid him. Meanwhile he had also contracted a very warm friendship for Greene, then newly appointed quartermaster general of the army, and proved a most useful ally, both in and out of Congress, in helping the general to get his department in good running order, and in extricating it from the frightful confusion in which it had previously been plunged.

He also specially devoted himself at this time to an investigation of the finances, which were in a dreadful condition; and by the ability with which he performed his very varied duties he acquired such prominence that he was given the chairmanship of the most important of all the congressional committees. This was the committee to which was confided the task of conferring with the British commissioners, who had been sent over, in the spring of 1778, to treat with the Americans, in accordance with the terms of what were known as Lord North's conciliatory bills. These bills were two in number, the first giving up the right of taxation, about which the quarrel had originally arisen, and the second authorizing the commissioners to treat with the revolted colonies on all questions in dispute. They were introduced in Parliament on account of the little headway made by the British in subduing their former subjects, and were pressed hastily through because of the fear of an American alliance with France, which was then, indeed, almost concluded.

Three years before, these bills would have achieved their end; but now they came by just that much time too late. The embittered warfare had lasted long enough entirely to destroy the old friendly feelings; and the Americans

having once tasted the "perilous pleasure" of freedom, having once stretched out their arms and stood before the world's eyes as their own masters, it was certain that they would never forego their liberty, no matter with what danger it was fraught, no matter how light the yoke, or how kindly the bondage, by which it was to be replaced.

Two days after the bills were received, Morris drew up and presented his report, which was unanimously adopted by Congress. Its tenor can be gathered from its summing up, which declared that the indispensable preliminaries to any treaty would have to be the withdrawal of all the British fleets and armies, and the acknowledgment of the independence of the United States; and it closed by calling on the several States to furnish without delay their quotas of troops for the coming campaign.

This decisive stand was taken when America was still without allies in the contest; but ten days afterwards messengers came to Congress, bearing copies of the treaty with France. It was ratified forthwith, and again Morris was appointed chairman of a committee, this time to issue an address on the subject to the American people at large. He penned this address himself, explaining fully the character of the crisis, and going briefly over the events that had led to it; and shortly afterwards he drew up, on behalf of Congress, a sketch of all the proceedings in reference to the British commissioners, under the title of "Observations on the American Revolution," giving therein a masterly outline not only of the doings of Congress in the particular matter under consideration, but also an account of the causes of the war, of the efforts of the Americans to maintain peace, and of the chief events that had taken place, as well as a comparison between the contrasting motives and aims of the contestants.

Morris was one of the committee appointed to receive the French minister, M. Gerard. Immediately afterwards he was also selected by Congress to draft the instructions which were to be sent to Franklin, the American minister at the court of Versailles. As a token of the closeness of our relations with France, he was requested to show these instructions to M. Gerard, which he accordingly did; and some interesting features of the conversation between the two men have been preserved for us in the despatches of Gerard to the French court. The Americans were always anxious to undertake the conquest of Canada, although Washington did not believe the scheme feasible; and the French strongly, although secretly,

opposed it, as it was their policy from the beginning that Canada should remain English. Naturally the French did not wish to see America transformed into a conquering power, a menace to themselves and to the Spaniards as well as to the English; nor can they be criticised for feeling in this way, or taunted with acting only from motives of self-interest. It is doubtless true that their purposes in going into the war were mixed; they unquestionably wished to benefit themselves, and to hurt their old and successful rival; but it is equally unquestionable that they were also moved by a generous spirit of sympathy and admiration for the struggling colonists. It would, however, have been folly to let this sympathy blind them to the consequences that might ensue to all Europeans having possessions in America, if the Americans should become not only independent, but also aggressive; and it was too much to expect them to be so far-sighted as to see that, once independent, it was against the very nature of things that the Americans should *not* be aggressive, and impossible that they should be aught but powerful and positive instruments, both in their own persons and by their example, in freeing the whole western continent from European control.

Accordingly M. Gerard endeavored, though without success, to prevail on Morris not to mention the question of an invasion of Canada in the instructions to Franklin. He also warned the American of the danger of alarming Spain by manifesting a wish to encroach on its territory in the Mississippi valley, mentioning and condemning the attitude taken by several members of Congress to the effect that the navigation of the Mississippi should belong equally to the English and Americans.

Morris's reply showed how little even the most intelligent American of that time—especially if he came from the Northern or Eastern States—could appreciate the destiny of his country. He stated that his colleagues favored restricting the growth of our country to the south and west, and believed that the navigation of the Mississippi, from the Ohio down, should belong exclusively to the Spaniards, as otherwise the western settlements springing up in the valley of the Ohio, and on the shores of the Great Lakes, would not only domineer over Spain, but also over the United States, and would certainly render themselves independent in the end. He further said that some at least of those who were anxious to secure the navigation of the Mississippi, were so from interested motives, having money ventures in the

establishments along the river. However, if he at this time failed fully to grasp his country's future, he was later on one of the first in the Northern States to recognize it; and once he did see it he promptly changed, and became the strongest advocate of our territorial expansion.

Accompanying his instructions to Franklin, Morris sent a pamphlet entitled "Observations on the Finances of America," to be laid before the French ministry. Practically, all that the pamphlet amounted to was a most urgent begging letter, showing that our own people could not, or would not, either pay taxes, or take up a domestic loan, so that we stood in dire need of a subsidy from abroad. The drawing up of such a document could hardly have been satisfactory employment for a high spirited man who wished to be proud of his country.

All through our negotiations with France and England Morris's views coincided with those of Washington, Hamilton, Jay, and the others who afterwards became leaders of the Federalist party. Their opinions were well expressed by Jay in a letter to Morris written about this time, which ran: "I view a return to the domination of Britain with horror, and would risk all for independence; but that point ceded, ... the destruction of Old England would hurt me; I wish it well; it afforded my ancestors an asylum from persecution." The rabid American adherents of France could not understand such sentiments, and the more mean spirited among them always tried to injure Morris on account of his loyalist relatives, although so many families were divided in this same way, Franklin's only son being himself a prominent Tory. So bitter was this feeling that when, later on, Morris's mother, who was within the British lines, became very ill, he actually had to give up his intended visit to her, because of the furious clamor that was raised against it. He refers bitterly, in one of his letters to Jay, to the "malevolence of individuals," as something he had to expect, but which he announced that he would conquer by so living as to command the respect of those whose respect was worth having.

When, however, his foes were of sufficient importance to warrant his paying attention to them individually, Morris proved abundantly able to take care of himself, and to deal heavier blows than he received. This was shown in the controversy which convulsed Congress over the conduct of Silas Deane, the original American envoy to France. Deane did not behave very well, but at first he was certainly much more sinned against than

sinning, and Morris took up his cause warmly. Thomas Paine, the famous author of "Common Sense," who was secretary of the Committee of Foreign Affairs, attacked Deane and his defenders, as well as the court of France, with peculiar venom, using as weapons the secrets he became acquainted with through his official position, and which he was in honor bound not to divulge. For this Morris had him removed from his secretaryship, and in the debate handled him extremely roughly, characterizing him with contemptuous severity as "a mere adventurer from England ... ignorant even of grammar," and ridiculing his pretensions to importance. Paine was an adept in the art of invective; but he came out second best in this encounter, and never forgot or forgave his antagonist.

As a rule, however, Morris was kept too busily at work to spare time for altercations. He was chairman of three important standing committees, those on the commissary, quartermaster's, and medical departments, and did the whole business for each. He also had more than his share of special committee work, besides playing his full part in the debates and consultations of the Congress itself. Moreover, his salary was so small that he had to eke it out by the occasional practice of his profession. He devoted himself especially to the consideration of our finances and of our foreign relations; and, as he grew constantly to possess more and more weight and influence in Congress, he was appointed, early in 1779, as chairman of a very important committee, which was to receive communications from our ministers abroad, as well as from the French envoy. He drew out its report, together with the draft of instructions to our foreign ministers, which it recommended. Congress accepted the first, and adopted the last, without change, whereby it became the basis of the treaty by which we finally won peace. In his draft he had been careful not to bind down our representatives on minor points, and to leave them as large liberty of action as was possible; but the main issues, such as the boundaries, the navigation of the Mississippi, and the fisheries, were discussed at length and in order.

At the time this draft of instructions for a treaty was sent out there was much demand among certain members in Congress that we should do all in our power to make foreign alliances, and to procure recognitions of our independence in every possible quarter. To this Morris was heartily opposed, deeming that this "rage for treaties," as he called it, was not very dignified on our part. He held rightly that our true course was to go our own

gait, without seeking outside favor, until we had shown ourselves able to keep our own place among nations, when the recognitions would come without asking. Whether European nations recognized us as a free people, or not, was of little moment so long as we ourselves knew that we had become one in law and in fact, through the right of battle and the final arbitrament of the sword.

Besides these questions of national policy, Morris also had to deal with an irritating matter affecting mainly New York. This was the dispute of that state with the people of Vermont, who wished to form a separate commonwealth of their own, while New York claimed that their lands came within its borders. Even the fear of their common foe, the British, against whom they needed to employ their utmost strength, was barely sufficient to prevent the two communities from indulging in a small civil war of their own; and they persisted in pressing their rival claims upon the attention of Congress, and clamoring for a decision from that harassed and overburdened body. Clinton, who was much more of a politician than a statesman, led the popular party in this foolish business, the majority of the New Yorkers being apparently nearly as enthusiastic in asserting their sovereignty over Vermont as they were in declaring their independence of Britain. Morris, however, was very half-hearted in pushing the affair before Congress. He doubted if Congress had the power, and he knew it lacked the will, to move in the matter at all; and besides he did not sympathize with the position taken by his State. He was wise enough to see that the Vermonters had much of the right on their side in addition to the great fact of possession; and that New York would be probably unable to employ force enough to conquer them. Clinton was a true type of the separatist or states-rights politician of that day: he cared little how the national weal was affected by the quarrel; and he was far more anxious to bluster than to fight over the matter, to which end he kept besieging the delegates in Congress with useless petitions. In a letter to him Morris put the case with his usual plainness, telling him that it was perfectly idle to keep worrying Congress to take action, for it would certainly not do so, and if it did render a decision, the Vermonters would no more respect it than they would the Pope's Bull. He went on to show his characteristic contempt for half-measures, and capacity for striking straight at the root of things: "Either let these people alone, or conquer them. I prefer the latter; but I doubt the means. If we have the means let them be used, and let Congress deliberate

and decide, or deliberate without deciding,—it is of no consequence. Success will sanctify every operation.... If we have not the means of conquering these people we must let them alone. We must continue our impotent threats, or we must make a treaty.... If we continue our threats they will either hate or despise us, and perhaps both.... On the whole, then, my conclusion is here, as on most other human affairs, act decisively, fight or submit—conquer or treat." Morris was right; the treaty was finally made, and Vermont became an independent State.

But the small politicians of New York would not forgive him for the wisdom and the broad feeling of nationality he showed on this and so many other questions; and they defeated him when he was a candidate for reelection to Congress at the end of 1779. The charge they urged against him was that he devoted his time wholly to the service of the nation at large, and not to that of New York in particular; his very devotion to the public business, which had kept him from returning to the State, being brought forward to harm him. Arguments of this kind are common enough even at the present day, and effective too, among that numerous class of men with narrow minds and selfish hearts. Many an able and upright Congressman since Morris has been sacrificed because his constituents found he was fitted to do the exact work needed; because he showed himself capable of serving the whole nation, and did not devote his time to advancing the interests of only a portion thereof.

CHAPTER V.

FINANCES: THE TREATY OF PEACE.

At the end of 1779 Morris was thus retired to private life; and, having by this time made many friends in Philadelphia, he took up his abode in that city. His leaving Congress was small loss to himself, as that body was rapidly sinking into a condition of windy decrepitude.

He at once began working at his profession, and also threw himself with eager zest into every attainable form of gayety and amusement, for he was of a most pleasure-loving temperament, very fond of society, and a great favorite in the little American world of wit and fashion. But although in private life, he nevertheless kept his grip on public affairs, and devoted himself to the finances, which were in a most wretched state. He could not keep out of public life; he probably agreed with Jay, who, on hearing that he was again a private citizen, wrote him to "remember that Achilles made no figure at the spinning-wheel." At any rate, as early as February, 1780, he came to the front once more as the author of a series of essays on the finances. They were published in Philadelphia, and attracted the attention of all thinking men by their soundness. In fact it was in our monetary affairs that the key to the situation was to be found; for, had we been willing to pay honestly and promptly the necessary war expenses, we should have ended the struggle in short order. But the niggardliness as well as the real poverty, of the people, the jealousies of the states, kept aflame by the states-rights leaders for their own selfish purposes, and the foolish ideas of most of the congressional delegates on all money matters, combined to keep our treasury in a pitiable condition.

Morris tried to show the people at large the advantage of submitting to reasonable taxation, while at the same time combating some of the theories entertained as well by themselves as by their congressional representatives. He began by discussing with great clearness what money really is, how far coin can be replaced by paper, the interdependence of money and credit, and other elementary points in reference to which most of his fellow-

citizens seemed to possess wonderfully mixed ideas. He attacked the efforts of Congress to make their currency legal tender; and then showed the utter futility of one of the pet schemes of revolutionary financial wisdom, the regulation of prices by law. Hard times, then as now, always produced not only a large debtor class, but also a corresponding number of political demagogues who truckled to it; and both demagogue and debtor, when they clamored for laws which should "relieve" the latter, meant thereby laws which would enable him to swindle his creditor. The people, moreover, liked to lay the blame for their misfortunes neither on fate nor on themselves, but on some unfortunate outsider; and they were especially apt to attack as "monopolists" the men who had purchased necessary supplies in large quantities to profit by their rise in price. Accordingly they passed laws against them; and Morris showed in his essays the unwisdom of such legislation, while not defending for a moment the men who looked on the misfortunes of their country solely as offering a field for their own harvesting.

He ended by drawing out an excellent scheme of taxation; but, unfortunately, the people were too short-sighted to submit to any measure of the sort, no matter how wise and necessary. One of the pleas he made for his scheme was, that something of the sort would be absolutely necessary for the preservation of the Federal Union, "which," he wrote, "in my poor opinion, will greatly depend upon the management of the revenue." He showed with his usual clearness the need of obtaining, for financial as well as for all other reasons, a firmer union, as the existing confederation bade fair to become, as its enemies had prophesied, a rope of sand. He also foretold graphically the misery that would ensue—and that actually did ensue—when the pressure from a foreign foe should cease, and the states should be resolved into a disorderly league of petty, squabbling communities. In ending he remarked bitterly: "The articles of confederation were formed when the attachment to Congress was warm and great. The framers of them, therefore, seem to have been only solicitous how to provide against the power of that body, which, by means of their foresight and care, now exists by mere courtesy and sufferance."

Although Morris was not able to convert Congress to the ways of sound thinking, his ability and clearness impressed themselves on all the best men; notably on Robert Morris,—who was no relation of his, by the way,—the

first in the line of American statesmen who have been great in finance; a man whose services to our treasury stand on a par, if not with those of Hamilton, at least with those of Gallatin and John Sherman. Congress had just established four departments, with secretaries at the head of each. The two most important were the Departments of Foreign Affairs and of Finance. Livingstone was given the former, while Robert Morris received the latter; and immediately afterwards appointed Gouverneur Morris as Assistant Financier, at a salary of eighteen hundred and fifty dollars a year.

Morris accepted this appointment, and remained in office for three years and a half, until the beginning of 1785. He threw himself heart and soul into the work, helping his chief in every way; and in particular giving him invaluable assistance in the establishment of the "Bank of North America," which Congress was persuaded to incorporate,—an institution which was the first of its kind in the country. It was of wonderful effect in restoring the public credit, and was absolutely invaluable in the financial operations undertaken by the secretary.

When, early in 1782, the secretary was directed by Congress, to present to that body a report on the foreign coins circulating in the country, it was prepared and sent in by Gouverneur Morris, and he accompanied it with a plan for an American coinage. The postscript was the really important part of the document, and the plan therein set forth was made the basis of our present coinage system, although not until several years later, and then only with important modifications, suggested, for the most part, by Jefferson.

Although his plan was modified, it still remains true that Gouverneur Morris was the founder of our national coinage. He introduced the system of decimal notation, invented the word "cent" to express one of the smaller coins, and nationalized the already familiar word "dollar." His plan, however, was a little too abstruse for the common mind, the unit being made so small that a large sum would have had to be expressed in a very great number of figures, and there being five or six different kinds of new coins, some of them not simple multiples of each other. Afterwards he proposed as a modification a system of pounds, or dollars, and doits, the doit answering to our present mill, while providing also an ingenious arrangement by which the money of account was to differ from the money of coinage. Jefferson changed the system by grafting on it the dollar as a unit, and simplifying it; and Hamilton perfected it further.

To understand the advantage, as well as the boldness, of Morris's scheme, we must keep in mind the horrible condition of our currency at that time. We had no proper coins of our own; nothing but hopelessly depreciated paper bills, a mass of copper, and some clipped and counterfeited gold and silver coin from the mints of England, France, Spain, and even Germany. Dollars, pounds, shillings, doubloons, ducats, moidores, joes, crowns, pistareens, coppers, and sous, circulated indifferently, and with various values in each colony. A dollar was worth six shillings in Massachusetts, eight in New York, seven and sixpence in Pennsylvania, six again in Virginia, eight again in North Carolina, thirty-two and a half in South Carolina, and five in Georgia. The government itself had to resort to clipping in one of its most desperate straits; and at last people would only take payment by weight of gold or silver.

Morris, in his report, dwelt especially on three points: first, that the new money should be easily intelligible to the multitude, and should, therefore, bear a close relation to the coins already existing, as otherwise its sudden introduction would bring business to a stand-still; and would excite distrust and suspicion everywhere, particularly among the poorest and most ignorant, the day-laborers, the farm servants, and the hired help. Second, that its lowest divisible sum, or unit, should be very small, so that the price and the value of little things could be made proportionate; and third, that as far as possible the money should increase in decimal ratio. The Spanish dollar was the coin most widely circulated, while retaining everywhere about the same value. Accordingly he took this, and then sought for a unit that would go evenly into it, as well as into the various shillings, disregarding the hopelessly aberrant shilling of South Carolina. Such a unit was a quarter of a grain of pure silver, equal to the one fourteen hundred and fortieth part of a dollar; it was not, of course, necessary to have it exactly represented in coin. On the contrary, he proposed to strike two copper pieces, respectively of five and eight units, to be known as *fives* and *eights*. Two *eights* would then make a penny in Pennsylvania, and three *eights* one in Georgia, while three *fives* would make one in New York, and four would make one in Massachusetts. Morris's great aim was, while establishing uniform coins for the entire Union, to get rid of the fractional remainders in translating the old currencies into the new; and in addition his reckoning adapted itself to the different systems in the different states, as well as to the different coins in use. But he introduced an entirely new

system of coinage, and moreover used therein the names of several old coins while giving them new values. His originally proposed table of currency was as follows:—

One crown = ten dollars, or	10,000	units.
One dollar = ten bills, or	1,000	"
One bill = ten pence, or	100	"
One penny = ten quarters, or	10	"
One quarter =	1	"

But he proposed that for convenience other coins should be struck, like the copper *five* and *eight* above spoken of, and he afterwards altered his names. He then called the bill of one hundred units a *cent*, making it consist of twenty-five grains of silver and two of copper, being thus the lowest silver coin. Five *cents* were to make a *quint*, and ten a *mark*.

Congress, according to its custom, received the report, applauded it, and did nothing in the matter. Shortly afterwards, however, Jefferson took it up, when the whole subject was referred to a committee of which he was a member. He highly approved of Morris's plan, and took from it the idea of a decimal system, and the use of the words "dollar" and "cent." But he considered Morris's unit too small, and preferred to take as his own the Spanish dollar, which was already known to all the people, its value being uniform and well understood. Then, by keeping strictly to the decimal system, and dividing the dollar into one hundred parts, he got cents for our fractional currency. He thus introduced a simpler system than that of Morris, with an existing and well-understood unit, instead of an imaginary one that would have to be, for the first time, brought to the knowledge of the people, and which might be adopted only with reluctance. On the other hand, Jefferson's system failed entirely to provide for the extension of the old currencies in the terms of the new without the use of fractions. On this account Morris vehemently opposed it, but it was nevertheless adopted. He foretold, what actually came to pass, that the people would be very reluctant to throw away their local moneys in order to take up a general money which bore no special relation to them. For half a century afterwards the people clung to their absurd shillings and sixpences, the government itself, in its post-office transactions, being obliged to recognize the obsolete terms in vogue in certain localities. Some curious pieces circulated freely up to the time of the Civil War. Still, Jefferson's plan worked admirably in the end.

All the time he was working so hard at the finances, Morris nevertheless continued to enjoy himself to the full in the society of Philadelphia.

Imperious, light-hearted, good-looking, well-dressed, he ranked as a wit among men, as a beau among women. He was equally sought for dances and dinners. He was a fine scholar and a polished gentleman; a capital story-teller; and had just a touch of erratic levity that served to render him still more charming. Occasionally he showed whimsical peculiarities, usually about very small things, that brought him into trouble; and one such freak cost him a serious injury. In his capacity of young man of fashion, he used to drive about town in a phaeton with a pair of small, spirited horses; and because of some whim, he would not allow the groom to stand at their heads. So one day they took fright, ran, threw him out, and broke his leg. The leg had to be amputated, and he was ever afterwards forced to wear a wooden one. However, he took his loss with most philosophic cheerfulness, and even bore with equanimity the condolences of those exasperating individuals, of a species by no means peculiar to revolutionary times, who endeavored to prove to him the manifest falsehood that such an accident was "all for the best." To one of these dreary gentlemen he responded, with disconcerting vivacity, that his visitor had so handsomely argued the advantage of being entirely legless as to make him almost tempted to part with his remaining limb; and to another he announced that at least there was the compensation that he would be a *steadier* man with one leg than with two. Wild accounts of the accident got about, which rather irritated him, and in answer to a letter from Jay he wrote: "I suppose it was Deane who wrote to you from France about the loss of my leg. His account is facetious. Let it pass. The leg is gone, and there is an end of the matter." His being crippled did not prevent him from going about in society very nearly as much as ever; and society in Philadelphia was at the moment gayer than in any other American city. Indeed Jay, a man of Puritanic morality, wrote to Morris somewhat gloomily to inquire about "the rapid progress of luxury at Philadelphia;" to which his younger friend, who highly appreciated the good things of life, replied light-heartedly: "With respect to our taste for luxury, do not grieve about it. Luxury is not so bad a thing as it is often supposed to be; and if it were, still we must follow the course of things, and turn to advantage what exists, since we have not the power to annihilate or create. The very definition of 'luxury' is as difficult as the suppression of it." In another letter he remarked that he thought there were quite as many knaves among the men who went on foot as there were among those who drove in carriages.

Jay at this time, having been successively a member of the Continental Congress, the New York Legislature, and the State Constitutional Convention, having also been the first chief justice of his native state, and then president of the Continental Congress, had been sent as our minister to Spain. Morris always kept up an intimate correspondence with him. It is noticeable that the three great revolutionary statesmen from New York, Hamilton, Jay, and Morris, always kept on good terms, and always worked together; while the friendship between two, Jay and Morris, was very close.

The two men, in their correspondence, now and then touched on other than state matters. One of Jay's letters which deals with the education of his children would be most healthful reading for those Americans of the present day who send their children to be brought up abroad in Swiss schools, or English and German universities. He writes: "I think the youth of every free, civilized country should be educated in it, and not permitted to travel out of it until age has made them so cool and firm as to retain their national and moral impressions. American youth may possibly form proper and perhaps useful friendships in European seminaries, but I think not so *probably* as among their fellow-citizens, with whom they are to grow up, whom it will be useful for them to know and be early known to, and with whom they are to be engaged in the business of active life.... I do not hesitate to prefer an American education." The longer Jay stayed away, the more devoted he became to America. He had a good, hearty, honest contempt for the miserable "cosmopolitanism" so much affected by the feeblers of fashion. As he said he "could never become so far a citizen of the world as to view every part of it with equal regard," for "his affections were deep-rooted in America," and he always asserted that he had never seen anything in Europe to cause him to abate his prejudices in favor of his own land.

Jay had a very hard time at the Spanish court, which, he wrote Morris, had "little money, less wisdom, and no credit." Spain, although fighting England, was bitterly jealous of the United States, fearing most justly our aggressive spirit, and desiring to keep the lower Mississippi valley entirely under its own control. Jay, a statesman of intensely national spirit, was determined to push our boundaries as far westward as possible; he insisted on their reaching to the Mississippi, and on our having the right to navigate that stream. Morris did not agree with him, and on this subject, as has been

already said, he for once showed less than his usual power of insight into the future. He wrote Jay that it was absurd to quarrel about a country inhabited only by red men, and to claim "a territory we cannot occupy, a navigation we cannot enjoy." He also ventured the curiously false prediction that, if the territory beyond the Alleghanies should ever be filled up, it would be by a population drawn from the whole world, not one hundredth part of it American, which would immediately become an independent and rival nation. However, he could not make Jay swerve a handbreadth from his position about our western boundaries; though on every other point the two were in hearty accord.

In relating and forecasting the military situation, Morris was more happy. He was peculiarly interested in Greene, and from the outset foretold the final success of his Southern campaign. In a letter written March 31, 1781, after the receipt of the news of the battle of Guilford Court-house, he describes to Jay Greene's forces and prospects. His troops included, he writes, "from 1,500 to 2,000 continentals, many of them raw, and somewhat more of militia than regular troops,—the whole of these almost in a state of nature, and of whom it ought to be said, as by Hamlet to Horatio, 'Thou hast no other revenue but thy good spirits to feed and clothe thee.'" The militia he styled the "*fruges consumere nati* of an army." He then showed the necessity of the battle being fought, on account of the fluctuating state of the militia, the incapacity of the state governments to help themselves, the poverty of the country ("so that the very teeth of the enemy defend them, especially in retreat,"), and above all, because a defeat was of little consequence to us, while it would ruin the enemy. He wrote: "There is no loss in fighting away two or three hundred men who would go home if they were not put in the way of being knocked on the head.... These are unfeeling reflections. I would apologize for them to any one who did not know that I have at least enough of sensibility. The gush of sentiment will not alter the nature of things, and the business of the statesman is more to reason than to feel." Morris was always confident that we should win in the end, and sometimes thought a little punishment really did our people good. When Cornwallis was in Virginia he wrote: "The enemy are scourging the Virginians, at least those of Lower Virginia. This is distressing, but will have some good consequences. In the mean time the delegates of Virginia make as many lamentations as ever Jeremiah did, and to as good purpose perhaps."

The war was drawing to an end. Great Britain had begun the struggle with everything—allies, numbers, wealth—in her favor; but now, towards the close, the odds were all the other way. The French were struggling with her on equal terms for the mastery of the seas; the Spaniards were helping the French, and were bending every energy to carry through successfully the great siege of Gibraltar; the Dutch had joined their ancient enemies, and their fleet fought a battle with the English, which, for bloody indecisiveness, rivaled the actions when Van Tromp and De Ruyter held the Channel against Blake and Monk. In India the name of Hyder Ali had become a very nightmare of horror to the British. In America, the centre of the war, the day had gone conclusively against the Island folk. Greene had doggedly fought and marched his way through the Southern States with his ragged, under-fed, badly armed troops; he had been beaten in three obstinate battles, had each time inflicted a greater relative loss than he received, and, after retiring in good order a short distance, had always ended by pursuing his lately victorious foes; at the close of the campaign he had completely reconquered the Southern States by sheer capacity for standing punishment, and had cooped up the remaining British force in Charleston. In the Northern States the British held Newport and New York, but could not penetrate elsewhere; while at Yorktown their ablest general was obliged to surrender his whole army to the overwhelming force brought against him by Washington's masterly strategy.

Yet England, hemmed in by the ring of her foes, fronted them all with a grand courage. In her veins the Berserker blood was up, and she hailed each new enemy with grim delight, exerting to the full her warlike strength. Single-handed she kept them all at bay, and repaid with crippling blows the injuries they had done her. In America alone the tide ran too strongly to be turned. But Holland was stripped of all her colonies; in the East, Sir Eyre Coote beat down Hyder Ali, and taught Moslem and Hindoo alike that they could not shake off the grasp of the iron hands that held India. Rodney won back for his country the supremacy of the ocean in that great sea-fight where he shattered the splendid French navy; and the long siege of Gibraltar closed with the crushing overthrow of the assailants. So, with bloody honor, England ended the most disastrous war she had ever waged.

The war had brought forth many hard fighters, but only one great commander,—Washington. For the rest, on land, Cornwallis, Greene,

Rawdon, and possibly Lafayette and Rochambeau, might all rank as fairly good generals, probably in the order named, although many excellent critics place Greene first. At sea Rodney and the Bailli de Suffren won the honors; the latter stands beside Duquesne and Tourville in the roll of French admirals; while Rodney was a true latter-day buccaneer, as fond of fighting as of plundering, and a first-rate hand at both. Neither ranks with such mighty sea-chiefs as Nelson, nor yet with Blake, Farragut, or Tegethof.

All parties were tired of the war; peace was essential to all. But of all, America was most resolute to win what she had fought for; and America had been the most successful so far. English historians—even so generally impartial a writer as Mr. Lecky—are apt greatly to exaggerate our relative exhaustion, and try to prove it by quoting from the American leaders every statement that shows despondency and suffering. If they applied the same rule to their own side, they would come to the conclusion that the British empire was at that time on the brink of dissolution. Of course we had suffered very heavily, and had blundered badly; but in both respects we were better off than our antagonists. Mr. Lecky is right in bestowing unstinted praise on our diplomatists for the hardihood and success with which they insisted on all our demands being granted; but he is wrong when he says or implies that the military situation did not warrant their attitude. Of all the contestants, America was the most willing to continue the fight rather than yield her rights. Morris expressed the general feeling when he wrote to Jay, on August 6, 1782: "Nobody will be thankful for any peace but a very good one. This *they* should have thought on who made war with the Republic. I am among the number who would be extremely ungrateful for the grant of a bad peace. My public and private character will both concert to render the sentiment coming from me unsuspected. Judge, then, of others, judge of the many-headed fool who can feel no more than his own sorrowing.... I wish that while the war lasts it may be real war, and that when peace comes it may be real peace." As to our military efficiency, we may take Washington's word (in a letter to Jay of October 18, 1782): "I am certain it will afford you pleasure to know that our army is better organized, disciplined, and clothed than it has been at any period since the commencement of the war. This you may be assured is the fact."

Another mistake of English historians—again likewise committed by Mr. Lecky—comes in their laying so much stress on the help rendered to the

Americans by their allies, while at the same time speaking as if England had none. As a matter of fact, England would have stood no chance at all had the contest been strictly confined to British troops on the one hand, and to the rebellious colonists on the other. There were more German auxiliaries in the British ranks than there were French allies in the American; the loyalists, including the regularly enlisted loyalists as well as the militia who took part in the various Tory uprisings, were probably more numerous still. The withdrawal of all Hessians, Tories, and Indians from the British army would have been cheaply purchased by the loss of our own foreign allies.

The European powers were even a shade more anxious for peace than we were; and to conduct the negotiations for our side, we chose three of our greatest statesmen,—Franklin, Adams, and Jay.

Congress, in appointing our commissioners, had, with little regard for the national dignity, given them instructions which, if obeyed, would have rendered them completely subservient to France; for they were directed to undertake nothing in the negotiations without the knowledge and concurrence of the French cabinet, and in all decisions to be ultimately governed by the advice of that body. Morris fiercely resented such servile subservience, and in a letter to Jay denounced Congress with well-justified warmth, writing: "That the proud should prostitute the very little dignity this poor country is possessed of would be indeed astounding, if we did not know the near alliance between pride and meanness. Men who have too little spirit to demand of their constituents that they do their duty, who have sufficient humility to beg a paltry pittance at the hands of any and every sovereign,—such men will always be ready to pay the price which vanity shall demand from the vain." Jay promptly persuaded his colleagues to unite with him in disregarding the instructions of Congress on this point; had he not done so, the dignity of our government would, as he wrote Morris, "have been in the dust." Franklin was at first desirous of yielding obedience to the command; but Adams immediately joined Jay in repudiating it.

We had waged war against Britain, with France and Spain as allies; but in making peace we had to strive for our rights against our friends almost as much as against our enemies. There was much generous and disinterested enthusiasm for America among Frenchmen individually; but the French government, with which alone we were to deal in making peace, had acted

throughout from purely selfish motives, and in reality did not care an atom for American rights. We owed France no more gratitude for taking our part than she owed us for giving her an opportunity of advancing her own interests, and striking a severe blow at an old-time enemy and rival. As for Spain, she disliked us quite as much as she did England.

The peace negotiations brought all this out very clearly. The great French minister Vergennes, who dictated the policy of his court all through the contest, cared nothing for the revolutionary colonists themselves; but he was bent upon securing them their independence, so as to weaken England, and he was also bent upon keeping them from gaining too much strength, so that they might always remain dependent allies of France. He wished to establish the "balance of power" system in America. The American commissioners he at first despised for their blunt, truthful straightforwardness, which he, trained in the school of deceit, and a thorough believer in every kind of finesse and double-dealing, mistook for boorishness; later on, he learned to his chagrin that they were able as well as honest, and that their resolution, skill, and far-sightedness made them, where their own deepest interests were concerned, over-matches for the subtle diplomats of Europe.

America, then, was determined to secure not only independence, but also a chance to grow into a great continental nation; she wished her boundaries fixed at the great lakes and the Mississippi; she also asked for the free navigation of the latter to the Gulf, and for a share in the fisheries. Spain did not even wish that we should be made independent; she hoped to be compensated at our expense, for her failure to take Gibraltar; and she desired that we should be kept so weak as to hinder us from being aggressive. Her fear of us, by the way, was perfectly justifiable, for the greatest part of our present territory lies within what were nominally Spanish limits a hundred years ago. France, as the head of a great coalition, wanted to keep on good terms with both her allies; but, as Gerard, the French minister at Washington, said: if France had to choose between the two, "the decision would not be in favor of the United States." She wished to secure for America independence, but she wished also to keep the new nation so weak that it would "feel the need of sureties, allies, and protectors." France desired to exclude our people from the fisheries, to deprive us of half our territories by making the Alleghanies our western

boundaries, and to secure to Spain the undisputed control of the navigation of the Mississippi. It was not to the interest of France and Spain that we should be a great and formidable people, and very naturally they would not help us to become one. There is no need of blaming them for their conduct; but it would have been rank folly to have been guided by their wishes. Our true policy was admirably summed up by Jay in his letters to Livingston, where he says: "Let us be honest and grateful to France, but let us think for ourselves.... Since we have assumed a place in the political firmament, let us move like a primary and not a secondary planet." Fortunately, England's own self-interest made her play into our hands; as Fox put it, it was necessary for her to "insist in the strongest manner that, if America is independent, she must be so of the whole world. No secret, tacit, or ostensible connection with France."

Our statesmen won; we got all we asked, as much to the astonishment of France as of England; we proved even more successful in diplomacy than in arms. As Fox had hoped, we became independent not only of England, but of all the world; we were not entangled as a dependent subordinate in the policy of France, nor did we sacrifice our western boundary to Spain. It was a great triumph; greater than any that had been won by our soldiers. Franklin had a comparatively small share in gaining it; the glory of carrying through successfully the most important treaty we ever negotiated belongs to Jay and Adams, and especially to Jay.

CHAPTER VI.

THE FORMATION OF THE NATIONAL CONSTITUTION.

Before peace was established, Morris had been appointed a commissioner to treat for the exchange of prisoners. Nothing came of his efforts, however, the British and Americans being utterly unable to come to any agreement. Both sides had been greatly exasperated,—the British by the Americans' breach of faith about Burgoyne's troops, and the Americans by the inhuman brutality with which their captive countrymen had been treated. An amusing feature of the affair was a conversation between Morris and the British general, Dalrymple, wherein the former assured the latter rather patronizingly that the British "still remained a great people, a very great people," and that "they would undoubtedly still hold their rank in Europe." He would have been surprised, had he known not only that the stubborn Island folk were destined soon to hold a higher rank in Europe than ever before, but that from their loins other nations, broad as continents, were to spring, so that the South Seas should become an English ocean, and that over a fourth of the world's surface there should be spoken the tongue of Pitt and Washington.

No sooner was peace declared, and the immediate and pressing danger removed, than the confederation relapsed into a loose knot of communities as quarrelsome as they were contemptible. The states-rights men for the moment had things all their own way, and speedily reduced us to the level afterwards reached by the South-American republics. Each commonwealth set up for itself, and tried to oppress its neighbors; not one had a creditable history for the next four years; while the career of Rhode Island in particular can only be properly described as infamous. We refused to pay our debts, we would not even pay our army; and mob violence flourished rankly. As a natural result the European powers began to take advantage of our weakness and division.

All our great men saw the absolute need of establishing a National Union—not a league or a confederation—if the country was to be saved. None felt

this more strongly than Morris; and no one was more hopeful of the final result. Jay had written to him as to the need of "raising and maintaining a national spirit in America;" and he wrote in reply, at different times:^[2] "Much of convulsion will ensue, yet it must terminate in giving to government that power without which government is but a name.... This country has never yet been known to Europe, and God knows whether it ever will be. To England it is less known than to any other part of Europe, because they constantly view it through a medium of either prejudice or faction. True it is that the general government wants energy, and equally true it is that the want will eventually be supplied. A national spirit is the natural result of national existence; *and although some of the present generation may feel the result of colonial oppositions of opinion, that generation will die away, and give place to a race of Americans.* On this occasion, as on others, Great Britain is our best friend; and, by seizing the critical moment when we were about to divide, she has shown us the dreadful consequences of division.... Indeed, my friend, nothing can do us so much good as to convince the Eastern and Southern States how necessary it is to give proper force to the federal government, and nothing will so soon operate that conviction as foreign efforts to restrain the navigation of the one and the commerce of the other." The last sentence referred to the laws aimed at our trade by Great Britain, and by other powers as well,—symptoms of outside hostility which made us at once begin to draw together again.

Money troubles grew apace, and produced the usual crop of crude theories and of vicious and dishonest legislation in accordance therewith. Lawless outbreaks became common, and in Massachusetts culminated in actual rebellion. The mass of the people were rendered hostile to any closer union by their ignorance, their jealousy, and the general particularistic bent of their minds,—this last being merely a vicious graft on, or rather outgrowth of, the love of freedom inborn in the race. Their leaders were enthusiasts of pure purpose and unsteady mental vision; they were followed by the mass of designing politicians, who feared that their importance would be lost if their sphere of action should be enlarged. Among these leaders the three most important were, in New York George Clinton, and in Massachusetts and Virginia two much greater men—Samuel Adams and Patrick Henry. All three had done excellent service at the beginning of the revolutionary troubles. Patrick Henry lived to redeem himself, almost in his last hour, by

the noble stand he took in aid of Washington against the democratic nullification agitation of Jefferson and Madison; but the usefulness of each of the other two was limited to the early portion of his career.

Like every other true patriot and statesman, Morris did all in his power to bring into one combination the varied interests favorable to the formation of a government that should be strong and responsible as well as free. The public creditors and the soldiers of the army—whose favorite toasts were: "A hoop to the barrel," and "Cement to the Union"—were the two classes most sensible of the advantages of such a government; and to each of these Morris addressed himself when he proposed to consolidate the public debt, both to private citizens and to the soldiers, and to make it a charge on the United States, and not on the several separate states.

In consequence of the activity and ability with which he advocated a firmer Union, the extreme states-rights men were especially hostile to him; and certain of their number assailed him with bitter malignity, both then and afterwards. One accusation was, that he had improper connections with the public creditors. This was a pure slander, absolutely without foundation, and not supported by even the pretence of proof. Another accusation was that he favored the establishment of a monarchy. This was likewise entirely untrue. Morris was not a sentimental political theorist; he was an eminently practical—that is, useful—statesman, who saw with unusual clearness that each people must have a government suited to its own individual character, and to the stage of political and social development it had reached. He realized that a nation must be governed according to the actual needs and capacities of its citizens, not according to any abstract theory or set of ideal principles. He would have dismissed with contemptuous laughter the ideas of those Americans who at the present day believe that Anglo-Saxon democracy can be applied successfully to a half-savage negroid people in Hayti, or of those Englishmen who consider seriously the proposition to renovate Turkey by giving her representative institutions and a parliamentary government. He understood and stated that a monarchy "did not consist with the taste and temper of the people" in America, and he believed in establishing a form of government that did. Like almost every other statesman of the day, the perverse obstinacy of the extreme particularist section at times made him downhearted, and caused him almost to despair of a good government being established; and like every sensible

man he would have preferred almost any strong, orderly government to the futile anarchy towards which the ultra states-rights men or separatists tended. Had these last ever finally obtained the upper hand, either in revolutionary or post-revolutionary times, either in 1787 or 1861, the fact would have shown conclusively that Americans were unfitted for republicanism and self-government. An orderly monarchy would certainly be preferable to a republic of the epileptic Spanish-American type. The extreme doctrinaires, who are fiercest in declaiming in favor of freedom are in reality its worst foes, far more dangerous than any absolute monarchy ever can be. When liberty becomes license, some form of one-man power is not far distant.

The one great reason for our having succeeded as no other people ever has, is to be found in that common sense which has enabled us to preserve the largest possible individual freedom on the one hand, while showing an equally remarkable capacity for combination on the other. We have committed plenty of faults, but we have seen and remedied them. Our very doctrinaires have usually acted much more practically than they have talked. Jefferson, when in power, adopted most of the Federalist theories, and became markedly hostile to the nullification movements at whose birth he had himself officiated. We have often blundered badly in the beginning, but we have always come out well in the end. The Dutch, when they warred for freedom from Spanish rule, showed as much short-sighted selfishness and bickering jealousy as even our own revolutionary ancestors, and only a part remained faithful to the end: as a result, but one section won independence, while the Netherlands were divided, and never grasped the power that should have been theirs. As for the Spanish-Americans, they split up hopelessly almost before they were free, and, though they bettered their condition a little, yet lost nine tenths of what they had gained. Scotland and Ireland, when independent, were nests of savages. All the follies our forefathers committed can be paralleled elsewhere, but their successes are unique.

So it was in the few years immediately succeeding the peace by which we won our independence. The mass of the people wished for no closer union than was to be found in a lax confederation; but they had the good sense to learn the lesson taught by the weakness and lawlessness they saw around them; they reluctantly made up their minds to the need of a stronger

government, and when they had once come to their decision, neither demagogue nor doctrinaire could swerve them from it.

The national convention to form a Constitution met in May, 1787; and rarely in the world's history has there been a deliberative body which contained so many remarkable men, or produced results so lasting and far-reaching. The Congress whose members signed the Declaration of Independence had but cleared the ground on which the framers of the Constitution were to build. Among the delegates in attendance, easily first stood Washington and Franklin,—two of that great American trio in which Lincoln is the third. Next came Hamilton from New York, having as colleagues a couple of mere obstructionists sent by the Clintonians to handicap him. From Pennsylvania came Robert Morris and Gouverneur Morris; from Virginia, Madison; from South Carolina, Rutledge and the Pinckneys; and so on through the other states. Some of the most noted statesmen were absent, however. Adams and Jefferson were abroad. Jay was acting as Secretary for Foreign Affairs; in which capacity, by the way, he had shown most unlooked-for weakness in yielding to Spanish demands about the Mississippi.

Two years after taking part in the proceedings of the American Constitutional Convention, Morris witnessed the opening of the States General of France. He thoroughly appreciated the absolute and curious contrast offered by these two bodies, each so big with fate for all mankind. The men who predominated in and shaped the actions of the first belonged to a type not uncommonly brought forth by a people already accustomed to freedom at a crisis in the struggle to preserve or extend its liberties. During the past few centuries this type had appeared many times among the liberty loving nations who dwelt on the shores of the Baltic and the North Sea; and our forefathers represented it in its highest and most perfect shapes. It is a type only to be found among men already trained to govern themselves as well as others. The American statesmen were the kinsfolk and fellows of Hampden and Pym, of William the Silent and John of Barneveldt. Save love of freedom, they had little in common with the closet philosophers, the enthusiastic visionaries, and the selfish demagogues who in France helped pull up the flood-gates of an all-swallowing torrent. They were great men; but it was less the greatness of mere genius than that springing from the union of strong, virile qualities with steadfast devotion to a high ideal. In

certain respects they were ahead of all their European compeers; yet they preserved virtues forgotten or sneered at by the contemporaneous generation of trans-Atlantic leaders. They wrought for the future as surely as did the French Jacobins; but their spirit was the spirit of the Long Parliament. They were resolute to free themselves from the tyranny of man; but they had not unlearned the reverence felt by their fathers for their fathers' God. They were sincerely religious. The advanced friends of freedom abroad scoffed at religion, and would have laughed outright at a proposition to gain help for their cause by prayer; but to the founders of our Constitution, when matters were at a deadlock, and the outcome looked almost hopeless, it seemed a most fit and proper thing that one of the chief of their number should propose to invoke to aid them a wisdom greater than the wisdom of human beings. Even those among their descendants who no longer share their trusting faith may yet well do regretful homage to a religious spirit so deep-rooted and so strongly tending to bring out a pure and high morality. The statesmen who met in 1787 were earnestly patriotic. They unselfishly desired the welfare of their countrymen. They were cool, resolute men, of strong convictions, with clear insight into the future. They were thoroughly acquainted with the needs of the community for which they were to act. Above all they possessed that inestimable quality, so characteristic of their race, hard-headed common sense. Their theory of government was a very high one; but they understood perfectly that it had to be accommodated to the shortcomings of the average citizen. Small indeed was their resemblance to the fiery orators and brilliant pamphleteers of the States General. They were emphatically good men; they were no less emphatically practical men. They would have scorned Mirabeau as a scoundrel; they would have despised Sieyès as a vain and impractical theorist.

The deliberations of the convention in their result illustrated in a striking manner the truth of the American principle, that—for deliberative, not executive, purposes—the wisdom of many men is worth more than the wisdom of any one man. The Constitution that the members assembled in convention finally produced was not only the best possible one for America at that time, but it was also, in spite of its short-comings, and taking into account its fitness for our own people and conditions, as well as its accordance with the principles of abstract right, probably the best that any nation has ever had, while it was beyond question a very much better one

than any single member could have prepared. The particularist statesmen would have practically denied us any real union or efficient executive power; while there was hardly a Federalist member who would not, in his anxiety to avoid the evils from which we were suffering, have given us a government so centralized and aristocratic that it would have been utterly unsuited to a proud, liberty-loving, and essentially democratic race, and would have infallibly provoked a tremendous reactionary revolt.

It is impossible to read through the debates of the convention without being struck by the innumerable shortcomings of each individual plan proposed by the several members, as divulged in their speeches, when compared with the plan finally adopted. Had the result been in accordance with the views of the strong-government men like Hamilton on the one hand, or of the weak-government men like Franklin on the other, it would have been equally disastrous for the country. The men who afterwards naturally became the chiefs of the Federalist party, and who included in their number the bulk of the great revolutionary leaders, were the ones to whom we mainly owe our present form of government; certainly we owe them more, both on this and on other points, than we do their rivals, the after-time Democrats. Yet there were some articles of faith in the creed of the latter so essential to our national wellbeing, and yet so counter to the prejudices of the Federalists, that it was inevitable they should triumph in the end. Jefferson led the Democrats to victory only when he had learned to acquiesce thoroughly in some of the fundamental principles of Federalism, and the government of himself and his successors was good chiefly in so far as it followed out the theories of the Hamiltonians; while Hamilton and the Federalists fell from power because they could not learn the one great truth taught by Jefferson,—that in America a statesman should trust the people, and should endeavor to secure to each man all possible individual liberty, confident that he will use it aright. The old-school Jeffersonian theorists believed in "a strong people and a weak government." Lincoln was the first who showed how a strong people might have a strong government and yet remain the freest on the earth. He seized—half unwittingly—all that was best and wisest in the traditions of Federalism; he was the true successor of the Federalist leaders; but he grafted on their system a profound belief that the great heart of the nation beat for truth, honor, and liberty.

This fact, that in 1787 all the thinkers of the day drew out plans that in some respects went very wide of the mark, must be kept in mind, or else we shall judge each particular thinker with undue harshness when we examine his utterances without comparing them with those of his fellows. But one partial exception can be made. In the Constitutional Convention Madison, a moderate Federalist, was the man who, of all who were there, saw things most clearly as they were, and whose theories most closely corresponded with the principles finally adopted; and although even he was at first dissatisfied with the result, and both by word and by action interpreted the Constitution in widely different ways at different times, still this was Madison's time of glory: he was one of the statesmen who do extremely useful work, but only at some single given crisis. While the Constitution was being formed and adopted, he stood in the very front; but in his later career he sunk his own individuality, and became a mere pale shadow of Jefferson.

Morris played a very prominent part in the convention. He was a ready speaker, and among all the able men present there was probably no such really brilliant thinker. In the debates he spoke more often than any one else, although Madison was not far behind him; and his speeches betrayed, but with marked and exaggerated emphasis, both the virtues and the shortcomings of the Federalist school of thought. They show us, too, why he never rose to the first rank of statesmen. His keen, masterful mind, his far-sightedness, and the force and subtlety of his reasoning were all marred by his incurable cynicism and deep-rooted distrust of mankind. He throughout appears as *advocatus diaboli*; he puts the lowest interpretation upon every act, and frankly avows his disbelief in all generous and unselfish motives. His continual allusions to the overpowering influence of the baser passions, and to their mastery of the human race at all times, drew from Madison, although the two men generally acted together, a protest against his "forever inculcating the utter political depravity of men, and the necessity for opposing one vice and interest as the only possible check to another vice and interest."

Morris championed a strong national government, wherein he was right; but he also championed a system of class representation, leaning towards aristocracy, wherein he was wrong. Not Hamilton himself was a firmer believer in the national idea. His one great object was to secure a powerful

and lasting Union, instead of a loose federal league. It must be remembered that in the convention the term "federal" was used in exactly the opposite sense to the one in which it was taken afterwards; that is, it was used as the antithesis of "national," not as its synonym. The states-rights men used it to express a system of government such as that of the old federation of the thirteen colonies; while their opponents called themselves Nationalists, and only took the title of Federalists after the Constitution had been formed, and then simply because the name was popular with the masses. They thus appropriated their adversaries' party name, bestowing it on the organization most hostile to their adversaries' party theories. Similarly, the term "Republican Party," which was originally in our history merely another name for the Democracy, has in the end been adopted by the chief opponents of the latter.

The difficulties for the convention to surmount seemed insuperable; on almost every question that came up, there were clashing interests. Strong government and weak government, pure democracy or a modified aristocracy, small states and large states, North and South, slavery and freedom, agricultural sections as against commercial sections,—on each of twenty points the delegates split into hostile camps, that could only be reconciled by concessions from both sides. The Constitution was not one compromise; it was a bundle of compromises, all needful.

Morris, like every other member of the convention, sometimes took the right and sometimes the wrong side on the successive issues that arose. But on the most important one of all he made no error; and he commands our entire sympathy for his thorough-going nationalism. As was to be expected, he had no regard whatever for states rights. He wished to deny to the small states the equal representation in the Senate finally allowed them; and he was undoubtedly right theoretically. No good argument can be adduced in support of the present system on that point. Still, it has thus far worked no harm; the reason being that our states have merely artificial boundaries, while those of small population have hitherto been distributed pretty evenly among the different sections, so that they have been split up like the others on every important issue, and thus have never been arrayed against the rest of the country.

Though Morris and his side were defeated in their efforts to have the states represented proportionally in the Senate, yet they carried their point as to

representation in the House. Also on the general question of making a national government, as distinguished from a league or federation, the really vital point, their triumph was complete. The Constitution they drew up and had adopted no more admitted of legal or peaceable rebellion—whether called secession or nullification—on the part of the state than on the part of a county or an individual.

Morris expressed his own views with his usual clear-cut, terse vigor when he asserted that "state attachments and state importance had been the bane of the country," and that he came, not as a mere delegate from one section, but "as a representative of America,—a representative in some degree of the whole human race, for the whole human race would be affected by the outcome of the convention." And he poured out the flood of his biting scorn on those gentlemen who came there "to truck and bargain for their respective states," asking what man there was who could tell with certainty the state wherein he—and even more wherein his children—would live in the future; and reminding the small states, with cavalier indifference, that, "if they did not like the Union, no matter,—they would have to come in, and that was all there was about it; for if persuasion did not unite the country, then the sword would." His correct language and distinct enunciation—to which Madison has borne witness—allowed his grim truths to carry their full weight; and he brought them home to his hearers with a rough, almost startling earnestness and directness. Many of those present must have winced when he told them that it would matter nothing to America "if all the charters and constitutions of the states were thrown into the fire, and all the demagogues into the ocean," and asserted that "any particular state *ought* to be injured, for the sake of a majority of the people, in case its conduct showed that it deserved it." He held that we should create a national government, to be the one and only supreme power in the land,—one which, unlike a mere federal league, such as we then lived under, should have complete and compulsive operation; and he instanced the examples as well of Greece as of Germany and the United Netherlands, to prove that local jurisdiction destroyed every tie of nationality.

It shows the boldness of the experiment in which we were engaged, that we were forced to take all other nations, whether dead or living, as warnings, not examples; whereas, since we succeeded, we have served as a pattern to be copied, either wholly or in part, by every other people that has followed

in our steps. Before our own experience, each similar attempt, save perhaps on the smallest scale, had been a failure. Where so many other nations teach by their mistakes, we are among the few who teach by their successes.

Be it noted also that, the doctrinaires to the contrary notwithstanding, we proved that a strong central government was perfectly compatible with absolute democracy. Indeed, the separatist spirit does not lead to true democratic freedom. Anarchy is the handmaiden of tyranny. Of all the states, South Carolina has shown herself (at least throughout the greater part of the present century) to be the most aristocratic, and the most wedded to the separatist spirit. The German masses were never so ground down by oppression as when the little German principalities were most independent of each other and of any central authority.

Morris believed in letting the United States interfere to put down a rebellion in a state, even though the executive of the state himself should be at the head of it; and he was supported in his views by Pinckney, the ablest member of the brilliant and useful but unfortunately short-lived school of South Carolina Federalists. Pinckney was a thorough-going Nationalist; he wished to go a good deal further than the convention actually went in giving the central government complete control. Thus he proposed that Congress should have power to negative by a two-thirds vote all state laws inconsistent with the harmony of the Union. Madison also wished to give Congress a veto over state legislation. Morris believed that a national law should be allowed to repeal any state law, and that Congress should legislate in all cases where the laws of the states conflicted among themselves.

Yet Morris, on the very question of nationalism, himself showed the narrowest, blindest, and least excusable sectional jealousy on one point. He felt as an American for all the Union, as it then existed; but he feared and dreaded the growth of the Union in the West, the very place where it was inevitable, as well as in the highest degree desirable, that the greatest growth should take place. He actually desired the convention to commit the criminal folly of attempting to provide that the West should always be kept subordinate to the East. Fortunately he failed; but the mere attempt casts the gravest discredit alike on his far-sightedness and on his reputation as a statesman. It is impossible to understand how one who was usually so cool and clear-headed an observer could have blundered so flagrantly on a point

hardly less vital than the establishment of the Union itself. Indeed, had his views been carried through, they would in the end have nullified all the good bestowed by the Union. In speaking against state jealousy, he had shown its foolishness by observing that no man could tell in what state his children would dwell; and the folly of the speaker himself was made quite as clear by his not perceiving that their most likely dwelling-place was in the West. This jealousy of the West was even more discreditable to the Northeast than the jealousy of America had been to England; and it continued strong, especially in New England, for very many years. It was a mean and unworthy feeling; and it was greatly to the credit of the Southerners that they shared it only to a very small extent. The South in fact originally was in heartiest sympathy with the West; it was not until the middle of the present century that the country beyond the Alleghanies became preponderatingly Northern in sentiment. In the Constitutional Convention itself, Butler, of South Carolina, pointed out "that the people and strength of America were evidently tending westwardly and southwestwardly."

Morris wished to discriminate against the West by securing to the Atlantic States the perpetual control of the Union. He brought this idea up again and again, insisting that we should reserve to ourselves the right to put conditions on the Western States when we should admit them. He dwelt at length on the danger of throwing the preponderance of influence into the Western scale; stating his dread of the "back members," who were always the most ignorant, and the opponents of all good measures. He foretold with fear that some day the people of the West would outnumber the people of the East, and he wished to put it in the power of the latter to keep a majority of the votes in their own hands. Apparently he did not see that, if the West once became as populous as he predicted, its legislators would forthwith cease to be "back members." The futility of his fears, and still more of his remedies, was so evident that the convention paid very little heed to either.

On one point, however, his anticipations of harm were reasonable, and indeed afterwards came true in part. He insisted that the West, or interior, would join the South and force us into a war with some European power, wherein the benefits would accrue to them and the harm to the Northeast. The attitude of the South and West already clearly foreshadowed a struggle with Spain for the Mississippi Valley; and such a struggle would surely

have come, either with the French or Spaniards, had we failed to secure the territory in question by peaceful purchase. As it was, the realization of Morris's prophecy was only put off for a few years; the South and West brought on the War of 1812, wherein the East was the chief sufferer.

On the question as to whether the Constitution should be made absolutely democratic or not, Morris took the conservative side. On the suffrage his views are perfectly defensible: he believed that it should be limited to freeholders. He rightly considered the question as to how widely it should be extended to be one of expediency merely. It is simply idle folly to talk of suffrage as being an "inborn" or "natural" right. There are enormous communities totally unfit for its exercise; while true universal suffrage never has been, and never will be, seriously advocated by any one. There must always be an age limit, and such a limit must necessarily be purely arbitrary. The wildest democrat of revolutionary times did not dream of doing away with the restrictions of race and sex which kept most American citizens from the ballot-box; and there is certainly much less abstract right in a system which limits the suffrage to people of a certain color than there is in one which limits it to people who come up to a given standard of thrift and intelligence. On the other hand, our experience has not proved that men of wealth make any better use of their ballots than do, for instance, mechanics and other handicraftsmen. No plan could be adopted so perfect as to be free from all drawbacks. On the whole, however, and taking our country in its length and breadth, manhood suffrage has worked well, better than would have been the case with any other system; but even here there are certain localities where its results have been evil, and must simply be accepted as the blemishes inevitably attendant upon, and marring, any effort to carry out a scheme that will be widely applicable.

Morris contended that his plan would work no novel or great hardship, as the people in several states were already accustomed to freehold suffrage. He considered the freeholders to be the best guardians of liberty, and maintained that the restriction of the right to them was only creating a necessary safeguard "against the dangerous influence of those people without property or principle, with whom, in the end, our country, like all other countries, was sure to abound." He did not believe that the ignorant and dependent could be trusted to vote. Madison supported him heartily, likewise thinking the freeholders the safest guardians of our rights; he

indulged in some gloomy (and fortunately hitherto unverified) forebodings as to our future, which sound strangely coming from one who was afterwards an especial pet of the Jeffersonian democracy. He said: "In future times a great majority of the people will be without landed or any other property. They will then either combine under the influence of their common situation,—in which case the rights of property and the public liberty will not be safe in their hands,—or, as is more probable, they will become the tools of opulence and ambition."

Morris also enlarged on this last idea. "Give the votes to people who have no property, and they will sell them to the rich," said he. When taunted with his aristocratic tendencies, he answered that he had long ceased to be the dupe of words, that the mere sound of the name "aristocracy" had no terrors for him, but that he did fear lest harm should result to the people from the unacknowledged existence of the very thing they feared to mention. As he put it, there never was or would be a civilized society without an aristocracy, and his endeavor was to keep it as much as possible from doing mischief. He thus professed to be opposed to the existence of an aristocracy, but convinced that it would exist anyhow, and that therefore the best thing to be done was to give it a recognized place, while clipping its wings so as to prevent its working harm. In pursuance of this theory, he elaborated a wild plan, the chief feature of which was the provision for an aristocratic senate, and a popular or democratic house, which were to hold each other in check, and thereby prevent either party from doing damage. He believed that the senators should be appointed by the national executive, who should fill up the vacancies that occurred. To make the upper house effective as a checking branch, it should be so constituted to as have a personal interest in checking the other branch; it should be a senate for life, it should be rich, it should be aristocratic. He continued:—It would then do wrong? He believed so; he hoped so. The rich would strive to enslave the rest; they always did. The proper security against them was to form them into a separate interest. The two forces would then control each other. By thus combining and setting apart the aristocratic interest, the popular interest would also be combined against it. There would be mutual check and mutual security. If, on the contrary, the rich and poor were allowed to mingle, then, if the country were commercial, an oligarchy would be established; and if it were not, an unlimited democracy would ensue. It was best to look truth in the face. The loaves and fishes would be needed to

bribe demagogues; while as for the people, if left to themselves, they would never act from reason alone. The rich would take advantage of their passions, and the result would be either a violent aristocracy, or a more violent despotism.—The speech containing these extraordinary sentiments, which do no particular credit to either Morris's head or heart, is given in substance by Madison in the "Debates." Madison's report is undoubtedly correct, for, after writing it, he showed it to the speaker himself, who made but one or two verbal alterations.

Morris applied an old theory in a new way when he proposed to make "taxation proportional to representation" throughout the Union. He considered the preservation of property as being the distinguishing object of civilization, as liberty was sufficiently guaranteed even by savagery; and therefore he held that the representation in the senate should be according to property as well as numbers. But when this proposition was defeated, he declined to support one making property qualifications for congressmen, remarking that such were proper for the electors rather than the elected.

His views as to the power and functions of the national executive were in the main sound, and he succeeded in having most of them embodied in the Constitution. He wished to have the President hold office during good behavior; and, though this was negatived, he succeeded in having him made reëligible to the position. He was instrumental in giving him a qualified veto over legislation, and in providing for his impeachment for misconduct; and also in having him made commander-in-chief of the forces of the republic, and in allowing him the appointment of governmental officers. The especial service he rendered, however, was his successful opposition to the plan whereby the President was to be elected by the legislature. This proposition he combated with all his strength, showing that it would take away greatly from the dignity of the executive, and would render his election a matter of cabal and faction, "like the election of the pope by a conclave of cardinals." He contended that the President should be chosen by the people at large, by the citizens of the United States, acting through electors whom they had picked out. He showed the probability that in such a case the people would unite upon a man of continental reputation, as the influence of designing demagogues and tricksters is generally powerful in proportion as the limits within which they work are narrow; and the importance of the stake would make all men inform themselves thoroughly

as to the characters and capacities of those who were contending for it; and he flatly denied the statements, that were made in evident good faith, to the effect that in a general election each State would cast its vote for its own favorite citizen. He inclined to regard the President in the light of a tribune chosen by the people to watch over the legislature; and giving him the appointing power, he believed, would force him to make good use of it, owing to his sense of responsibility to the people at large, who would be directly affected by its exercise, and who could and would hold him accountable for its abuse.

On the judiciary his views were also sound. He upheld the power of the judges, and maintained that they should have absolute decision as to the constitutionality of any law. By this means he hoped to provide against the encroachments of the popular branch of the government, the one from which danger was to be feared, as "virtuous citizens will often act as legislators in a way of which they would, as private individuals, afterwards be ashamed." He wisely disapproved of low salaries for the judges, showing that the amounts must be fixed from time to time in accordance with the manner and style of living in the country; and that good work on the bench, where it was especially needful, like good work everywhere else, could only be insured by a high rate of recompense. On the other hand, he approved of introducing into the national Constitution the foolish New York state inventions of a Council of Revision and an Executive Council.

His ideas of the duties and powers of Congress were likewise very proper on the whole. Most citizens of the present day will agree with him that "the excess rather than the deficiency of laws is what we have to dread." He opposed the hurtful provision which requires that each congressman should be a resident of his own district, urging that congressmen represented the people at large, as well as their own small localities; and he also objected to making officers of the army and navy ineligible. He laid much stress on the propriety of passing navigation acts to encourage American bottoms and seamen, as a navy was essential to our security, and the shipping business was always one that stood in peculiar need of public patronage. Also, like Hamilton and most other Federalists, he favored a policy of encouraging domestic manufactures. Incidentally he approved of Congress having the power to lay an embargo, although he has elsewhere recorded his views as to the general futility of such kinds of "commercial warfare." He believed in

having a uniform bankruptcy law; approved of abolishing all religious tests as qualifications for office, and was utterly opposed to the "rotation in office" theory.

One curious incident in the convention was the sudden outcropping, even thus early, of a "Native American" movement against all foreigners, which was headed by Butler, of South Carolina, who himself was of Irish parentage. He strenuously insisted that no foreigners whomsoever should be admitted to our councils,—a rather odd proposition, considering that it would have excluded quite a number of the eminent men he was then addressing. Pennsylvania in particular—whose array of native talent has always been far from imposing—had a number of foreigners among her delegates, and loudly opposed the proposition, as did New York. These States wished that there should be no discrimination whatever between native and foreign born citizens; but finally a compromise was agreed to, by which the latter were excluded only from the Presidency, but were admitted to all other rights after a seven years' residence,—a period that was certainly none too long.

A much more serious struggle took place over the matter of slavery, quite as important then as ever, for at that time the negroes were a fifth of our population, instead of, as now, an eighth. The question, as it came before the convention, had several sides to it; the especial difficulty arising over the representation of the Slave States in Congress, and the importation of additional slaves from Africa. No one proposed to abolish slavery off-hand; but an influential though small number of delegates, headed by Morris, recognized it as a terrible evil, and were very loath either to allow the South additional representation for the slaves, or to permit the foreign trade in them to go on. When the Southern members banded together on the issue, and made it evident that it was the one which they regarded as almost the most important of all, Morris attacked them in a telling speech, stating with his usual boldness facts that most Northerners only dared hint at, and summing up with the remark that, if he was driven to the dilemma of doing injustice to the Southern States or to human nature, he would have to do it to the former; certainly he would not encourage the slave trade by allowing representation for negroes. Afterwards he characterized the proportional representation of the blacks even more strongly, as being "a bribe for the importation of slaves."

In advocating the proposal, first made by Hamilton, that the representation should in all cases be proportioned to the number of free inhabitants, Morris showed the utter lack of logic in the Virginian proposition, which was that the Slave States should have additional representation to the extent of three fifths of their negroes. If negroes were to be considered as inhabitants, then they ought to be added in their entire number; if they were to be considered as property, then they ought to be counted only if all other wealth was likewise included. The position of the Southerners was ridiculous: he tore their arguments to shreds; but he was powerless to alter the fact that they were doggedly determined to carry their point, while most of the Northern members cared comparatively little about it.

In another speech he painted in the blackest colors the unspeakable misery and wrong wrought by slavery, and showed the blight it brought upon the land. "It was the curse of Heaven on the states where it prevailed." He contrasted the prosperity and happiness of the Northern States with the misery and poverty which overspread the barren wastes of those where slaves were numerous. "Every step you take through the great region of slavery presents a desert widening with the increasing number of these wretched beings." He indignantly protested against the Northern States being bound to march their militia for the defense of the Southern States against the very slaves of whose existence the northern men complained. "He would sooner submit himself to a tax for paying for all the negroes in the United States than saddle posterity with such a Constitution."

Some of the high-minded Virginian statesmen were quite as vigorous as he was in their denunciation of the system. One of them, George Mason, portrayed the effect of slavery upon the people at large with bitter emphasis, and denounced the slave traffic as "infernal," and slavery as a national sin that would be punished by a national calamity,—stating therein the exact and terrible truth. In shameful contrast, many of the Northerners championed the institution; in particular, Oliver Ellsworth, of Connecticut, whose name should be branded with infamy because of the words he then uttered. He actually advocated the free importation of negroes into the South Atlantic States, because the slaves "died so fast in the sickly rice swamps" that it was necessary ever to bring fresh ones to labor and perish in the places of their predecessors; and, with a brutal cynicism, peculiarly revolting from its mercantile baseness, he brushed aside the question of

morality as irrelevant, asking his hearers to pay heed only to the fact that "what enriches the part enriches the whole."

The Virginians were opposed to the slave trade: but South Carolina and Georgia made it a condition of their coming into the Union. It was accordingly agreed that it should be allowed for a limited time,—twelve years; and this was afterwards extended to twenty by a bargain made by Maryland and the three South Atlantic States with the New England States, the latter getting in return the help of the former to alter certain provisions respecting commerce. One of the main industries of the New England of that day was the manufacture of rum; and its citizens cared more for their distilleries than for all the slaves held in bondage throughout Christendom. The rum was made from molasses which they imported from the West Indies, and they carried there in return the fish taken by their great fishing fleets; they also carried the slaves into the Southern ports. Their commerce was what they especially relied on; and to gain support for it they were perfectly willing to make terms with even such a black Mammon of unrighteousness as the Southern slaveholding system. Throughout the contest, Morris and a few other stout anti-slavery men are the only ones who appear to advantage; the Virginians, who were honorably anxious to minimize the evils of slavery, come next; then the other Southerners who allowed pressing self-interest to overcome their scruples; and, last of all, the New Englanders whom a comparatively trivial self-interest made the willing allies of the extreme slaveholders. These last were the only Northerners who yielded anything to the Southern slaveholders that was not absolutely necessary; and yet they were the forefathers of the most determined and effective foes that slavery ever had.

As already said, the Southerners stood firm on the slave question: it was the one which perhaps more than any other offered the most serious obstacle to a settlement. Madison pointed out "that the real difference lay, not between the small States and the large, but between the Northern and the Southern States. The institution of slavery and its consequences formed the real line of discrimination." To talk of this kind Morris at first answered hotly enough:—"he saw that the Southern gentlemen would not be satisfied unless they saw the way open to their gaining a majority in the public councils.... If [the distinction they set up between the North and South] was real, instead of attempting to blend incompatible things, let them at once

take a friendly leave of each other." He afterwards went back from this position, and agreed to the compromise by which the slaves were to add, by three fifths of their number, to the representation of their masters, and the slave trade was to be allowed for a certain number of years, and prohibited forever after. He showed his usual straightforward willingness to call things by their right names in desiring to see "slavery" named outright in the Constitution, instead of being characterized with cowardly circumlocution, as was actually done.

In finally yielding and assenting to a compromise, he was perfectly right. The crazy talk about the iniquity of consenting to any recognition of slavery whatever in the Constitution is quite beside the mark; and it is equally irrelevant to assert that the so-called "compromises" were not properly compromises at all, because there were no mutual concessions, and the Southern States had "no shadow of right" to what they demanded and only in part gave up. It was all-important that there should be a Union, but it had to result from the voluntary action of all the states; and each state had a perfect "right" to demand just whatever it chose. The really wise and high-minded statesmen demanded for themselves nothing save justice; but they had to accomplish their purpose by yielding somewhat to the prejudices of their more foolish and less disinterested colleagues. It was better to limit the duration of the slave trade to twenty years than to allow it to be continued indefinitely, as would have been the case had the South Atlantic States remained by themselves. The three fifths representation of the slaves was an evil anomaly, but it was no worse than allowing the small states equal representation in the Senate; indeed, balancing the two concessions against each other, it must be admitted that Virginia and North Carolina surrendered to New Hampshire and Rhode Island more than they got in return.

No man who supported slavery can ever have a clear and flawless title to our regard; and those who opposed it merit, in so far, the highest honor; but the opposition to it sometimes took forms that can be considered only as the vagaries of lunacy. The only hope of abolishing it lay, first in the establishment and then in the preservation of the Union; and if we had at the outset dissolved into a knot of struggling anarchies, it would have entailed an amount of evil both on our race and on all North America, compared to which the endurance of slavery for a century or two would have been as nothing. If we had even split up into only two republics, a

Northern and a Southern, the West would probably have gone with the latter, and to this day slavery would have existed throughout the Mississippi valley; much of what is now our territory would have been held by European powers, scornfully heedless of our divided might, while in not a few states the form of government would have been a military dictatorship; and indeed our whole history would have been as contemptible as was that of Germany for some centuries prior to the rise of the house of Hohenzollern.

The fierceness of the opposition to the adoption of the Constitution, and the narrowness of the majority by which Virginia and New York decided in its favor, while North Carolina and Rhode Island did not come in at all until absolutely forced, showed that the refusal to compromise on any one of the points at issue would have jeopardized everything. Had the slavery interest been in the least dissatisfied, or had the plan of government been a shade less democratic, or had the smaller States not been propitiated, the Constitution would have been rejected off-hand; and the country would have had before it decades, perhaps centuries, of misrule, violence, and disorder.

Madison paid a very just compliment to some of Morris's best points when he wrote, anent his services in the convention: "To the brilliancy of his genius he added, what is too rare, a candid surrender of his opinions when the light of discussion satisfied him that they had been too hastily formed, and a readiness to aid in making the best of measures in which he had been overruled." Although so many of his own theories had been rejected, he was one of the warmest advocates of the Constitution; and it was he who finally drew up the document and put the finish to its style and arrangement, so that, as it now stands, it comes from his pen.

Hamilton, who more than any other man bore the brunt of the fight for its adoption, asked Morris to help him in writing the "Federalist," but the latter was for some reason unable to do so; and Hamilton was assisted only by Madison, and to a very slight extent by Jay. Pennsylvania, the State from which Morris had been sent as a delegate, early declared in favor of the new experiment; although, as Morris wrote Washington, there had been cause to "dread the cold and sour temper of the back counties, and still more the wicked industry of those who have long habituated themselves to live on the public, and cannot bear the idea of being removed from the power and

profit of state government, which has been and still is the means of supporting themselves, their families, and dependents, and (which perhaps is equally grateful) of depressing and humbling their political adversaries." In his own native state of New York the influences he thus describes were still more powerful, and it needed all Hamilton's wonderful genius to force a ratification of the Constitution in spite of the stupid selfishness of the Clintonian faction; as it was, he was only barely successful, although backed by all the best and ablest leaders in the community,—Jay, Livingstone, Schuyler, Stephen Van Rensselaer, Isaac Roosevelt, James Duane, and a host of others.

About this time Morris came back to New York to live, having purchased the family estate at Morrisania from his elder brother, Staats Long Morris, the British general. He had for some time been engaged in various successful commercial ventures with his friend Robert Morris, including an East India voyage on a large scale, shipments of tobacco to France, and a share in iron works on the Delaware River, and had become quite a rich man. As soon as the war was ended, he had done what he could do to have the loyalists pardoned and reinstated in their fortunes; thereby risking his popularity not a little, as the general feeling against the Tories was bitter and malevolent in the highest degree, in curious contrast to the good-will that so rapidly sprang up between the Unionists and ex-Confederates after the Civil War.

He also kept an eye on foreign politics, and one of his letters to Jay curiously foreshadows the good-will generally felt by Americans of the present day towards Russia, running: "If her ladyship (the Czarina) would drive the Turk out of Europe, and demolish the Algerines and other piratical gentry, she will have done us much good for her own sake; ... but it is hardly possible the other powers will permit Russia to possess so wide a door into the Mediterranean. I may be deceived, but I think England herself would oppose it. As an American, it is my hearty wish that she may effect her schemes."

Shortly after this it became necessary for him to sail for Europe on business.

CHAPTER VII.

FIRST STAY IN FRANCE.

After a hard winter passage of forty days' length Morris reached France, and arrived in Paris on February 3, 1789. He remained there a year on his private business; but his prominence in America, and his intimate friendship with many distinguished Frenchmen, at once admitted him to the highest social and political circles, where his brilliant talents secured him immediate importance.

The next nine years of his life were spent in Europe, and it was during this time that he unknowingly rendered his especial and peculiar service to the public. As an American statesman he has many rivals, and not a few superiors; but as a penetrating observer and recorder of contemporary events, he stands alone among the men of his time. He kept a full diary during his stay abroad, and was a most voluminous correspondent; and his capacity for keen, shrewd observation, his truthfulness, his wonderful insight into character, his sense of humor, and his power of graphic description, all combine to make his comments on the chief men and events of the day a unique record of the inside history of Western Europe during the tremendous convulsions of the French Revolution. He is always an entertaining and in all matters of fact a trustworthy writer. His letters and diary together form a real mine of wealth for the student either of the social life of the upper classes in France just before the outbreak, or of the events of the Revolution itself.

In the first place, it must be premised that from the outset Morris was hostile to the spirit of the French Revolution, and his hostility grew in proportion to its excesses until at last it completely swallowed up his original antipathy to England, and made him regard France as normally our enemy, not our ally. This was perfectly natural, and indeed inevitable: in all really free countries, the best friends of freedom regarded the revolutionists, when they had fairly begun their bloody career, with horror and anger. It was only to oppressed, debased, and priest-ridden peoples that the French

Revolution could come as the embodiment of liberty. Compared to the freedom already enjoyed by Americans, it was sheer tyranny of the most dreadful kind.

Morris saw clearly that the popular party in France, composed in part of amiable visionaries, theoretic philanthropists, and closet constitution-mongers, and in part of a brutal, sodden populace, maddened by the grinding wrongs of ages, knew not whither its own steps tended; and he also saw that the then existing generation of Frenchmen were not, and never would be, fitted to use liberty aright. It is small matter for wonder that he could not see as clearly the good which lay behind the movement; that he could not as readily foretell the real and great improvement it was finally to bring about, though only after a generation of hideous convulsions. Even as it was, he discerned what was happening, and what was about to happen, more distinctly than did any one else. The wild friends of the French Revolution, especially in America, supported it blindly, with but a very slight notion of what it really signified. Keen though Morris's intellectual vision was, it was impossible for him to see what future lay beyond the quarter of a century of impending tumult. It did not lie within his powers to applaud the fiendish atrocities of the Red Terror for the sake of the problematical good that would come to the next generation. To do so he would have needed the granite heart of a zealot, as well as the prophetic vision of a seer.

The French Revolution was in its essence a struggle for the abolition of privilege, and for equality in civil rights. This Morris perceived, almost alone among the statesmen of his day; and he also perceived that most Frenchmen were willing to submit to any kind of government that would secure them the things for which they strove. As he wrote to Jefferson, when the republic was well under weigh: "The great mass of the French nation is less solicitous to preserve the present order of things than to prevent the return of the ancient oppression, and of course would more readily submit to a pure despotism than to that kind of monarchy whose only limits were found in those noble, legal and clerical corps by which the people were alternately oppressed and insulted." To the down-trodden masses of continental Europe the gift of civil rights and the removal of the tyranny of the privileged classes, even though accompanied by the rule of a directory, a consul, or an emperor, represented an immense political

advance; but to the free people of England, and to the freer people of America, the change would have been wholly for the worse.

Such being the case, Morris's attitude was natural and proper. There is no reason to question the sincerity of his statement in another letter, that "I do, from the bottom of my heart, wish well to this country [France]." Had the French people shown the least moderation or wisdom, he would have unhesitatingly sided with them against their oppressors. It must be kept in mind that he was not influenced in the least in his course by the views of the upper classes with whom he mingled. On the contrary, when he first came to Europe, he distinctly lost popularity in some of the social circles in which he moved, because he was so much more conservative than his aristocratic friends, among whom the closet republicanism of the philosophers was for the moment all the rage. He had no love for the French nobility, whose folly and ferocity caused the Revolution, and whose craven cowardice could not check it even before it had gathered headway. Long afterwards he wrote of some of the *emigrés*: "The conversation of these gentlemen, who have the virtue and good fortune of their grandfathers to recommend them, leads me almost to forget the crimes of the French Revolution; and often the unforgiving temper and sanguinary wishes which they exhibit make me almost believe that the assertion of their enemies is true, namely, that it is success alone which has determined on whose side should be the crimes, and on whose the miseries." The truth of the last sentence was strikingly verified by the White Terror, even meaner, if less bloody, than the Red. Bourbon princes and Bourbon nobles were alike, and Morris only erred in not seeing that their destruction was the condition precedent upon all progress.

There was never another great struggle, in the end productive of good to mankind, where the tools and methods by which that end was won were so wholly vile as in the French Revolution. Alone among movements of the kind, it brought forth no leaders entitled to our respect; none who were both great and good; none even who were very great, save, at its beginning, strange, strong, crooked Mirabeau, and at its close the towering world-genius who sprang to power by its means, wielded it for his own selfish purposes, and dazzled all nations over the wide earth by the glory of his strength and splendor.

We can hardly blame Morris for not appreciating a revolution whose immediate outcome was to be Napoleon's despotism, even though he failed to see all the good that would remotely spring therefrom. He considered, as he once wrote a friend, that "the true object of a great statesman is to give to any particular nation the kind of laws which is suitable to them, and the best constitution which they are capable of." There can be no sounder rule of statesmanship; and none was more flagrantly broken by the amiable but incompetent political doctrinaires of 1789. Thus the American, as a far-sighted statesman, despised the theorists who began the Revolution, and, as a humane and honorable man, abhorred the black-hearted wretches who carried it on. His view of the people among whom he found himself, as well as his statement of his own position, he himself has recorded: "To fit people for a republic, as for any other form of government, a previous education is necessary.... In despotic governments the people, habituated to beholding everything bending beneath the weight of power, never possess that power for a moment without abusing it. Slaves, driven to despair, take arms, execute vast vengeance, and then sink back to their former condition of slaves. In such societies the patriot, the melancholy patriot, sides with the despot, because anything is better than a wild and bloody confusion."

So much for an outline of his views. His writings preserve them for us in detail on almost every important question that came up during his stay in Europe; couched, moreover, in telling, piquant sentences that leave room for hardly a dull line in either letters or diary.

No sooner had he arrived in Paris than he sought out Jefferson, then the American minister, and Lafayette. They engaged him to dine on the two following nights. He presented his various letters of introduction, and in a very few weeks, by his wit, tact, and ability, had made himself completely at home in what was by far the most brilliant and attractive—although also the most hopelessly unsound—fashionable society of any European capital. He got on equally well with fine ladies, philosophers, and statesmen; was as much at his ease in the salons of the one as at the dinner-tables of the other; and all the time observed and noted down, with the same humorous zest, the social peculiarities of his new friends as well as the tremendous march of political events. Indeed, it is difficult to know whether to set the higher value on his penetrating observations concerning public affairs, or on his witty, light, half-satirical sketches of the men and women of the world with

whom he was thrown in contact, told in his usual charming and effective style. No other American of note has left us writings half so humorous and amusing, filled, too, with information of the greatest value.

Although his relations with Jefferson were at this time very friendly, yet his ideas on most subjects were completely at variance with those of the latter. He visited him very often; and, after one of these occasions, jots down his opinion of his friend in his usual amusing vein: "Call on Mr. Jefferson, and sit a good while. General conversation on character and politics. I think he does not form very just estimates of character, but rather assigns too many to the humble rank of fools; whereas in life the gradations are infinite, and each individual has his peculiarities of fort and feeble:" Not a bad protest against the dangers of sweeping generalization. Another time he records his judgment of Jefferson's ideas on public matters as follows: "He and I differ in our systems of politics. He, with all the leaders of liberty here, is desirous of annihilating distinctions of order. How far such views may be right respecting mankind in general is, I think, extremely problematical. But with respect to this nation I am sure they are wrong, and cannot eventuate well."

As soon as he began to go out in Parisian society, he was struck by the closet republicanism which it had become the fashion to affect. After his first visit to Lafayette, who received him with that warmth and frank, open-handed hospitality which he always extended to Americans, Morris writes: "Lafayette is full of politics; he appears to be too republican for the genius of his country." And again, when Lafayette showed him the draft of the celebrated Declaration of Rights, he notes: "I gave him my opinions, and suggested several amendments tending to soften the high-colored expressions of freedom. It is not by sounding words that revolutions are produced." Elsewhere he writes that "the young nobility have brought themselves to an active faith in the natural equality of mankind, and spurn at everything which looks like restraint." Some of their number, however, he considered to be actuated by considerations more tangible than mere sentiment. He chronicles a dinner with some members of the National Assembly, where "one, a noble representing the *Tiers*, is so vociferous against his own order, that I am convinced he means to rise by his eloquence, and finally will, I expect, vote with the opinion of the court, let that be what it may." The sentimental humanitarians—who always form a most pernicious body, with an influence for bad hardly surpassed by that of

the professionally criminal class—of course thrive vigorously in an atmosphere where theories of mawkish benevolence went hand in hand with the habitual practice of vices too gross to name. Morris, in one of his letters, narrates an instance in point; at the same time showing how this excess of watery philanthropy was, like all the other movements of the French Revolution, but a violent and misguided reaction against former abuses of the opposite sort. The incident took place in Madame de Staël's salon. "The Count de Clermont Tonnerre, one of their best orators, read to us a very pathetic oration; and the object was to show that no penalties are the legal compensations for crimes or injuries: the man who is hanged, having by that event paid his debt to society, ought not to be held in dishonor; and in like manner he who has been condemned for seven years to be flogged in the galleys, should, when he has served out his apprenticeship, be received again into good company, as if nothing had happened. You smile; but observe the extreme to which the matter was carried the other way. Dishonoring thousands for the guilt of one has so shocked the public sentiment as to render this extreme fashionable. The oration was very fine, very sentimental, very pathetic, and the style harmonious. Shouts of applause and full approbation. When this was pretty well over, I told him that his speech was extremely eloquent, but that his principles were not very solid. Universal surprise!"

At times he became rather weary of the constant discussion of politics, which had become the chief drawing-room topic. Among the capacities of his lively and erratic nature was the power of being intensely bored by anything dull or monotonous. He remarked testily that "republicanism was absolutely a moral influenza, from which neither titles, places, nor even the diadem can guard the possessor." In a letter to a friend on a different subject he writes: "Apropos,—a term which my Lord Chesterfield well observes we generally use to bring in what is not at all to the purpose,—apropos, then, I have here the strangest employment imaginable. A republican, and just as it were emerged from that assembly which has formed one of the most republican of all republican constitutions, I preach incessantly respect for the prince, attention to the rights of the nobles, and above all moderation, not only in the object, but also in the pursuit of it. All this you will say is none of my business; but I consider France as the natural ally of my country, and, of course, that we are interested in her prosperity; besides, to say the truth, I love France."

His hostility to the fashionable cult offended some of his best friends. The Lafayettes openly disapproved his sentiments. The Marquis told him that he was injuring the cause, because his sentiments were being continually quoted against "the good party." Morris answered that he was opposed to democracy from a regard to liberty; that the popular party were going straight to destruction, and he would fain stop them if he could; for their views respecting the nation were totally inconsistent with the materials of which it was composed, and the worst thing that could happen to them would be to have their wishes granted. Lafayette half admitted that this was true: "He tells me that he is sensible his party are mad, and tells them so, but is not the less determined to die with them. I tell him that I think it would be quite as well to bring them to their senses and live with them,"—the last sentence showing the impatience with which the shrewd, fearless, practical American at times regarded the dreamy inefficiency of his French associates. Madame de Lafayette was even more hostile than her husband to Morris's ideas. In commenting on her beliefs he says: "She is a very sensible woman, but has formed her ideas of government in a manner not suited, I think, either to the situation, the circumstances, or the disposition of France."

He was considered too much of an aristocrat in the salon of the Comtesse de Tessé, the resort of "republicans of the first feather;" and at first was sometimes rather coldly received there. He felt, however, a most sincere friendship and regard for the comtesse, and thoroughly respected the earnestness with which she had for twenty years done what lay in her power to give her country greater liberty. She was a genuine enthusiast, and, when the National Assembly met, was filled with exultant hope for the future. The ferocious outbreaks of the mob, and the crazy lust for blood shown by the people at large, startled her out of her faith, and shocked her into the sad belief that her life-long and painful labors had been wasted in the aid of a bad cause. Later in the year Morris writes: "I find Madame de Tessé is become a convert to my principles. We have a gay conversation of some minutes on their affairs, in which I mingle sound maxims of government with that piquant *légèreté* which this nation delights in. She insists that I dine with her at Versailles the next time I am there. We are vastly gracious, and all at once, in a serious tone, 'Mais attendez, madame, est-ce que je suis trop aristocrat?' To which she answers, with a smile of gentle humility, 'Oh, mon Dieu, non!'"

It is curious to notice how rapidly Morris's brilliant talents gave him a commanding position, stranger and guest though he was, among the most noted statesmen of France; how often he was consulted, and how widely his opinions were quoted. Moreover, his incisive truthfulness makes his writings more valuable to the historian of his time than are those of any of his contemporaries, French, English, or American. Taine, in his great work on the Revolution, ranks him high among the small number of observers who have recorded clear and sound judgments of those years of confused, formless tumult and horror.

All his views on French politics are very striking. As soon as he reached Paris, he was impressed by the unrest and desire for change prevailing everywhere, and wrote home: "I find on this side of the Atlantic a resemblance to what I left on the other,—a nation which exists in hopes, prospects, and expectations; the reverence for ancient establishments gone; existing forms shaken to the very foundation; and a new order of things about to take place, in which, perhaps, even the very names of all former institutions will be disregarded." And again: "This country presents an astonishing spectacle to one who has collected his ideas from books and information half a dozen years old. Everything is *à l'Anglaise*, and a desire to imitate the English prevails alike in the cut of a coat and the form of a constitution. Like the English, too, all are engaged in parlementeering; and when we consider how novel this last business must be, I assure you the progress is far from contemptible,"—a reference to Lafayette's electioneering trip to Auvergne. The rapidity with which, in America, order had come out of chaos, while in France the reverse process had been going on, impressed him deeply; as he says: "If any new lesson were wanting to impress on our hearts a deep sense of the mutability of human affairs, the double contrast between France and America two years ago and at the present would surely furnish it."

He saw at once that the revolutionists had it in their power to do about as they chose. "If there be any real vigor in the nation the prevailing party in the States-General may, if they please, overturn the monarchy itself, should the king commit his authority to a contest with them. The court is extremely feeble, and the manners are so extremely corrupt that they cannot succeed if there be any consistent opposition, unless the whole nation be equally depraved."

He did not believe that the people would be able to profit by the revolution, or to use their opportunities aright. For the numerous class of patriots who felt a vague, though fervent, enthusiasm for liberty in the abstract, and who, without the slightest practical knowledge, were yet intent on having all their own pet theories put into practice, he felt profound scorn and contempt; while he distrusted and despised the mass of Frenchmen, because of their frivolity and viciousness. He knew well that a pure theorist may often do as much damage to a country as the most corrupt traitor; and very properly considered that in politics the fool is quite as obnoxious as the knave. He also realized that levity and the inability to look life seriously in the face, or to attend to the things worth doing, may render a man just as incompetent to fulfil the duties of citizenship as would actual viciousness.

To the crazy theories of the constitution-makers and closet-republicans generally, he often alludes in his diary, and in his letters home. In one place he notes: "The literary people here, observing the abuses of the monarchical form, imagine that everything must go the better in proportion as it recedes from the present establishment, and in their closets they make men exactly suited to their systems; but unluckily they are such men as exist nowhere else, and least of all in France." And he writes almost the same thing to Washington: "The middle party, who mean well, have unfortunately acquired their ideas of government from books, and are admirable fellows upon paper: but as it happens, somewhat unfortunately, that the men who live in the world are very different from those who dwell in the heads of philosophers, it is not to be wondered at if the systems taken out of books are fit for nothing but to be put back into books again." And once more: "They have all that romantic spirit, and all those romantic ideas of government, which, happily for America, we were cured of before it was too late." He shows how they had never had the chance to gain wisdom through experience. "As they have hitherto felt severely the authority exercised in the name of their princes, every limitation of that power seems to them desirable. Never having felt the evils of too weak an executive, the disorders to be apprehended from anarchy make as yet no impression." Elsewhere he comments on their folly in trying to apply to their own necessities systems of government suited to totally different conditions; and mentions his own attitude in the matter: "I have steadily combated the violence and excess of those persons who, either inspired with an enthusiastic love of freedom, or prompted by sinister designs, are disposed

to drive everything to extremity. Our American example has done them good; but, like all novelties, liberty runs away with their discretion, if they have any. They want an American constitution with the exception of a King instead of a President, without reflecting that they have not American citizens to support that constitution.... Whoever desires to apply in the practical science of government those rules and forms which prevail and succeed in a foreign country, must fall into the same pedantry with our young scholars, just fresh from the university, who would fain bring everything to the Roman standard.... The scientific tailor who should cut after Grecian or Chinese models would not have many customers, either in London or Paris; and those who look to America for their political forms are not unlike the tailors in Laputa, who, as Gulliver tells us, always take measures with a quadrant."

He shows again and again his abiding distrust and fear of the French character, as it was at that time, volatile, debauched, ferocious, and incapable of self-restraint. To Lafayette he insisted that the "extreme licentiousness" of the people rendered it indispensable that they should be kept under authority; and on another occasion told him "that the nation was used to being governed, and would have to be governed; and that if he expected to lead them by their affections, he would himself be the dupe." In writing to Washington he painted the outlook in colors that, though black indeed, were not a shade too dark. "The materials for a revolution in this country are very indifferent. Everybody agrees that there is an utter prostration of morals; but this general proposition can never convey to an American mind the degree of depravity. It is not by any figure of rhetoric or force of language that the idea can be communicated. A hundred anecdotes and a hundred thousand examples are required to show the extreme rottenness of every member. There are men and women who are greatly and eminently virtuous. I have the pleasure to number many in my own acquaintance; but they stand forward from a background deeply and darkly shaded. It is however from such crumbling matter that the great edifice of freedom is to be erected here. Perhaps like the stratum of rock which is spread under the whole surface of their country, it may harden when exposed to the air; but it seems quite as likely that it will fall and crush the builders. I own to you that I am not without such apprehensions, for there is one fatal principle which pervades all ranks. It is a perfect indifference to the violation of engagements. Inconstancy is so mingled in the blood,

marrow, and very essence of this people, that when a man of high rank and importance laughs to-day at what he seriously asserted yesterday, it is considered as in the natural order of things. Consistency is a phenomenon. Judge, then, what would be the value of an association should such a thing be proposed and even adopted. The great mass of the common people have no religion but their priests, no law but their superiors, no morals but their interest. These are the creatures who, led by drunken curates, are now on the high road *à la liberté*."

Morris and Washington wrote very freely to each other. In one of his letters, the latter gave an account of how well affairs were going in America (save in Rhode Island, the majority of whose people "had long since bid adieu to every principle of honor, common sense, and honesty"), and then went on to discuss things in France. He expressed the opinion that, if the revolution went no further than it had already gone, France would become the most powerful and happy state in Europe; but he trembled lest, having triumphed in the first paroxysms, it might succumb to others still more violent that would be sure to follow. He feared equally the "licentiousness of the people" and the folly of the leaders, and doubted if they possessed the requisite temperance, firmness, and foresight; and if they did not, then he believed they would run from one extreme to another, and end with "a higher toned despotism than the one which existed before."

Morris answered him with his usual half-satiric humor: "Your sentiments on the revolution here I believe to be perfectly just, because they perfectly accord with my own, and that is, you know, the only standard which Heaven has given us by which to judge," and went on to describe how the parties in France stood. "The king is in effect a prisoner in Paris and obeys entirely the National Assembly. This assembly may be divided into three parts: one, called the *aristocrats*, consists of the high clergy, the members of the law (note, these are not the lawyers) and such of the nobility as think they ought to form a separate order. Another, which has no name, but which consists of all sorts of people, really friends to a good free government. The third is composed of what is here called the *enragés*, that is, the madmen. These are the most numerous, and are of that class which in America is known by the name of pettifogging lawyers; together with ... those persons who in all revolutions throng to the standard of change because they are not well. This last party is in close alliance with the populace here, and they

have already unhinged everything, and, according to custom on such occasions, the torrent rushes on irresistibly until it shall have wasted itself." The *literati* he pronounced to have no understanding whatever of the matters at issue, and as was natural to a shrewd observer educated in the intensely practical school of American political life, he felt utter contempt for the wordy futility and wild theories of the French legislators. "For the rest, they *discuss* nothing in their assembly. One large half of the time is spent in hallooing and bawling."

Washington and Morris were both so alarmed and indignant at the excesses committed by the revolutionists, and so frankly expressed their feelings, as to create an impression in some quarters that they were hostile to the revolution itself. The exact reverse was originally the case. They sympathized most warmly with the desire for freedom, and with the efforts made to attain it. Morris wrote to the President: "We have, I think, every reason to wish that the patriots may be successful. The generous wish that a free people must have to disseminate freedom, the grateful emotion which rejoices in the happiness of a benefactor, the interest we must feel as well in the liberty as in the power of this country, all conspire to make us far from indifferent spectators. I say that we have an *interest* in the liberty of France. The leaders here are our friends. Many of them have imbibed their principles in America, and all have been fired by our example. Their opponents are by no means rejoiced at the success of our revolution, and many of them are disposed to form connections of the strictest kind with Great Britain." Both Washington and Morris would have been delighted to see liberty established in France; but they had no patience with the pursuit of the bloody chimera which the revolutionists dignified with that title. The one hoped for, and the other counseled, moderation among the friends of republican freedom, not because they were opposed to it, but because they saw that it could only be gained and kept by self-restraint. They were, to say the least, perfectly excusable for believing that at that time some form of monarchy, whether under king, dictator, or emperor, was necessary to France. Every one agrees that there are certain men wiser than their fellows; the only question is as to how these men can be best chosen out, and to this there can be no absolute answer. No mode will invariably give the best results; and the one that will come nearest to doing so under given conditions will not work at all under others. Where the people are enlightened and moral they are themselves the ones to choose their rulers;

and such a form of government is unquestionably the highest of any, and the only one that a high-spirited and really free nation will tolerate; but if they are corrupt and degraded, they are unfit for republicanism, and need to be under an entirely different system. The most genuine republican, if he has any common sense, does not believe in a democratic government for every race and in every age.

Morris was a true republican, and an American to the core. He was alike free from truckling subserviency to European opinion,—a degrading remnant of colonialism that unfortunately still lingers in certain limited social and literary circles,—and from the uneasy self-assertion that springs partly from sensitive vanity, and partly from a smothered doubt as to one's real position. Like most men of strong character, he had no taste for the "cosmopolitanism" that so generally indicates a weak moral and mental make-up. He enjoyed his stay in Europe to the utmost, and was intimate with the most influential men and charming women of the time; but he was heartily glad to get back to America, refused to leave it again, and always insisted that it was the most pleasant of all places in which to live. While abroad he was simply a gentleman among gentlemen. He never intruded his political views or national prejudices upon his European friends; but he was not inclined to suffer any imputation on his country. Any question about America that was put in good faith, no matter how much ignorance it displayed, he always answered good-humoredly; and he gives in his Diary some amusing examples of such conversations. Once he was cross-examined by an inquisitive French nobleman, still in the stage of civilization which believes that no man can be paid to render a service to another, especially a small service, and yet retain his self-respect and continue to regard himself as the full political equal of his employer. One of this gentleman's sagacious inquiries was as to how a shoemaker could, in the pride of his freedom, think himself equal to a king, and yet accept an order to make shoes; to which Morris replied that he would accept it as a matter of business, and be glad of the chance to make them, since it lay in the line of his duty; and that he would all the time consider himself at full liberty to criticise his visitor, or the king, or any one else, who lapsed from *his* own duty. After recording several queries of the same nature, and some rather abrupt answers, the Diary for that day closes rather caustically with the comment: "This manner of thinking and speaking, however, is too masculine for the climate I am now in."

In a letter to Washington Morris made one of his usual happy guesses—if forecasting the future by the aid of marvelous insight into human character can properly be called a guess—as to what would happen to France: "It is very difficult to guess whereabouts the flock will settle when it flies so wild; but as far as it is possible to guess this (late) kingdom will be cast into a congeries of little democracies, laid out, not according to rivers, mountains, etc., but with the square and compass according to latitude and longitude," and adds that he thinks so much fermenting matter will soon give the nation "a kind of political colic."

He rendered some services to Washington that did not come in the line of his public duty. One of these was to get him a watch, Washington having written to have one purchased in Paris, of gold, "not a small, trifling, nor a finical ornamental one, but a watch well executed in point of workmanship, large and flat, with a plain, handsome key." Morris sent it to him by Jefferson, "with two copper keys and one golden one, and a box containing a spare spring and glasses." His next service to the great Virginian, or rather to his family, was of a different kind, and he records it with a smile at his own expense. "Go to M. Hudon's; he has been waiting for me a long time. I stand for his statue of General Washington, being the humble employment of a manikin. This is literally taking the advice of St. Paul, to be all things to all men."

He corresponded with many men of note; not the least among whom was the daring corsair, Paul Jones. The latter was very anxious to continue in the service of the people with whom he had cast in his lot, and in command of whose vessels he had reached fame. Morris was obliged to tell him that he did not believe an American navy would be created for some years to come, and advised him meanwhile to go into the service of the Russians, as he expected there would soon be warm work on the Baltic; and even gave him a hint as to what would probably be the best plan of campaign. Paul Jones wanted to come to Paris; but from this Morris dissuaded him. "A journey to this city can, I think, produce nothing but the expense attending it; for neither pleasure nor profit can be expected here, by one of your profession in particular; and, except that it is a more dangerous residence than many others, I know of nothing which may serve to you as an inducement."

CHAPTER VIII.

LIFE IN PARIS.

Although Morris entered into the social life of Paris with all the zest natural to his pleasure-loving character, yet he was far too clear-headed to permit it to cast any glamour over him. Indeed, it is rather remarkable that a young provincial gentleman, from a raw, new, far-off country, should not have had his head turned by being made somewhat of a lion in what was then the foremost city of the civilized world. Instead of this happening, his notes show that he took a perfectly cool view of his new surroundings, and appreciated the over-civilized, aristocratic society, in which he found himself, quite at its true worth. He enjoyed the life of the salon very much, but it did not in the least awe or impress him; and he was of too virile fibre, too essentially a man, to be long contented with it alone. He likewise appreciated the fashionable men, and especially the fashionable women, whom he met there; but his amusing comments on them, as shrewd as they are humorous, prove how little he respected their philosophy, and how completely indifferent he was to their claims to social preëminence.

Much has been written about the pleasure-loving, highly cultured society of eighteenth-century France; but to a man like Morris, of real ability and with an element of sturdiness in his make-up, both the culture and knowledge looked a little like veneering; the polish partook of effeminacy; the pleasure so eagerly sought after could be called pleasure only by people of ignoble ambition; and the life that was lived seemed narrow and petty, agreeable enough for a change, but dreary beyond measure if followed too long. The authors, philosophers, and statesmen of the salon were rarely, almost never, men of real greatness; their metal did not ring true; they were shams, and the life of which they were a part was a sham. Not only was the existence hollow, unwholesome, effeminate, but also in the end tedious: the silent, decorous dullness of life in the dreariest country town is not more insufferable than, after a time, become the endless chatter, the small witticisms, the mock enthusiasms, and vapid affectations of an aristocratic

society as artificial and unsound as that of the Parisian drawing-rooms in the last century.

But all this was delightful for a time, especially to a man who had never seen any city larger than the overgrown villages of New York and Philadelphia. Morris thus sums up his first impressions in a letter to a friend: "A man in Paris lives in a sort of whirlwind, which turns him round so fast that he can see nothing. And as all men and things are in the same vertiginous condition, you can neither fix yourself nor your object for regular examination. Hence the people of this metropolis are under the necessity of pronouncing their definitive judgment from the first glance; and being thus habituated to shoot flying, they have what sportsmen call a quick sight. *Ex pede Herculem*. They know a wit by his snuff-box, a man of taste by his bow, and a statesman by the cut of his coat. It is true that, like other sportsmen, they sometimes miss; but then, like other sportsmen too, they have a thousand excuses besides the want of skill: the fault, you know, may be in the dog, or the bird, or the powder, or the flint, or even the gun, without mentioning the gunner."

Among the most famous of the salons where he was fairly constant in his attendance was that of Madame de Staël. There was not a little contempt mixed with his regard for the renowned daughter of Necker. She amused him, however, and he thought well of her capacity, though in his Diary he says that he never in his life saw "such exuberant vanity" as she displayed about her father, Necker,—a very ordinary personage, whom the convulsions of the time had for a moment thrown forward as the most prominent man in France. By way of instance he mentions a couple of her remarks, one to the effect that a speech of Talleyrand on the church property was "excellent, admirable, in short that there were two pages in it which were worthy of M. Necker;" and another wherein she said that wisdom was a very rare quality, and that she knew of no one who possessed it in a superlative degree except her father.

The first time he met her was after an exciting discussion in the assembly over the finances, which he describes at some length. Necker had introduced an absurd scheme for a loan. Mirabeau, who hated Necker, saw the futility of his plan, but was also aware that popular opinion was blindly in his favor, and that to oppose him would be ruinous; so in a speech of "fine irony" he advocated passing Necker's proposed bill without change or

discussion, avowing that his object was to have the responsibility and glory thrown entirely on the proposer of the measure. He thus yielded to the popular view, while at the same time he shouldered on Necker all the responsibility for a deed which it was evident would in the end ruin him. It was a not very patriotic move, although a good example of selfish political tactics, and Morris sneered bitterly at its adoption by the representatives of a people who prided themselves on being "the modern Athenians." To his surprise, however, even Madame de Staël took Mirabeau's action seriously; she went into raptures over the wisdom of the assembly in doing just what Necker said, for "the only thing they could do was to comply with her father's wish, and there could be no doubt as to the success of her father's plans! Bravo!"

With Morris she soon passed from politics to other subjects. "Presented to Madame de Staël as *un homme d'esprit*," he writes, "she singles me out and makes *a talk*; asks if I have not written a book on the American Constitution. 'Non, madame, j'ai fait mon devoir en assistant à la formation de cette constitution.' 'Mais, monsieur, votre conversation doit être très intéressante, car je vous entends cité de toute parti.' 'Ah, madame, je ne suis pas digne de cette éloge.' How I lost my leg? It was unfortunately not in the military service of my country. 'Monsieur, vous avez l'air très imposant,' and this is accompanied with that look which, without being what Sir John Falstaff calls the 'leer of invitation,' amounts to the same thing.... This leads us on, but in the midst of the chat arrive letters, one of which is from her lover, Narbonne, now with his regiment. It brings her to a little recollection, which a little time will, I think, again banish, and a few interviews would stimulate her to try the experiment of her fascinations even on the native of a new world who has left one of his legs behind him."

An entry in Morris's Diary previous to this conversation shows that he had no very high opinion of this same Monsieur de Narbonne: "He considers a civil war inevitable, and is about to join his regiment, being, as he says, in a conflict between the dictates of his duty and his conscience. I tell him that I know of no duty but that which conscience dictates. I presume that his conscience will dictate to join the strongest side."

Morris's surmises as to his fair friend's happy forgetfulness of her absent lover proved true: she soon became bent on a flirtation with the good-looking American stranger, and when he failed to make any advances she

promptly made them herself; told him that she "rather invited than repelled those who were inclined to be attentive," and capped this exhibition of modest feminine reserve by suggesting that "perhaps he might become an admirer." Morris dryly responded that it was not impossible, but that, as a previous condition, she must agree not to repel him,—which she instantly promised. Afterwards, at dinner, "we become engaged in an animated conversation, and she desires me to speak English, which her husband does not understand. In looking round the room, I observe in him very much emotion, and I tell her that he loves her distractedly, which she says she knows, and that it renders her miserable.... I condole with her a little on her widowhood, the Chevalier de Narbonne being absent in Franche Comté.... She asks me if I continue to think she has a preference for Monsieur de Tonnerre. I reply only by observing that each of them has wit enough for one couple, and therefore I think they had better separate, and take each a partner who is *un peu bête*. After dinner I seek a conversation with the husband, which relieves him. He inveighs bitterly [poor, honest Swede] against the manners of the country, and the cruelty of alienating a wife's affection. I regret with him on general grounds that prostitution of morals which unfits them for good government, and convince him, I think, I shall not contribute to making him any more uncomfortable than he already is." Certainly, according to Morris's evidence, Madame de Staël's sensitive delicacy could only be truthfully portrayed by the unfettered pen of a Smollett.

He was an especial *habitué* of the salon of Madame de Flahaut, the friend of Talleyrand and Montesquieu. She was a perfectly characteristic type; a clever, accomplished little woman, fond of writing romances, and a thorough-paced *intriguante*. She had innumerable enthusiasms, with perhaps a certain amount of sincerity in each, and was a more infatuated political schemer than any of her male friends. She was thoroughly conversant with the politics of both court and assembly; her "precision and justness of thought was very uncommon in either sex," and, as time went on, made her a willing and useful helper in some of Morris's plans. Withal she was a mercenary, self-seeking little personage, bent on increasing her own fortune by the aid of her political friends. Once, when dining with Morris and Talleyrand, she told them in perfect good faith that, if the latter was made minister, "they must be sure to make a million for her."

She was much flattered by the deference that Morris showed for her judgment, and in return let him into not a few state secrets. She and he together drew up a translation of the outline for a constitution for France, which he had prepared, and through her it was forwarded to the king. Together with her two other intimates, Talleyrand and Montesquieu, they made just a party of four, often dining at her house; and when her husband was sent to Spain, the dinners became more numerous than ever, sometimes merely *parties carrées*, sometimes very large entertainments. Morris records that, small or large, they were invariably "excellent dinners, where the conversation was always extremely gay."

Once they planned out a ministry together, and it must be kept in mind that it was quite on the cards that their plan would be adopted. After disposing suitably of all the notabilities, some in stations at home, others in stations abroad, the scheming little lady turned to Morris: "'Enfin,' she says, 'mon ami, vous et moi nous gouvernerons la France.' It is an odd combination, but the kingdom is actually in much worse hands."

This conversation occurred one morning when he had called to find madame at her toilet, with her dentist in attendance. It was a coarse age, for all the gilding; and the coarseness was ingrained in the fibre even of the most ultra sentimental. At first Morris felt perhaps a little surprised at the easy familiarity with which the various ladies whose friend he was admitted him to the privacy of boudoir and bedroom, and chronicles with some amusement the graceful indifference with which one of them would say to him: "Monsieur Morris me permettra de faire ma toilette?" But he was far from being a strait-laced man,—in fact, he was altogether too much the reverse,—and he soon grew habituated to these as well as to much worse customs. However, he notes that the different operations of the toilet "were carried on with an entire and astounding regard to modesty."

Madame de Flahaut was a very charming member of the class who, neither toiling nor spinning, were supported in luxury by those who did both, and who died from want while so doing. At this very time, while France was rapidly drifting into bankruptcy, the fraudulent pensions given to a horde of courtiers, titled placemen, well-born harlots and their offspring, reached the astounding total of two hundred and seventy odd millions of livres. The assembly passed a decree cutting away these pensions right and left, and thereby worked sad havoc in the gay society that nothing could render

serious but immediate and pressing poverty,—not even the loom of the terror ahead, growing darker moment by moment. Calling on his fascinating little friend immediately after the decree was published, Morris finds her "*au désespoir*, and she intends to cry very loud, she says.... She has been in tears all day. Her pensions from Monsieur and the Comte d'Artois are stopped. On that from the king she receives but three thousand francs,—and must therefore quit Paris. I try to console her, but it is impossible. Indeed, the stroke is severe; for, with youth, beauty, wit, and every loveliness, she must quit all she loves, and pass her life with what she abhors." In the time of adversity Morris stood loyally by the friends who had treated him so kindly when the world was a merry one, and things went well with them. He helped them in every way possible; his time and his purse were always at their service; and he performed the difficult feat of giving pecuniary assistance with a tact and considerate delicacy that prevented the most sensitive from taking offense.

He early became acquainted with the Duchess of Orleans, wife of Philippe Egalité, the vicious voluptuary of liberal leanings and clouded character. He met her at the house of an old friend, Madame de Chastellux. At first he did not fancy her, and rather held himself aloof, being uncertain "how he would get on with royalty." The duchess, however, was attracted by him, asked after him repeatedly, made their mutual friends throw them together, and finally so managed that he became one of her constant visitors and attendants. This naturally flattered him, and he remained sincerely loyal to her always afterwards. She was particularly anxious that he should be interested in her son, then a boy, afterwards destined to become the citizen king,—not a bad man, but a mean one, and rather an unkingly king even for the nineteenth century, fertile though it has been in ignoble royalty. Morris's further dealings with this precious youth will have to be considered hereafter.

After his first interview he notes that the duchess was "handsome enough to punish the duke for his irregularities." He also mentioned that she still seemed in love with her husband. However, the lady was not averse to seeking a little sentimental consolation from her new friend, to whom she confided, in their after intimacy, that she was weary at heart and not happy, and—a thoroughly French touch—that she had the "*besoin d'être aimée*." On the day they first met, while he is talking to her, "the widow of the late

Duke of Orleans comes in, and at going away, according to custom, kisses the duchess. I observe that the ladies of Paris are very fond of each other; which gives rise to some observations from her royal highness on the person who has just quitted the room, which show that the kiss does not always betoken great affection. In going away she is pleased to say that she is glad to have met me, and I believe her. The reason is that I dropped some expressions and sentiments a little rough, which were agreeable because they contrasted with the palling polish she meets with everywhere. Hence I conclude that the less I have the honor of such good company the better; for when the novelty ceases all is over, and I shall probably be worse than insipid."

Nevertheless, the "good company" was determined he should make one of their number. He was not very loath himself, when he found he was in no danger of being patronized,—for anything like patronage was always particularly galling to his pride, which was of the kind that resents a tone of condescension more fiercely than an overt insult,—and he became a fast friend of the house of Orleans. The duchess made him her confidant; unfolded to him her woes about the duke; and once, when he was dining with her, complained to him bitterly of the duke's conduct in not paying her allowance regularly. She was in financial straits at the time; for, though she was allowed four hundred and fifty thousand livres a year, yet three hundred and fifty thousand were appropriated for the house-servants, table, etc.,—an item wherein her American friend, albeit not over-frugal, thought a very little economy would result in a great saving.

His description of one of the days he spent at Raincy with the duchess and her friends, gives us not only a glimpse of the life of the great ladies and fine gentlemen of the day, but also a clear insight into the reasons why these same highly polished ladies and gentlemen had utterly lost their hold over the people whose God-given rulers they deemed themselves to be.

Déjeuner à la fourchette was not served till noon,—Morris congratulating himself that he had taken a light breakfast earlier. "After breakfast we go to mass in the chapel. In the tribune above we have a bishop, an abbé, the duchess, her maids and some of their friends. Madame de Chastellux is below on her knees. We are amused above by a number of little tricks played off by Monsieur de Ségur and Monsieur de Cabières with a candle, which is put into the pockets of different gentlemen, the bishop among the

rest, and lighted, while they are otherwise engaged, (for there is a fire in the tribune,) to the great merriment of the spectators. Immoderate laughter is the consequence. The duchess preserves as much gravity as she can. This scene must be very edifying to the domestics who are opposite to us, and the villagers who worship below." The afternoon's amusements were not to his taste. They all walked, which he found very hot; then they got into bateaux, and the gentlemen rowed the ladies, which was still hotter; and then there came more walking, so he was glad to get back to the château. The formal dinner was served after five; the conversation thereat varied between the vicious and the frivolous. There was much bantering, well-bred in manner and excessively under-bred in matter, between the different guests of both sexes, about the dubious episodes in their past careers, and the numerous shady spots in their respective characters. Epigrams and "epitaphs" were bandied about freely, some in verse, some not; probably very amusing then, but their lustre sadly tarnished in the eyes of those who read them now. While they were dining, "a number of persons surround the windows, doubtless from a high idea of the company, to whom they are obliged to look up at an awful distance. Oh, did they but know how trivial the conversation, how very trivial the characters, their respect would soon be changed to an emotion entirely different!"

This was but a month before the Bastille fell; and yet, on the threshold of their hideous doom, the people who had most at stake were incapable not only of intelligent action to ward off their fate, but even of serious thought as to what their fate would be. The men—the nobles, the clerical dignitaries, and the princes of the blood—chose the church as a place wherein to cut antics that would have better befitted a pack of monkeys; while the women, their wives and mistresses, exchanged with them impure jests at their own expense, relished because of the truth on which they rested. Brutes might still have held sway at least for a time; but these were merely vicious triflers. They did not believe in their religion; they did not believe in themselves; they did not believe in anything. They had no earnestness, no seriousness; their sensibilities and enthusiasms were alike affectations. There was still plenty of fire and purpose and furious energy in the hearts of the French people; but these and all the other virile virtues lay not among the noblesse, but among the ranks of the common herd beneath them, down-trodden, bloody in their wayward ferocity, but still capable of fierce, heroic devotion to an ideal in which they believed, and for which

they would spill the blood of others, or pour out their own, with the proud waste of utter recklessness.

Many of Morris's accounts of the literary life of the salon read as if they were explanatory notes to "Les Précieuses Ridicules." There was a certain pretentiousness about it that made it a bit of a sham at the best; and the feebler variety of salon, built on such a foundation, thus became that most despicable of things, an imitation of a pretense. At one of the dinners which Morris describes, the company was of a kind that would have done no discredit to an entertainment of the great social and literary light of Eatanswill. "Set off in great haste to dine with the Comtesse de R., on an invitation of a week's standing. Arrive at about a quarter past three, and find in the drawing-room some dirty linen and no fire. While a waiting-woman takes away one, a valet lights up the other. Three small sticks in a deep bed of ashes give no great expectation of heat. By the smoke, however, all doubts are removed respecting the existence of fire. To expel the smoke, a window is opened, and, the day being cold, I have the benefit of as fresh air as can reasonably be expected in so large a city.

"Towards four o'clock the guests begin to assemble, and I begin to expect that, as madame is a poetess, I shall have the honor to dine with that exalted part of the species who devote themselves to the muses. In effect, the gentlemen begin to compliment their respective works; and, as regular hours cannot be expected in a house where the mistress is occupied more with the intellectual than the material world, I have a delightful prospect of a continuance of the scene. Towards five, madame steps in to announce dinner, and the hungry poets advance to the charge. As they bring good appetites, they have certainly reason to praise the feast. And I console myself with the persuasion that for this day at least I shall escape an indigestion. A very narrow escape, too, for some rancid butter, of which the cook had been liberal, puts me in bodily fear. If the repast is not abundant, we have at least the consolation that there is no lack of conversation. Not being perfectly master of the language, most of the jests escaped me. As for the rest of the company, each being employed either in saying a good thing, or else in studying one to say, it is no wonder if he cannot find time to applaud that of his neighbors. They all agree that we live in an age alike deficient in justice and in taste. Each finds in the fate of his own works numerous instances to justify this censure. They tell me, to my great

surprise, that the public now condemn theatrical compositions before they have heard the first recital. And, to remove my doubts, the comtesse is so kind as to assure me that this rash decision has been made on one of her own pieces. In pitying modern degeneracy, we rise from the table.

"I take my leave immediately after the coffee, which by no means dishonors the precedent repast; and madame informs me that on Tuesdays and Thursdays she is always at home, and will always be glad to see me. While I stammer out some return to the compliment, my heart, convinced of my unworthiness to partake of such attic entertainments, makes me promise never again to occupy the place from which perhaps I had excluded a worthier personage."

Among Morris's other qualities, he was the first to develop that peculiarly American vein of humor which is especially fond of gravely pretending to believe without reserve some preposterously untrue assertion,—as throughout the above quotation.

Though the society in which he was thrown interested him, he always regarded it with half-sarcastic amusement, and at times it bored him greatly. Meditating on the conversation in "this upper region of wits and graces," he concludes that "the sententious style" is the one best fitted for it, and that in it "observations with more of justice than splendor cannot amuse," and sums up by saying that "he could not please, because he was not sufficiently pleased."

His comments upon the various distinguished men he met are always interesting, on account of the quick, accurate judgment of character which they show. It was this insight into the feelings and ideas alike of the leaders and of their followers which made his political predictions often so accurate. His judgment of many of his contemporaries comes marvelously near the cooler estimate of history.

He was originally prejudiced in favor of the king, poor Louis XVI., and, believing him "to be an honest and good man, he sincerely wished him well," but he very soon began to despise him for his weakness. This quality was the exact one that under existing circumstances was absolutely fatal; and Morris mentions it again and again, pronouncing the king "a well-meaning man, but extremely weak, without genius or education to show the way towards that good which he desires," and "a prince so weak that he can

influence very little either by his presence or absence." Finally, in a letter to Washington, he gives a biting sketch of the unfortunate monarch. "If the reigning prince were not the small-beer character that he is, there can be but little doubt that, watching events and making a tolerable use of them, he would regain his authority; but what will you have from a creature who, situated as he is, eats and drinks, sleeps well and laughs, and is as merry a grig as lives? The idea that they will give him some money, which he can economize, and that he will have no trouble in governing, contents him entirely. Poor man! He little thinks how unstable is his situation. He is beloved, but it is not with the sort of love which a monarch should inspire. It is that kind of good-natured pity which one feels for a led captive. There is besides no possibility of serving him, for at the slightest show of opposition he gives up everything and every person." Morris had too robust a mind to feel the least regard for mere amiability and good intentions when unaccompanied by any of the ruder, manlier virtues.

The Count d'Artois had "neither sense to counsel himself, nor to choose counsellors for himself, much less to counsel others." This gentleman, afterwards Charles X., stands as perhaps the most shining example of the monumental ineptitude of his royal house. His fellow Bourbon, the amiable Bomba of Naples, is his only equal for dull silliness, crass immorality, and the lack of every manly or kingly virtue. Democracy has much to answer for, but after all it would be hard to find, even among the aldermen of New York and Chicago, men whose moral and mental shortcomings would put them lower than this royal couple. To our shame be it said, our system of popular government once let our greatest city fall under the control of Tweed; but it would be rank injustice to that clever rogue to compare him with the two vicious dullards whom the opposite system permitted to tyrannize at Paris and Naples. Moreover, in the end, we of the democracy not only overthrew the evil-doer who oppressed us, but also put him in prison; and in the long run we have usually meted out the same justice to our lesser criminals. Government by manhood suffrage shows at its worst in large cities; and yet even in these experience certainly does not show that a despotism works a whit better, or as well.

Morris described the Count de Montmorin pithily, saying: "He has more understanding than people in general imagine, and he means well, very well, but he means it feebly."

When Morris came to France, Necker was the most prominent man in the kingdom. He was a hard-working, well-meaning, conceited person, not in the least fitted for public affairs, a banker but not a financier, and affords a beautiful illustration of the utter futility of the popular belief that a good business man will necessarily be a good statesman. Accident had made him the most conspicuous figure of the government, admired and hated, but not looked down upon; yet Morris saw through him at a glance. After their first meeting, he writes down in his diary: "He has the look and manner of the counting-house, and, being dressed in embroidered velvet, he contrasts strongly with his habiliments. His bow, his address, say, 'I am the man.' ... If he is really a very great man, I am deceived; and yet this is a rash judgment. If he is not a laborious man, I am also deceived." He soon saw that both the blame and the praise bestowed on him were out of all proportion to his consequence, and he wrote: "In their anguish [the nobles] curse Necker, who is in fact less the cause than the instrument of their sufferings. His popularity depends now more on the opposition he meets with from one party than any serious regard of the other. It is the attempt to throw him down which saves him from falling; ... as it is, he must soon fall." To Washington he gave a fuller analysis of his character. "As to M. Necker, he is one of those people who has obtained a much greater reputation than he has any right to.... In his public administration he has always been honest and disinterested; which proves well, I think, for his former private conduct, or else it proves that he has more vanity than cupidity. Be that as it may, an unspotted integrity as minister, and serving at his own expense in an office which others seek for the purpose of enriching themselves, have acquired for him very deservedly much confidence. Add to this that his writings on finance teem with that sort of sensibility which makes the fortune of modern romances, and which is exactly suited to this lively nation, who love to read but hate to think. Hence his reputation. He ... [has not] the talents of a great minister. His education as a banker has taught him to make tight bargains, and put him upon his guard against projects. But though he understands man as a covetous creature, he does not understand mankind,—a defect which is remediless. He is utterly ignorant of politics, by which I mean politics in the great sense, or that sublime science which embraces for its object the happiness of mankind. Consequently he neither knows what constitution to form, nor how to obtain the consent of others to such as he wishes. From the moment of convening the states-general, he has been

afloat upon the wide ocean of incidents. But what is most extraordinary is that M. Necker is a very poor financier. This I know will sound like heresy in the ears of most people, but it is true. The plans he has proposed are feeble and inept."

A far more famous man, Talleyrand, then Bishop of Autun, he also gauged correctly from the start, writing down that he appeared to be "a sly, cool, cunning, ambitious, and malicious man. I know not why conclusions so disadvantageous to him are formed in my mind, but so it is, and I cannot help it." He was afterwards obliged to work much in common with Talleyrand, for both took substantially the same view of public affairs in that crisis, and were working for a common end. Speaking of his new ally's plan respecting church property, he says: "He is bigoted to it, and the thing is well enough; but the mode is not so well. He is attached to this *as an author*, which is not a good sign for a man of business." And again he criticises Talleyrand's management of certain schemes for the finances, as showing a willingness "to sacrifice great objects for the sake of small ones ... an inverse ratio of moral proportion."

Morris was fond of Lafayette, and appreciated highly his courage and keen sense of honor; but he did not think much of his ability, and became at times very impatient with his vanity and his impractical theories. Besides, he deemed him a man who was carried away by the current, and could neither stem nor guide it. "I have known my friend Lafayette now for many years, and can estimate at the just value both his words and actions. He means ill to no one, but he is very much below the business he has undertaken; and if the sea runs high, he will be unable to hold the helm." And again, in writing to Washington: "Unluckily he has given in to measures ... which he does not heartily approve, and he heartily approves many things which experience will demonstrate to be dangerous."

The misshapen but mighty genius of Mirabeau he found more difficulty in estimating; he probably never rated it quite high enough. He naturally scorned a man of such degraded debauchery, who, having been one of the great inciters to revolution, had now become a subsidized ally of the court. He considered him "one of the most unprincipled scoundrels that ever lived," although of "superior talents," and "so profligate that he would disgrace any administration," besides having so little principle as to make it unsafe to trust him. After his death he thus sums him up: "Vices both

degrading and detestable marked this extraordinary being. Completely prostitute, he sacrificed everything to the whim of the moment;—*cupidus alieni prodigus sui*; venal, shameless; and yet greatly virtuous when pushed by a prevailing impulse, but never truly virtuous, because never under the steady control of reason, nor the firm authority of principle. I have seen this man, in the short space of two years, hissed, honored, hated, mourned. Enthusiasm has just now presented him gigantic. Time and reflection will sink this stature." Even granting this to be wholly true, as it undoubtedly is in the main, it was nevertheless the fact that in Mirabeau alone lay the least hope of salvation for the French nation; and Morris erred in strenuously opposing Lafayette's going into a ministry with him. Indeed, he seems in this case to have been blinded by prejudice, and certainly acted very inconsistently; for his advice, and the reasons he gave for it, were completely at variance with the rules he himself laid down to Lafayette, with even more cynicism than common sense, when the latter once made some objections to certain proposed coadjutors of his: "I state to him ... that, as to the objections he has made on the score of morals in some, he must consider that men do not go into an administration as the direct road to heaven; that they are prompted by ambition or avarice, and therefore that the only way to secure the most virtuous is by making it their interest to act rightly."

Morris thus despised the king, and distrusted the chief political leaders; and, as he wrote Washington, he was soon convinced that there was an immense amount of corruption in the upper circles. The people at large he disliked even more than he did their advisers, and he had good grounds, too, as the following extract from his journal shows: "July 22d. After dinner, walk a little under the arcade of the Palais Royal, waiting for my carriage. In this period the head and body of M. de Toulon are introduced in triumph, the head on a pike, the body dragged naked on the earth. Afterwards this horrible exhibition is carried through the different streets. His crime is, to have accepted a place in the ministry. This mutilated form of an old man of seventy-five is shown to his son-in-law, Berthier, the intendant of Paris; and afterwards he also is put to death and cut to pieces, the populace carrying about the mangled fragments with a savage joy. Gracious God, what a people!"

He describes at length, and most interestingly, the famous opening of the states-general, "the beginning of the Revolution." He eyed this body even at the beginning with great distrust; and he never thought that any of the delegates showed especial capacity for grappling with the terrible dangers and difficulties by which they were encompassed. He comments on the extreme enthusiasm with which the king was greeted, and sympathizes strongly with Marie Antoinette, who was treated with studied and insulting coldness. "She was exceedingly hurt. I cannot help feeling the mortification which the poor queen meets with, for I see only the woman; and it seems unmanly to treat a woman with unkindness.... Not one voice is heard to wish her well. I would certainly raise mine if I were a Frenchman; but I have no right to express a sentiment, and in vain solicit those who are near me to do it." ... At last "the queen rises, and, to my great satisfaction, she hears, for the first time in several months, the sound of '*Vive la reine!*' She makes a low courtesy, and this produces a louder acclamation, and that a lower courtesy."

The sympathy was for the woman, not the queen, the narrow-minded, absolute sovereign, the intriguer against popular government, whose policy was as heavily fraught with bale for the nation as was that of Robespierre himself. The king was more than competent to act as his own evil genius; had he not been, Marie Antoinette would have amply filled the place.

He characterized the carrying of "that diabolical castle," the Bastille, as "among the most extraordinary things I have met with." The day it took place he wrote in his journal, with an irony very modern in its flavor: "Yesterday it was the fashion at Versailles not to believe that there were any disturbances at Paris. I presume that this day's transactions will induce a conviction that all is not perfectly quiet."

He used the Bastille as a text when, shortly afterwards, he read a brief lesson to a certain eminent painter. The latter belonged to that class of artists with pen or pencil (only too plentiful in America at the present day) who always insist on devoting their energies to depicting subjects worn threadbare by thousands of predecessors, instead of working in the new, broad fields, filled with picturesque material, opened to them by their own country and its history. "The painter shows us a piece he is now about for the king, taken from the *Æneid*: Venus restraining the arm which is raised in the temple of

the Vestals to shed the blood of Helen. I tell him he had better paint the storm of the Bastile."

CHAPTER IX.

MISSION TO ENGLAND: RETURN TO PARIS.

In March, 1790, Morris went to London, in obedience to a letter received from Washington appointing him private agent to the British government, and enclosing him the proper credentials.

Certain of the conditions of the treaty of peace between Great Britain and the United States, although entered into seven years before, were still unfulfilled. It had been stipulated that the British should give up the fortified frontier posts within our territory, and should pay for the negroes they had taken away from the Southern States during the war. They had done neither, and Morris was charged to find out what the intentions of the government were in the matter. He was also to find out whether there was a disposition to enter into a commercial treaty with the United States; and finally, he was to sound them as to their sending a minister to America.

On our part we had also failed to fulfil a portion of our treaty obligations, not having complied with the article which provided for the payment of debts due before the war to British merchants. Both sides had been to blame; each, of course, blamed only the other. But now, when we were ready to perform our part, the British refused to perform theirs.

As a consequence, Morris, although he spent most of the year in London, failed to accomplish anything. The feeling in England was hostile to America; to the king, in particular, the very name was hateful. The English were still sore over their defeat, and hated us because we had been victors; and yet they despised us also, for they thought we should be absolutely powerless except when we were acting merely on the defensive. From the days of the Revolution till the days of the Civil War, the ruling classes of England were bitterly antagonistic to our nation; they always saw with glee any check to our national well-being: they wished us ill, and exulted in our misfortunes, while they sneered at our successes. The results have been lasting, and now work much more to their hurt than to ours. The past conduct of England certainly offers much excuse for, though it cannot in the

least justify, the unreasonable and virulent anti-English feeling—that is, the feeling against Englishmen politically and nationally, not socially or individually—which is so strong in many parts of our country where the native American blood is purest.

The English ministry in 1790 probably had the general feeling of the nation behind them in their determination to injure us as much as they could; at any rate, their aim seemed to be, as far as lay in them, to embitter our already existing hostility to their empire. They not only refused to grant us any substantial justice, but they were inclined to inflict on us and on our representatives those petty insults which rankle longer than injuries.

When it came to this point, however, Morris was quite able to hold his own. He had a ready, biting tongue; and, excepting Pitt and Fox, was intellectually superior to any of the public men whom he met. In social position, even as they understood it, he was their equal; they could hardly look down on the brother of a British major-general, and a brother-in-law of the Duchess of Gordon. He was a man of rather fiery courage, and any attacks upon his country were not likely to be made twice in his presence. Besides, he never found the English congenial as friends or companions; he could not sympathize, or indeed get along well, with them. This distaste for their society he always retained, and though he afterwards grew to respect them, and to be their warm partisan politically, he was at this time much more friendly to France, and was even helping the French ministers concoct a scheme of warfare against their neighbor. To his bright, impatient temperament, the English awkwardness seemed to be an insuperable obstacle to bringing people together "as in other countries." He satirized the English drawing-rooms, "where the arrangement of the company was stiff and formal, the ladies all ranged in battalia on one side of the room;" and remarked "that the French, having no liberty in their government, have compensated to themselves that misfortune by bestowing a great deal upon society. But that, I fear, in England, is all confined to the House of Commons." Years afterwards he wrote to a friend abroad: "Have you reflected that there is more of real society in one week at [a Continental watering-place] than in a London year? Recollect that a tedious morning, a great dinner, a boozy afternoon, and dull evening make the sum total of English life. It is admirable for young men who shoot, hunt, drink,—but for us! How are we to dispose of ourselves? No. Were I to give you a

rendezvous in Europe, it should be on the continent. I respect, as you know, the English nation highly, and love many individuals among them, but I do not love their manners." Times have changed, and the manners of the Islanders with them. Exactly as the "rude Carinthian boor" has become the most polished of mortals, so, after a like transformation, English society is now perhaps the pleasantest and most interesting in Europe. Were Morris alive to-day, he would probably respect the English as much as he ever did, and like them a good deal more; and, while he might well have his preference for his own country confirmed, yet, if he had to go abroad, it is hard to believe that he would now pass by London in favor of any continental capital or watering-place.

In acknowledging Washington's letter of appointment, Morris wrote that he did not expect much difficulty, save from the king himself, who was very obstinate, and bore a personal dislike to his former subjects. But his interviews with the minister of foreign affairs, the Duke of Leeds, soon undeceived him. The duke met him with all the little tricks of delay, and evasion, known to old-fashioned diplomacy; tricks that are always greatly relished by men of moderate ability, and which are successful enough where the game is not very important, as in the present instance, but are nearly useless when the stakes are high and the adversary determined. The worthy nobleman was profuse in expressions of general good-will, and vague to a degree in his answers to every concrete question; affected to misunderstand what was asked of him, and, when he could not do this "slumbered profoundly" for weeks before making his reply. Morris wrote that "his explanatory comments were more unintelligible than his texts," and was delighted when he heard that he might be replaced by Lord Hawksbury; for the latter, although strongly anti-American, "would at least be an efficient minister," whereas the former was "evidently afraid of committing himself by saying or doing anything positive." He soon concluded that Great Britain was so uncertain as to how matters were going in Europe that she wished to keep us in a similar state of suspense. She had recovered with marvelous rapidity from the effects of the great war; she was felt on all sides to hold a position of commanding power; this she knew well, and so felt like driving a very hard bargain with any nation, especially with a weak one that she hated. It was particularly difficult to form a commercial treaty. There were very many Englishmen who agreed with a Mr. Irwin, "a mighty sour sort of creature," who assured Morris that he was

utterly opposed to all American trade in grain, and that he wished to oblige the British people, by the force of starvation, to raise enough corn for their own consumption. Fox told Morris that he and Burke were about the only two men left who believed that Americans should be allowed to trade in their own bottoms to the British Islands; and he also informed him that Pitt was not hostile to America, but simply indifferent, being absorbed in European matters, and allowing his colleagues free hands.

Becoming impatient at the long-continued delay, Morris finally wrote, very courteously but very firmly, demanding some sort of answer, and this produced a momentary activity, and assurances that he was under a misapprehension as to the delay, etc. The subject of the impressment of American sailors into British men-of-war,—a matter of chronic complaint throughout our first forty years of national life,—now came up; and he remarked to the Duke of Leeds, with a pithy irony that should have made the saying famous: "I believe, my lord, that this is the only instance in which we are not treated as aliens." He proposed a plan which would have at least partially obviated the difficulties in the way of a settlement of the matter, but the duke would do nothing. Neither would he come to any agreement in reference to the exchange of ministers between the two countries.

Then came an interview with Pitt, and Morris, seeing how matters stood, now spoke out perfectly clearly. In answer to the accusations about our failure wholly to perform certain stipulations of the treaty, after reciting the counter accusations of the Americans, he brushed them all aside with the remark: "But, sir, what I have said tends to show that these complaints and inquiries are excellent if the parties mean to keep asunder; if they wish to come together, all such matters should be kept out of sight." He showed that the House of Representatives, in a friendly spirit, had recently decided against laying extraordinary restrictions on British vessels in our ports. "Mr. Pitt said that, instead of restrictions, we ought to give them particular privileges, in return for those we enjoy here. I assured him that I knew of none except that of being impressed, a privilege which of all others we least wished to partake of.... Mr. Pitt said seriously that they had certainly evinced good-will to us by what they had done respecting our commerce. I replied therefore, with like seriousness, that their regulations had been dictated with a view to their own interests; and therefore, as we felt no

favor, we owed no obligation." Morris realized thoroughly that they were keeping matters in suspense because their behavior would depend upon the contingencies of war or peace with the neighboring powers; he wished to show that, if they acted thus, we would also bide our time till the moment came to strike a telling blow; and accordingly he ended by telling Pitt, with straightforward directness, a truth that was also a threat: "We do not think it worth while to go to war with you for the [frontier] forts; but we know our rights, and will avail ourselves of them when time and circumstances may suit."

After this conversation he became convinced that we should wait until England herself felt the necessity of a treaty before trying to negotiate one. He wrote Washington "that those who, pursuing the interests of Great Britain, wish to be on the best terms with America, are outnumbered by those whose sour prejudice and hot resentment render them averse to any intercourse except that which may immediately subserve a selfish policy. These men do not yet know America. Perhaps America does not yet know herself.... We are yet in but the seeding-time of national prosperity, and it will be well not to mortgage the crop before it is gathered.... England will not, I am persuaded, enter into a treaty with us unless we give for it more than it is worth now, and infinitely more than it will be worth hereafter. A present bargain would be that of a young heir with an old usurer.... But, should war break out [with a European power], the anti-American party here will agree to *any* terms; for it is more the taste of the medicine which they nauseate than the quantity of the dose."

Accordingly all negotiations were broken off. In America his enemies blamed Morris for this failure. They asserted that his haughty manners and proud bearing had made him unpopular with the ministers, and that his consorting with members of the opposition had still further damaged his cause. The last assertion was wholly untrue; for he had barely more than met Fox and his associates. But on a third point there was genuine reason for dissatisfaction. Morris had confided his purpose to the French minister at London, M. de la Luzerne, doing so because he trusted to the latter's honor, and did not wish to seem to take any steps unknown to our ally; and he was in all probability also influenced by his constant association and intimacy with the French leaders. Luzerne, however, promptly used the information for his own purposes, letting the English ministers know that he

was acquainted with Morris's objects, and thus increasing the weight of France by making it appear that America acted only with her consent and advice. The affair curiously illustrates Jay's wisdom eight years before, when he insisted on keeping Luzerne's superior at that time, Vergennes, in the dark as to our course during the peace negotiations. However, it is not at all likely that Mr. Pitt or the Duke of Leeds were influenced in their course by anything Luzerne said.

Leaving London, Morris made a rapid trip through the Netherlands and up the Rhine. His journals, besides the usual comments on the inns, the bad roads, poor horses, sulky postilions, and the like, are filled with very interesting observations on the character of the country through which he passed, its soil and inhabitants, and the indications they afforded of the national resources. He liked to associate with people of every kind, and he was intensely fond of natural scenery; but, what seems rather surprising in a man of his culture, he apparently cared very little for the great cathedrals, the picture galleries, and the works of art for which the old towns he visited were so famous.

He reached Paris at the end of November, but was almost immediately called to London again, returning in January, 1791, and making three or four similar trips in the course of the year. His own business affairs took up a great deal of his time. He was engaged in very many different operations, out of which he made a great deal of money, being a shrewd business man with a strong dash of the speculator. He had to prosecute a suit against the farmers-general of France for a large quantity of tobacco shipped them by contract; and he gives a very amusing description of the visits he made to the judges before whom the case was to be tried. Their occupations were certainly various, being those of a farrier, a goldsmith, a grocer, a currier, a woolen draper, and a bookseller respectively. As a sample of his efforts, take the following: "Return home and dine. At five resume my visits to my judges, and first wait upon the honorable M. Gillet, the grocer, who is in a little cuddy adjoining his shop, at cards. He assures me that the court are impartial, and alike uninfluenced by farmers, receivers, and grand seigneurs; that they are generally of the same opinion; that he will do everything in his power; and the like. *De l'autre côté*, perfect confidence in the ability and integrity of the court. Wish only to bring the cause to such a point as that I may have the honor to present a memorial. Am vastly sorry to

have been guilty of an intrusion upon the amusements of his leisure hours. Hope he will excuse the solicitude of a stranger, and patronize a claim of such evident justice. The whole goes off very well, though I with difficulty restrain my risible faculties.... A disagreeable scene, the ridicule of which is so strongly painted to my own eyes that I cannot forbear laughing."

He also contracted to deliver Necker twenty thousand barrels of flour for the relief of Paris; wherein, by the way, he lost heavily. He took part in sundry shipping operations. Perhaps the most lucrative business in which he was engaged was in negotiating the sale of wild lands in America. He even made many efforts to buy the Virginian and Pennsylvanian domains of the Fairfaxes and the Penns. On behalf of a syndicate, he endeavored to purchase the American debts to France and Spain; these being purely speculative efforts, as it was supposed that the debts could be obtained at quite a low figure, while, under the new Constitution, the United States would certainly soon make arrangements for paying them off. These various operations entailed a wonderful amount of downright hard work; yet all the while he remained not only a close observer of French politics, but, to a certain extent, even an actor in them.

He called upon Lafayette as soon as he was again established in Paris, after his mission to London. He saw that affairs had advanced to such a pitch in France that "it was no longer a question of liberty, but simply who shall be master." He had no patience with those who wished the king to place himself, as they phrased it, at the head of the Revolution, remarking: "The trade of a revolutionist appears to me a hard one for a prince." What with the folly of one side and the madness of the other, things were going to pieces very rapidly. At one of his old haunts, the club, the "sentiment aristocratique" had made great headway: one of his friends, De Moustin, now in favor with the king and queen, was "as usual on the high ropes of royal prerogative." Lafayette, however, was still wedded to his theories, and did not appear over-glad to see his American friend, all whose ideas and habits of thought were so opposed to his own; while madame was still cooler in her reception. Morris, nothing daunted, talked to his friend very frankly and seriously. He told him that the time had come when all good citizens would be obliged, simply from lack of choice, to cling to the throne; that the executive must be strengthened, and good and able men put into the council. He pronounced the "thing called a constitution" good for

nothing, and showed that the National Assembly was rapidly falling into contempt. He pointed out, for the hundredth time, that each country needed to have its own form of government; that an American constitution would not do for France, for the latter required an even higher-toned system than that of England; and that, above all things, France needed stability. He gave the reasons for his advice clearly and forcibly; but poor Lafayette flinched from it, and could not be persuaded to take any effectual step.

It is impossible to read Morris's shrewd comments on the events of the day, and his plans in reference to them, without wondering that France herself should at the crisis have failed to produce any statesmen to be compared with him for force, insight, and readiness to do what was practically best under the circumstances; but her past history for generations had been such as to make it out of the question for her to bring forth such men as the founders of our own government. Warriors, lawgivers, and diplomats she had in abundance. Statesmen who would be both hard-headed and true-hearted, who would be wise and yet unselfish, who would enact laws for a free people that would make that people freer still, and yet hinder them from doing wrong to their neighbors,—statesmen of this order she neither had nor could have had. Indeed, had there been such, it may well be doubted if they could have served France. With a people who made up in fickle ferocity what they lacked in self-restraint, and a king too timid and short-sighted to turn any crisis to advantage, the French statesmen, even had they been as wise as they were foolish, would hardly have been able to arrest or alter the march of events. Morris said bitterly that France was the country where everything was talked of, and where hardly anything was understood.

He told Lafayette that he thought the only hope of the kingdom lay in a foreign war; it is possible that the idea may have been suggested to him by Lafayette's naive remark that he believed his troops would readily follow him into action, but that they would not mount guard when it rained. Morris not only constantly urged the French ministers to make war, but actually drew up a plan of campaign for them. He believed it would turn the popular ardor, now constantly inflamed against the aristocrats, into a new channel, and that "there was no word perhaps in the dictionary which would take the place of *aristocrat* so readily as *Anglais*." In proof of the wisdom of his propositions he stated, with absolute truthfulness: "If Britain had declared

war in 1774 against the house of Bourbon, the now United States would have bled freely in her cause." He was disgusted with the littleness of the men who, appalled at their own surroundings, and unable to make shift even for the moment, found themselves thrown by chance to the helm, and face to face with the wildest storm that had ever shaken a civilized government. Speaking of one of the new ministers, he remarked: "They say he is a good kind of man, which is saying very little;" and again, "You want just now great men, to pursue great measures." Another time, in advising a war,—a war of men, not of money,—and speaking of the efforts made by the neighboring powers against the revolutionists in Flanders, he told his French friends that they must either suffer for or with their allies; and that the latter was at once the noblest and the safest course.

In a letter to Washington he drew a picture of the chaos as it really was, and at the same time, with wonderful clear-sightedness, showed the great good which the change was eventually to bring to the mass of the people. Remembering how bitter Morris's feelings were against the revolutionists, it is extraordinary that they did not blind him to the good that would in the long run result from their movement. Not another statesman would have been able to set forth so clearly and temperately the benefits that would finally come from the convulsions he saw around him, although he rightly believed that these benefits would be even greater could the hideous excesses of the revolutionists be forthwith stopped and punished.

His letter runs: "This unhappy country, bewildered in the pursuit of metaphysical whimsies, presents to our moral view a mighty ruin.... The sovereign, humbled to the level of a beggar without pity, without resources, without authority, without a friend. The Assembly, at once a master and a slave, new in power, wild in theory, raw in practice. It engrosses all functions, though incapable of exercising any, and has taken from this fierce, ferocious people every restraint of religion and of respect." Where this would all end, or what sum of misery would be necessary to change the popular will and awaken the popular heart, he could not say. A glorious opportunity had been lost, and for the time being the Revolution had failed. Yet, he went on to say, in the consequences flowing from it he was confident he could see the foundation of future prosperity. For among these consequences were,—1. The abolition of the different rights and privileges which had formerly kept the various provinces asunder; 2. The abolition of

feudal tyranny, by which the tenure of real property would be simplified, and the rent no longer be dependent upon idle vanity, capricious taste, or sullen pride; 3. The throwing into the circle of industry those vast possessions formerly held by the clergy in mortmain, wealth conferred upon them as wages for their idleness; 4. The destruction of the system of venal jurisprudence which had established the pride and privileges of the few on the misery and degradation of the general mass; 5. Above all, the establishment of the principles of true liberty, which would remain as solid facts after the superstructure of metaphysical froth and vapor should have been blown away. Finally, "from the chaos of opinion and the conflict of its jarring elements a new order will at length arise, which, though in some degree the child of chance, may not be less productive of human happiness than the forethought provisions of human speculation." Not one other contemporary statesman could have begun to give so just an estimate of the good the Revolution would accomplish; no other could have seen so deeply into its ultimate results, while also keenly conscious of the dreadful evil through which these results were being worked out.

The social life of Paris still went on, though with ever less of gayety, as the gloom gathered round about. Going with Madame de Chastellux to dine with the Duchess of Orleans, Morris was told by her royal highness that she was "ruined," that is, that her income was reduced from four hundred and fifty thousand to two hundred thousand livres a year, so that she could no longer give him good dinners; but if he would come and fast with her, she would be glad to see him. The poor lady was yet to learn by bitter experience that real ruin was something very different from the loss of half of an enormous income.

On another occasion he breakfasted with the duchess, and was introduced to her father, with whom he agreed to dine. After breakfast she went out walking with him till nearly dinner-time, and gave him the full history of her breach with her husband, Egalité, showing the letters that had passed between them, complaining of his numerous misdeeds, and assuring Morris that what the world had attributed to fondness for her worthless spouse was merely discretion; that she had hoped to bring him to a decent and orderly behavior, but had finally made up her mind that he could only be governed by fear.

Now and then he indulges in a quiet laugh at the absurd pretensions and exaggerated estimates of each other still affected by some of the frequenters of the various salons. "Dine with Madame de Staël. The Abbé Sieyès is here, and descants with much self-sufficiency on government, despising all that has been said or sung on that subject before him; and madame says that his writings and opinions will form in politics a new era, like those of Newton in physics."

After dining with Marmontel, he notes in his Diary that his host "thinks soundly,"—rare praise for him to bestow on any of the French statesmen of the time. He records a *bon mot* of Talleyrand's. When the Assembly had declared war on the emperor conditionally upon the latter's failing to beg pardon before a certain date, the little bishop remarked that "the nation was *une parvenue*, and of course insolent." At the British ambassador's he met the famous Colonel Tarleton, who did not know his nationality, and amused him greatly by descanting at length on the American war.

He was very fond of the theatre, especially of the Comédie Française, where Préville, whom he greatly admired, was acting in Molière's "Amphitryon." Many of the plays, whose plots presented in any way analogies to what was actually happening in the political world, raised great excitement among the spectators. Going to see "Brutus" acted, he records that the noise and altercations were tremendous, but that finally the democrats in the parterre got the upper hand by sheer lusty roaring, which they kept up for a quarter of an hour at a time, and, at the conclusion of the piece, insisted upon the bust of Voltaire being crowned and placed on the stage. Soon afterwards a tragedy called "Charles Neuf," founded on the massacre of St. Bartholomew, was put on the stage, to help the Assembly in their crusade against the clergy; he deemed it a very extraordinary piece to be represented in a Catholic country, and thought that it would give a fatal blow to the Catholic religion.

The priesthood, high and low, he disliked more than any other set of men; all his comments on them show his contempt. The high prelates he especially objected to. The Bishop of Orleans he considered to be a luxurious old gentleman, "of the kind whose sincerest prayer is for the fruit of good living, one who evidently thought it more important to *speak* than to speak the *truth*." The leader of the great church dignitaries, in their fight for their rich benefices, was the Abbé Maury, who, Morris writes, "is a man

who looks like a downright ecclesiastical scoundrel." He met him in Madame de Nadaillac's salon, where were "a party of fierce aristocrats. They have the word 'valet' written on their foreheads in large characters. Maury is formed to govern such men, and they are formed to obey him or any one else. But Maury seems to have too much vanity for a great man." To tell the bare truth is sometimes to make the most venomous comment possible, and this he evidently felt when he wrote of his meeting with the Cardinal de Rohan: "We talk among other things about religion, for the cardinal is very devout. He was once the lover of Madame de Flahaut's sister."

But as the tremendous changes went on about him, Morris had continually less and less time to spend in mere social pleasures; graver and weightier matters called for his attention, and his Diary deals with the shifts and stratagems of the French politicians, and pays little heed to the sayings and manners of nobles, bishops, and ladies of rank.

The talented, self-confident, fearless American, admittedly out of sympathy with what he called "this abominable populace," was now well known; and in their terrible tangle of dangers and perplexities, court and ministry alike turned to him for help. Perhaps there has hardly been another instance where, in such a crisis, the rulers have clutched in their despair at the advice of a mere private stranger sojourning in the land on his own business. The king and his ministers, as well as the queen, kept in constant communication with him. With Montmorin he dined continually, and was consulted at every stage. But he could not prevail on them to adopt the bold, vigorous measures he deemed necessary; his plain speaking startled them, and they feared it would not suit the temper of the people. He drafted numerous papers for them, among others a royal speech, which the king liked, but which his ministers prevented him from using. In fact, it had grown to be hopeless to try to help the court; for the latter pursued each course by fits and starts, now governed by advice from Coblenz, now by advice from Brussels, and then for a brief spasm going its own gait. All the while the people at large knew their own minds no better than poor Louis knew his, and cheered him with fervent ecstasy one day, only to howl at him with malignant fury the next. With such a monarch and such subjects it is not probable that any plan would have worked well; but Morris's was the ablest as well as the boldest and best defined of the many that were offered

to the wretched, halting king; and had his proposed policy been pursued, things might have come out better, and they could not possibly have come out worse.

All through these engrossing affairs, he kept up the liveliest interest in what was going on in his own country, writing home shrewd observations on every step taken. One of his remarks deserves to be kept in mind. In speaking of the desire of European nations to legislate against the introduction of our produce, he says that this effort has after all its bright side; because it will force us "to make great and rapid progress in useful manufactures. This alone is wanting to complete our independence. We shall then be, as it were, a world by ourselves."

CHAPTER X.

MINISTER TO FRANCE.

In the spring of 1792, Morris received his credentials as minister to France. There had been determined opposition in the Senate to the confirmation of his appointment, which was finally carried only by a vote of sixteen to eleven, mainly through the exertions of Rufus King. His opponents urged the failure of the British negotiations, the evidences repeatedly given of his proud, impatient spirit, and above all his hostility to the French Revolution, as reasons why he should not be made minister. Washington, however, as well as Hamilton, King, and the other federalists, shared most of Morris's views with regard to the Revolution, and insisted upon his appointment.

But the president, as good and wise a friend as Morris had, thought it best to send him a word of warning, coupling with the statement of his own unfaltering trust and regard, the reasons why the new diplomat should observe more circumspection than his enemies thought him capable of showing. For his opponents asserted that his brilliant, lively imagination always inclined him to act so promptly as to leave no time for cool judgment, and was, wrote Washington, "the primary cause of those sallies which too often offend, and of that ridicule of character which begets enmity not easy to be forgotten, but which might easily be avoided if it were under the control of caution and prudence.... By reciting [their objections] I give you a proof of my friendship, if I give none of my policy."

Morris took his friend's advice in good part, and profited by it as far as lay in his nature. He knew that he had a task of stupendous difficulty before him; as it would be almost impossible for a minister to steer clear of the quarrels springing from the ferocious hatred born to each other by the royalists and the various republican factions. To stand well with all parties he knew was impossible: but he thought it possible, and merely so, to stand *well* with the best people in each, without greatly offending the others; and in order to do this, he had to make up his mind to mingle with the worst as

well as the best, to listen unmoved to falsehoods so foul and calumnies so senseless as to seem the ravings of insanity; and meanwhile to wear a front so firm and yet so courteous as to ward off insult from his country and injury from himself during the days when the whole people went crazy with the blood-lust, when his friends were butchered by scores around him, and when the rulers had fulfilled Mirabeau's terrible prophecy, and had "paved the streets with their bodies."

But when he began his duties, he was already entangled in a most dangerous intrigue, one of whose very existence he should not, as a foreign minister, have known, still less have entered into. He got enmeshed in it while still a private citizen, and could not honorably withdraw, for it dealt with nothing less than the escape of the king and queen from Paris. His chivalrous sympathy for the two hemmed-in, hunted creatures, threatened by madmen and counseled by fools, joined with his characteristic impulsiveness and fearlessness, to incline him to make an effort to save them from their impending doom. A number of plans had been made to get the king out of Paris; and as the managers of each were of necessity ignorant of all the rest, they clashed with and thwarted one another. Morris's scheme was made in concert with a M. de Monciel, one of the royal ministers, and some other French gentlemen; and their measures were so well taken that they would doubtless have succeeded had not the king's nerve invariably failed him at the critical moment, and brought delay after delay. The Swiss guards, faithful to their salt, were always ready to cover his flight, and Lafayette would have helped them.

Louis preferred Morris's plan to any of the others offered, and gave a most striking proof of his preference by sending to the latter, towards the end of July, to say how much he regretted that his advice had not been followed, and to ask him if he would not take charge of the royal papers and money. Morris was unwilling to take the papers, but finally consented to receive the money, amounting in all to nearly seven hundred and fifty thousand livres, which was to be paid out in hiring and bribing the men who stood in the way of the escape; for most of the revolutionists were as venal as they were bloodthirsty. Still the king lingered; then came the 10th of August; the Swiss guards were slaughtered, and the whole scheme was at an end. Some of the men engaged in the plot were suspected; one, D'Angrémont, was seized and condemned, but he went to his death without betraying his

fellows. The others, by the liberal use of the money in Morris's possession, were saved, the authorities being bribed to wink at their escape or concealment. Out of the money that was left advances were made to Monciel and others; finally, in 1796, Morris gave an accurate account of the expenditures to the dead king's daughter, the Duchesse d'Angoulême, then at the Austrian court, and turned over to her the remainder, consisting of a hundred and forty-seven pounds.

Of course all this was work in which no minister had the least right to share; but the whole crisis was one so completely without precedent that it is impossible to blame Morris for what he did. The extraordinary trust reposed in him, and the feeling that his own exertions were all that lay between the two unfortunate sovereigns and their fate, roused his gallantry and blinded him to the risk he himself ran, as well as to the hazard to which he put his country's interests. He was under no illusion as to the character of the people whom he was trying to serve. He utterly disapproved the queen's conduct, and he despised the king, noting the latter's feebleness and embarrassment, even on the occasion of his presentation at court; he saw in them "a lack of mettle which would ever prevent them from being truly royal"; but when in their mortal agony they held out their hands to him for aid, his generous nature forbade him to refuse it, nor could he look on unmoved as they went helplessly down to destruction.

The rest of his two years' history as minister forms one of the most brilliant chapters in our diplomatic annals. His boldness, and the frankness with which he expressed his opinions, though they at times irritated beyond measure the factions of the revolutionists who successively grasped a brief but tremendous power, yet awed them, in spite of themselves. He soon learned to combine courage and caution, and his readiness, wit, and dash always gave him a certain hold over the fiery nation to which he was accredited. He was firm and dignified in insisting on proper respect being shown our flag, while he did all he could to hasten the payment of our obligations to France. A very large share of his time, also, was taken up with protesting against the French decrees aimed at neutral—which meant American—commerce, and with interfering to save American ship-masters, who had got into trouble by unwittingly violating them. Like his successor, Mr. Washburne, in the time of the commune, Morris was the only foreign minister who remained in Paris during the terror. He stayed at the risk of his

life; and yet, while fully aware of his danger, he carried himself as coolly as if in a time of profound peace, and never flinched for a moment when he was obliged for his country's sake to call to account the rulers of France for the time being—men whose power was as absolute as it was ephemeral and bloody, who had indulged their desire for slaughter with the unchecked ferocity of madmen, and who could by a word have had him slain as thousands had been slain before him. Few foreign ministers have faced such difficulties, and not one has ever come near to facing such dangers as Morris did during his two years' term of service. His feat stands by itself in diplomatic history; and, as a minor incident, the letters and despatches he sent home give a very striking view of the French Revolution.

As soon as he was appointed he went to see the French minister of foreign affairs; and in answer to an observation of the latter stated with his customary straightforwardness that it was true that, while a mere private individual, sincerely friendly to France, and desirous of helping her, and whose own nation could not be compromised by his acts, he had freely taken part in passing events, had criticised the constitution, and advised the king and his ministers; but he added that, now that he was a public man, he would no longer meddle with their affairs. To this resolution he kept, save that, as already described, sheer humanity induced him to make an effort to save the king's life. He had predicted what would ensue as the result of the exaggerated decentralization into which the opponents of absolutism had rushed; when they had split the state up into more than forty thousand sovereignties, each district the sole executor of the law, and the only judge of its propriety, and therefore obedient to it only so long as it lasted, and until rendered hostile by the ignorant whim or ferocious impulse of the moment; and now he was to see his predictions come true. In that brilliant and able state paper, the address he had drawn up for Louis to deliver when, in 1791, the latter accepted the constitution, the key-note of the situation was struck in the opening words: "It is no longer a king who addresses you, Louis XVI. is a private individual"; and he had then scored off, point by point, the faults in a document that created an unwieldy assembly of men unaccustomed to govern, that destroyed the principle of authority, though no other could appeal to a people helpless in their new-born liberty, and that created out of one whole a jarring multitude of fractional sovereignties. Now he was to see one of these same sovereignties rise up in successful rebellion against the government that represented the whole, destroy it and

usurp its power, and establish over all France the rule of an anarchic despotism which, by what seems to a free American a gross misnomer, they called a democracy.

All through June, at the beginning of which month Morris had been formally presented at court, the excitement and tumult kept increasing. When, on the 20th, the mob forced the gates of the chateau, and made the king put on the red cap, Morris wrote in his Diary that the constitution had given its last groan. A few days afterwards he told Lafayette that in six weeks everything would be over, and tried to persuade him that his only chance was to make up his mind instantly to fight either for a good constitution or for the wretched piece of paper which bore the name. Just six weeks to a day from the date of this prediction came the 10th of August to verify it.

Throughout July the fevered pulses of the people beat with always greater heat. Looking at the maddened mob the American minister thanked God from his heart that in his own country there was no such populace, and prayed with unwonted earnestness that our education and morality should forever stave off such an evil. At court even the most purblind dimly saw their doom. Calling there one morning he chronicles with a matter of fact brevity, impressive from its very baldness, that nothing of note had occurred except that they had stayed up all night expecting to be murdered. He wrote home that he could not tell "whether the king would live through the storm; for it blew hard."

His horror of the base mob, composed of people whose kind was absolutely unknown in America, increased continually, as he saw them going on from crimes that were great to crimes that were greater, incited by the demagogues who flattered them and roused their passions and appetites; and blindly raging because they were of necessity disappointed in the golden prospects held out to them. He scorned the folly of the enthusiasts and doctrinaires who had made a constitution all sail and no ballast, that overset at the first gust; who had freed from all restraint a mass of men as savage and licentious as they were wayward; who had put the executive in the power of the legislature, and this latter at the mercy of the leaders who could most strongly influence and inflame the mob. But his contempt for the victims almost exceeded his anger at their assailants. The king, who could suffer with firmness, and who could act either not at all, or else with

the worst possible effect, had the head and heart that might have suited the monkish idea of a female saint, but which were hopelessly out of place in any rational being supposed to be fitted for doing good in the world. Morris wrote home that he knew his friend Hamilton had no particular aversion to kings, and would not believe them to be tigers; but that if Hamilton came to Europe to see for himself, he would surely believe them to be monkeys; the Empress of Russia was the only reigning sovereign whose talents were not "considerably below par." At the moment of the final shock the court was involved in a set of paltry intrigues "unworthy of anything above the rank of a footman or a chambermaid. Every one had his or her little project, and every little project had some abettors. Strong, manly counsels frightened the weak, alarmed the envious, and wounded the enervated minds of the lazy and luxurious." The few such counsels that appeared were always approved, rarely adopted, and never followed out.

Then in the sweltering heat of August, the end came. A raving, furious horde stormed the chateau, and murdered, one by one, the brave mountaineers who gave their lives for a sovereign too weak to be worthy of such gallant bloodshed. King and queen fled to the National Assembly, and the monarchy was over. Immediately after the awful catastrophe Morris wrote to a friend: "The voracity of the court, the haughtiness of the nobles, the sensuality of the church, have met their punishment in the road of their transgressions. The oppressor has been squeezed by the hands of the oppressed; but there remains yet to be acted an awful scene in this great tragedy, played on the theatre of the universe for the instruction of mankind."

Not the less did he dare everything, and jeopardize his own life in trying to save some at least among the innocent who had been overthrown in the crash of the common ruin. When on the 10th of August the whole city lay abject at the mercy of the mob, hunted men and women, bereft of all they had, and fleeing from a terrible death, with no hiding-place, no friend who could shield them, turned in their terror-struck despair to the one man in whose fearlessness and generous gallantry they could trust. The shelter of Morris's house and flag was sought from early morning till past midnight by people who had nowhere else to go and who felt that within his walls they were sure of at least a brief safety from the maddened savages in the streets. As far as possible they were sent off to places of greater security; but some

had to stay with him till the storm lulled for a moment. An American gentleman who was in Paris on that memorable day, after viewing the sack of the Tuileries, thought it right to go to the house of the American minister. He found him surrounded by a score of people, of both sexes, among them the old Count d'Estaing, and other men of note, who had fought side by side with us in our war for independence, and whom now our flag protected in their hour of direst need. Silence reigned, only broken occasionally by the weeping of the women and children. As his visitor was leaving, Morris took him to one side, and told him that he had no doubt there were persons on the watch who would find fault with his conduct as a minister in receiving and protecting these people; that they had come of their own accord, uninvited. "Whether my house will be a protection to them or to me, God only knows; but I will not turn them out of it, let what will happen to me; you see, sir, they are all persons to whom our country is more or less indebted, and had they no such claim upon me, it would be inhuman to force them into the hands of the assassins." No one of Morris's countrymen can read his words even now without feeling a throb of pride in the dead statesman, who, a century ago, held up so high the honor of his nation's name in the times when the souls of all but the very bravest were tried and found wanting.

Soon after this he ceased writing in his Diary, for fear it might fall into the hands of men who would use it to incriminate his friends; and for the same reason he had also to be rather wary in what he wrote home, as his letters frequently bore marks of being opened, thanks to what he laughingly called "patriotic curiosity." He was, however, perfectly fearless as regards any ill that might befall himself; his circumspection was only exercised on behalf of others, and his own opinions were given as frankly as ever.

He pictured the French as huddled together, in an unreasoning panic, like cattle before a thunderstorm. Their every act increased his distrust of their capacity for self-government. They were for the time agog with their republic, and ready to adopt any form of government with a huzza; but that they would adopt a good form, or, having adopted it, keep it, he did not believe; and he saw that the great mass of the population were already veering round, under the pressure of accumulating horrors, until they would soon be ready to welcome as a blessing even a despotism, if so they could gain security to life and property. They had made the common mistake of

believing that to enjoy liberty they had only to abolish authority; and the equally common consequence was, that they were now, through anarchy, on the high road to absolutism. Said Morris: "Since I have been in this country I have seen the worship of many idols, and but little of the true God. I have seen many of these idols broken, and some of them beaten to the dust. I have seen the late constitution in one short year admired as a stupendous monument of human wisdom, and ridiculed as an egregious production of folly and vice. I wish much, very much, the happiness of this inconstant people. I love them, I feel grateful for their efforts in our cause, and I consider the establishment of a good constitution here as the principal means, under Divine Providence, of extending the blessings of freedom to the many millions of my fellow-men who groan in bondage on the continent of Europe. But I do not greatly indulge the flattering illusions of hope, because I do not yet perceive that reformation of morals without which liberty is but an empty sound." These words are such as could only come from a genuine friend of France, and champion of freedom; from a strong, earnest man, saddened by the follies of dreamers, and roused to stern anger by the licentious wickedness of scoundrels who used the name of liberty to cloak the worst abuses of its substance.

His stay in Paris was now melancholy indeed. The city was shrouded in a gloom only relieved by the frenzied tumults that grew steadily more numerous. The ferocious craving once roused could not be sated; the thirst grew ever stronger as the draughts were deeper. The danger to Morris's own person merely quickened his pulses, and roused his strong, brave nature; he liked excitement, and the strain that would have been too tense for weaker nerves keyed his own up to a fierce, half-exultant thrilling. But the woes that befell those who had befriended him caused him the keenest grief. It was almost unbearable to be seated quietly at dinner, and hear by accident "that a friend was on his way to the place of execution," and to have to sit still and wonder which of the guests dining with him would be the next to go to the scaffold. The vilest criminals swarmed in the streets, and amused themselves by tearing the earrings from women's ears, and snatching away their watches. When the priests shut up in the *carnes*, and the prisoners in the *abbaie* were murdered, the slaughter went on all day, and eight hundred men were engaged in it.

He wrote home that, to give a true picture of France, he would have to paint it like an Indian warrior, black and red. The scenes that passed were literally beyond the imagination of the American mind. The most hideous and nameless atrocities were so common as to be only alluded to incidentally, and to be recited in the most matter-of-fact way in connection with other events. For instance, a man applied to the Convention for a recompense for damage done to his quarry, a pit dug deep through the surface of the earth into the stone bed beneath: the damage consisted in such a number of dead bodies having been thrown into the pit as to choke it up so that he could no longer get men to work it. Hundreds, who had been the first in the land, were thus destroyed without form or trial, and their bodies thrown like dead dogs into the first hole that offered. Two hundred priests were killed for no other crime than having been conscientiously scrupulous about taking the prescribed oath. The guillotine went smartly on, watched with a devilish merriment by the fiends who were themselves to perish by the instrument their own hands had wrought. "Heaven only knew who was next to drink of the dreadful cup; as far as man could tell, there was to be no lack of liquor for some time to come."

Among the new men who, one after another, sprang into the light, to maintain their unsteady footing as leaders for but a brief time before toppling into the dark abyss of death or oblivion that waited for each and all, Dumouriez was for the moment the most prominent. He stood towards the Gironde much as Lafayette had stood towards the Constitutionals of 1789: he led the army, as Lafayette once had led it; and as the constitutional monarchists had fallen before his fellow-republicans, so both he and they were to go down before the even wilder extremists of the "Mountain." For the factions in Paris, face to face with the banded might of the European monarchies, and grappling in a grim death-struggle with the counter-revolutionists of the provinces, yet fought one another with the same ferocity they showed towards the common foe. Nevertheless, success was theirs; for against opponents only less wicked than themselves they moved with an infinitely superior fire and enthusiasm. Reeking with the blood of the guiltless, steeped in it to the lips, branded with fresh memories of crimes and infamies without number, and yet feeling in their very marrow that they were avenging centuries of grinding and intolerable thralldom, and that the cause for which they fought was just and righteous; with shameless cruelty and corruption eating into their hearts' core, yet with their foreheads kindled

by the light of a glorious morning,—they moved with a ruthless energy that paralyzed their opponents, the worn-out, tottering, crazy despotisms, rotten with vice, despicable in their ludicrous pride of caste, moribund in their military pedantry, and fore-doomed to perish in the conflict they had courted. The days of Danton and Robespierre are not days to which a French patriot cares to look back; but at any rate he can regard them without the shame he must feel when he thinks of the times of Louis Quinze. Danton and his like, at least, were men, and stood far, far above the palsied coward—a eunuch in his lack of all virile virtues—who misruled France for half a century; who, with his followers, indulged in every crime and selfish vice known, save only such as needed a particle of strength, or the least courage, in the committing.

Morris first met Dumouriez when the latter was minister of foreign affairs, shortly before the poor king was driven from the Tuileries. He dined with him, and afterwards noted down that the society was noisy and in bad style; for the grace and charm of French social life were gone, and the raw republicans were ill at ease in the drawing-room. At this time Morris commented often on the change in the look of Paris: all his gay friends gone; the city sombre and uneasy. When he walked through the streets, in the stifling air of a summer hot beyond precedent, as if the elements sympathized with the passions of men, he met, instead of the brilliant company of former days, only the few peaceable citizens left, hurrying on their ways with frightened watchfulness; or else groups of lolling ruffians, with sinister eyes and brutalized faces; or he saw in the Champs de Mars squalid ragamuffins signing the petition for the *déchéance*.

Morris wrote Washington that Dumouriez was a bold, determined man, bitterly hostile to the Jacobins and all the extreme revolutionary clubs, and, once he was in power, willing to risk his own life in the effort to put them down. However, the hour of the Jacobins had not yet struck, and the Revolution had now been permitted to gather such headway that it could be stopped only by a master genius; and Dumouriez was none such.

Still he was an able man, and, as Morris wrote home, in his military operations he combined the bravery of a skilled soldier and the arts of an astute politician. To be sure, his victories were not in themselves very noteworthy; the artillery skirmish at Valmy was decided by the reluctance of the Germans to come on, not by the ability of the French to withstand

them; and at Jemappes the imperialists were hopelessly outnumbered. Still the results were most important, and Dumouriez overran Flanders in the face of hostile Europe. He at once proceeded to revolutionize the government of his conquest in the most approved French fashion, which was that all the neighbors of France should receive liberty whether or no, and should moreover pay the expense of having it thrust upon them: accordingly he issued a proclamation to his new fellow-citizens, "which might be summed up in a few words as being an order to them to be free forthwith, according to his ideas of freedom, on pain of military execution."

He had things all his own way for the moment, but after a while he was defeated by the Germans; then while the Gironde tottered to its fall, he fled to the very foes he had been fighting, as the only way of escaping death from the men whose favorite he had been. Morris laughed bitterly at the fickle people. One anecdote he gives is worth preserving: "It is a year ago that a person who mixed in tumults to see what was doing, told me of a *sans culottes* who, bellowing against poor Lafayette, when Petion appeared, changed at once his note to '*Vive Petion!*' and then, turning round to one of his companions, '*Vois tu! C'est notre ami, n'est ce pas? Eh bien, il passera comme les autres.*' And, lo! the prophecy is fulfilled; and I this instant learn that Petion, confined to his room as a traitor or conspirator, has fled, on the 24th of June, 1793, from those whom he sent, on the 20th of June, 1792, to assault the king in the Tuileries. In short you will find, in the list of those who were ordered by their brethren to be arrested, the names of those who have proclaimed themselves to be the prime movers of the revolution of the 10th of August, and the fathers of the republic."

About the time the *sans culottes* had thus bellowed against Lafayette, the latter met Morris, for the first time since he was presented at court as minister, and at once spoke to him in his tone of ancient familiarity. The Frenchman had been brought at last to realize the truth of his American friend's theories and predictions. It was much too late to save himself, however. After the 10th of August he was proclaimed by the Assembly, found his troops falling away from him, and fled over the frontier; only to be thrown into prison by the allied monarchs, who acted with their usual folly and baseness. Morris, contemptuously impatient of the part he had played, wrote of him: "Thus his circle is completed. He has spent his fortune on a revolution, and is now crushed by the wheel which he put in

motion. He lasted longer than I expected." But this momentary indignation soon gave way to a generous sympathy for the man who had served America so well, and who, if without the great abilities necessary to grapple with the tumult of French affairs, had yet always acted with such unselfish purity of motive. Lafayette, as soon as he was imprisoned, wrote to the American minister in Holland, alleging that he had surrendered his position as a French subject, and was now an American citizen, and requesting the American representatives in Europe to procure his release. His claim was of course untenable; and, though the American government did all it could on his behalf through its foreign ministers, and though Washington himself wrote a strong letter of appeal to the Austrian emperor, he remained in prison until the peace, several years later.

All Lafayette's fortune was gone, and while in prison he was reduced to want. As soon as Morris heard this, he had the sum of ten thousand florins forwarded to the prisoner by the United States bankers at Amsterdam; pledging his own security for the amount, which was, however, finally allowed by the government under the name of compensation for Lafayette's military services in America. Morris was even more active in befriending Madame de Lafayette and her children. To the former he lent from his own private funds a hundred thousand livres, enabling her to pay her debts to the many poor people who had rendered services to her family. To the proud, sensitive lady the relief was great, much though it hurt her to be under any obligation: she wrote to her friend that he had broken the chains that loaded her down, and had done it in a way that made her feel the consolation, rather than the weight, of the obligation. But he was to do still more for her; for, when she was cast into prison by the savage Parisian mob, his active influence on her behalf saved her from death. In a letter to him, written some time later, she says, after speaking of the money she had borrowed: "This is a slight obligation, it is true, compared with that of my life, but allow me to remember both while life lasts, with a sentiment of gratitude which it is precious to feel."

There were others whose fortunes turned with the wheel of fate, for whom Morris felt no such sympathy as for the Lafayettes. Among the number was the Duke of Orleans, now transformed into *citoyen Egalité*. Morris credited this graceless debauchee with criminal ambitions which he probably did not possess, saying that he doubted the public virtue of a profligate, and could

not help distrusting such a man's pretensions; nor is it likely that he regretted much the fate of the man who died under the same guillotine which, with his assent, had fallen on the neck of the king, his cousin.

It needed no small amount of hardihood for a man of Morris's prominence and avowed sentiments to stay in Paris when Death was mowing round him with a swath at once so broad and so irregular. The power was passing rapidly from hand to hand, through a succession of men fairly crazy in their indifference to bloodshed. Not a single other minister of a neutral nation dared stay. In fact, the foreign representatives were preparing to go away even before the final stroke was given to the monarchy, and soon after the 10th of August the entire *corps diplomatique* left Paris as rapidly as the various members could get their passports. These the new republican government was at first very reluctant to grant; indeed, when the Venetian ambassador started off he was very ignominiously treated and brought back. Morris went to the British ambassador's to take leave, having received much kindness from him, and having been very intimate in his house. He found Lord Gower in a tearing passion because he could not get passports; he had burned his papers, and strongly advised his guest to do likewise. On this advice the latter refused to act, nor would he take the broad hints given him to the effect that honor required him to quit the country. Morris could not help showing his amusement at the fear and anger exhibited at the ambassador's, "which exhibition of spirits his lordship could hardly bear." Talleyrand, who was getting his own passport, also did all in his power to persuade the American minister to leave, but without avail. Morris was not a man to be easily shaken in any determination he had taken after careful thought. He wrote back to Jefferson that his opinion was directly opposed to the views of such people as had tried to persuade him that his own honor, and that of America, required him to leave France; and that he was inclined to attribute such counsel mainly to fear. It was true that the position was not without danger; but he presumed that, when the president named him to the embassy, it was not for his own personal pleasure or safety, but for the interests of the country; and these he could certainly serve best by staying.

He was able to hold his own only by a mixture of tact and firmness. Any signs of flinching would have ruined him outright. He would submit to no insolence. The minister of foreign affairs was, with his colleagues, engaged in certain schemes in reference to the American debt, which were designed to further their own private interests; he tried to bully Morris into acquiescence, and, on the latter's point-blank refusal, sent him a most insulting letter. Morris promptly retorted by demanding his passports. France, however, was very desirous not to break with the United States, the only friend she had left in the world; and the offending minister sent a sullen letter of apology, asking him to reconsider his intention to leave, and offering entire satisfaction for every point of which he complained. Accordingly Morris stayed.

He was, however, continually exposed to insults and worries, which were always apologized for by the government for the time being, on the ground, no doubt true, that in such a period of convulsions it was impossible to control their subordinate agents. Indeed, the changes from one form of anarchy to another went on so rapidly that the laws of nations had small chance of observance.

One evening a number of people, headed by a commissary of the section, entered his house, and demanded to search it for arms said to be hidden therein. Morris took a high tone, and was very peremptory with them; told them that they should not examine his house, that it held no arms, and moreover that, if he had possessed any, they should not touch one of them; he also demanded the name of "the blockhead or rascal" who had informed against him, announcing his intention to bring him to punishment. Finally he got them out of the house, and the next morning the commissary called with many apologies, which were accepted.

Another time he was arrested in the street for not having a *carte de citoyen*, but he was released as soon as it was found out who he was. Again he was arrested while traveling in the country, on the pretence that his passport was out of date; an insult for which the government at once made what amends they could. His house was also visited another time by armed men, whom, as before, he persuaded to go away. Once or twice, in the popular tumults, even his life was in danger; on one occasion it is said that it was only saved by the fact of his having a wooden leg, which made him known to the mob

as "a cripple of the American war for freedom." Rumors even got abroad in England and America that he had been assassinated.

Morris's duties were manifold, and as harassing to himself as they were beneficial to his country. Sometimes he would interfere on behalf of America as a whole, and endeavor to get obnoxious decrees of the Assembly repealed; and again he would try to save some private citizen of the United States who had got himself into difficulties. Reports of the French minister of foreign affairs, as well as reports of the *comité de salut public*, alike bear testimony to the success of his endeavors, whenever success was possible, and unconsciously show the value of the services he rendered to his country. Of course it was often impossible to obtain complete redress, because, as Morris wrote home, the government, while all-powerful in certain cases, was in others not merely feeble, but enslaved, and was often obliged to commit acts the consequences of which the nominal leaders both saw and lamented. Morris also, while doing all he could for his fellow-citizens, was often obliged to choose between their interests and those of the nation at large; and he of course decided in favor of the latter, though well aware of the clamor that was certain to be raised against him in consequence by those who, as he caustically remarked, found it the easiest thing in the world to get anything they wanted from the French government *until they had tried*.

One of his most important transactions was in reference to paying off the debt due by America for amounts loaned her during the war for independence. The interest and a part of the principal had already been paid. At the time when Morris was made minister, the United States had a large sum of money, destined for the payment of the public debt, lying idle in the hands of the bankers at Amsterdam; and this sum both Morris and the American minister to Holland, Mr. Short, thought could be well applied to the payment of part of our remaining obligation to France. The French government was consulted, and agreed to receive the sum; but hardly was the agreement entered into before the monarchy was overturned. The question at once arose as to whether the money could be rightfully paid over to the men who had put themselves at the head of affairs, and who, a month hence, might themselves be ousted by others who would not acknowledge the validity of a payment made to them. Short thought the payment should be stopped, and, as it afterwards turned out, the home

authorities agreed with him. But Morris thought otherwise, and paid over the amount. Events fully justified his course, for France never made any difficulty in the matter, and even had she done so, as Morris remarked, America had the staff in her own hands, and could walk which way she pleased, for she owed more money, and in the final adjustment could insist on the amount paid being allowed on account of the debt.

The French executive council owed Morris gratitude for his course in this matter; but they became intensely irritated with him shortly afterwards because he refused to fall in with certain proposals they made to him as to the manner of applying part of the debt to the purchase of provisions and munitions for San Domingo. Morris had good reason to believe that there was a private speculation at the bottom of this proposal, and declined to accede to it. The urgency with which it was made, and the wrath which his course excited, confirmed his suspicions, and he persisted in his refusal although it almost brought about a break with the men then carrying on the government. Afterwards, when these men fell with the Gironde, he wrote home: "I mentioned to you the plan of a speculation on drafts to have been made on the United States, could my concurrence have been procured. Events have shown that this speculation would have been a good one to the parties, who would have gained (and the French nation of course have lost) about fifty thousand pounds sterling in eighty thousand. I was informed at that time that the disappointed parties would attempt to have me recalled, and some more tractable character sent, who would have the good sense to look after his own interest. Well, sir, nine months have elapsed, and now, if I were capable of such things, I think it would be no difficult matter to have some of them hanged; indeed it is highly probable that they will experience a fate of that sort."

Much of his time was also taken up in remonstrating against the attacks of French privateers on American shipping. These, however, went steadily on until, half a dozen years afterwards, we took the matter into our own hands, and in the West Indies inflicted a smart drubbing, not only on the privateers of France, but on her regular men-of-war as well. He also did what he could for the French officers who had served in America during the War of Independence, most of whom were forced to flee from France after the outbreak of the Revolution.

His letters home, even after his regular duties had begun to be engrossing, contained a running commentary on the events that were passing around him. His forecasts of events within France were remarkably shrewd, and he displayed a wonderful insight into the motives and characters of the various leaders; but at first he was all at sea in his estimate of the military situation, being much more at home among statesmen than soldiers. He had expected the allied sovereigns to make short work of the raw republican armies, and was amazed at the success of the latter. But he very soon realized how the situation stood; that whereas the Austrian and Prussian troops simply came on in well-drilled, reluctant obedience to their commanding officers, the soldiers of France, on the contrary, were actuated by a fiery spirit the like of which had hardly been seen since the crusades. The bitterness of the contest was appalling, and so was the way in which the ranks of the contestants were thinned out. The extreme republicans believed in their creed with a furious faith; and they were joined by their fellow-citizens with an almost equal zeal, when once it had become evident that the invaders were hostile not only to the Republic but to France itself, and very possibly meditated its dismemberment.

When the royal and imperial forces invaded France in 1792, they threatened such ferocious vengeance as to excite the most desperate resistance, and yet they backed up their high sounding words by deeds so faulty, weak, and slow as to make themselves objects of contempt rather than dread. The Duke of Brunswick in particular, as a prelude to some very harmless military manœuvres, issued a singularly lurid and foolish manifesto, announcing that he would deliver up Paris to utter destruction and would give over all the soldiers he captured to military execution. Morris said that his address was in substance, "Be all against me, for I am opposed to you all, and make a good resistance, for there is no longer any hope;" and added that it would have been wiser to have begun with some great success and then to have carried the danger near those whom it was desired to intimidate. As it was, the Duke's campaign failed ignominiously, and all the invaders were driven back, for France rose as one man, her warriors overflowed on every side, and bore down all her foes by sheer weight of numbers and impetuous enthusiasm. Her government was a despotism as well as an anarchy; it was as totally free from the drawbacks as from the advantages of the democratic system that it professed to embody. Nothing could exceed the merciless energy of the measures adopted. Half-way

wickedness might have failed; but a wholesale murder of the disaffected, together with a confiscation of all the goods of the rich, and a vigorous conscription of the poor for soldiers, secured success, at least for the time being. The French made it a war of men; so that the price of labor rose enormously at once, and the condition of the working classes forthwith changed greatly for the better—one good result of the Revolution, at any rate.

Morris wrote home very soon after the 10th of August that the then triumphant revolutionists, the Girondists or party of Brissot, who had supplanted the moderate party of Lafayette exactly as the latter had succeeded the aristocracy, would soon in their turn be overthrown by men even more extreme and even more bloodthirsty; and that thus it would go on, wave after wave, until at last the wizard arose who could still them. By the end of the year the storm had brewed long enough to be near the bursting point. One of the promoters of the last outbreak, now himself marked as a victim, told Morris that he personally would die hard, but that most of his colleagues, though like him doomed to destruction, and though so fierce in dealing with the moderate men, now showed neither the nerve nor hardihood that alone could stave off the catastrophe.

Meanwhile the king, as Morris wrote home, showed in his death a better spirit than his life had promised; for he died in a manner becoming his dignity, with calm courage, praying that his foes might be forgiven and his deluded people be benefited by his death,—his words from the scaffold being drowned by the drums of Santerre. As a whole, the Gironde had opposed putting the king to death, and thus capping the structure whose foundations they had laid; they held back all too late. The fabric of their system was erected on a quagmire, and it now settled down and crushed the men who had built it. "All people of morality and intelligence had long agreed that as yet republican virtues were not of Gallic growth;" and so the power slipped naturally into the grasp of the lowest and most violent, of those who were loudest to claim the possession of republican principles, while in practice showing that they had not even the dimmest idea of what such principles meant.

The leaders were quite at the mercy of the gusts of fierce passion that swayed the breasts of their brutal followers. Morris wrote home that the nominal rulers, or rather the few by whom these rulers were directed, had

finally gained very just ideas of the value of popular opinion; but that they were not in a condition to act according to their knowledge; and that if they were able to reach harbor there would be quite as much of good luck as of good management about it, and, at any rate, a part of the crew would have to be thrown overboard.

Then the Mountain rose under Danton and Marat, and the party of the Gironde was entirely put down. The leaders were cast into prison, with the certainty before their eyes that the first great misfortune to France would call them from their dungeons to act as expiatory victims. The Jacobins ruled supreme, and under them the government became a despotism in principle as well as in practice. Part of the Convention arrested the rest; and the revolutionary tribunals ruled red-handed, with a whimsical and ferocious tyranny. Said Morris: "It is an emphatical phrase among the patriots that *terror is the order of the day*; some years have elapsed since Montesquieu wrote that the principle of arbitrary governments is *fear*." The prisons were choked with *suspects*, and blood flowed more freely than ever. Terror had reached its highest point. Danton was soon to fall before Robespierre. Among a host of other victims the queen died, with a brave dignity that made people half forget her manifold faults; and Philippe Egalité, the dissolute and unprincipled scoundrel, after a life than which none could be meaner and more unworthy, now at the end went to his death with calm and unflinching courage.

One man had a very narrow escape. This was Thomas Paine, the Englishman, who had at one period rendered such a striking service to the cause of American independence, while the rest of his life had been as ignoble as it was varied. He had been elected to the Convention, and, having sided with the Gironde, was thrown into prison by the Jacobins. He at once asked Morris to demand him as an American citizen; a title to which he of course had no claim. Morris refused to interfere too actively, judging rightly that Paine would be saved by his own insignificance and would serve his own interests best by keeping still. So the filthy little atheist had to stay in prison, "where he amused himself with publishing a pamphlet against Jesus Christ." There are infidels and infidels; Paine belonged to the variety—whereof America possesses at present one or two shining examples—that apparently esteems a bladder of dirty water as the proper

weapon with which to assail Christianity. It is not a type that appeals to the sympathy of an onlooker, be said onlooker religious or otherwise.

Morris never paid so much heed to the military events as to the progress of opinion in France, believing "that such a great country must depend more upon interior sentiment than exterior operations." He took a half melancholy, half sardonic interest in the overthrow of the Catholic religion by the revolutionists; who had assailed it with the true French weapon, ridicule, but ridicule of a very grim and unpleasant kind. The people who five years before had fallen down in the dirt as the consecrated matter passed by, now danced the carmagnole in holy vestments, and took part in some other mummeries a great deal more blasphemous. At the famous Feast of Reason, which Morris described as a kind of opera performed in Notre Dame, the president of the Convention, and other public characters, adored on bended knees a girl who stood in the place *ci-devant* most holy to personate Reason herself. This girl, Saunier by name, followed the trades of an opera dancer and harlot; she was "very beautiful and next door to an idiot as to her intellectual gifts." Among her feats was having appeared in a ballet in a dress especially designed, by the painter David, at her bidding, to be more indecent than nakedness. Altogether she was admirably fitted, both morally and mentally, to personify the kind of reason shown and admired by the French revolutionists.

Writing to a friend who was especially hostile to Romanism, Morris once remarked, with the humor that tinged even his most serious thoughts, "Every day of my life gives me reason to question my own infallibility; and of course leads me further from confiding in that of the pope. But I have lived to see a new religion arise. It consists in a denial of all religion, and its votaries have the superstition of not being superstitious. They have this with as much zeal as any other sect, and are as ready to lay waste the world in order to make proselytes." Another time, speaking of his country place at Sainport, to which he had retired from Paris, he wrote: "We are so scorched by a long drought that in spite of all philosophic notions we are beginning our procession to obtain the favor of the *bon dieu*. Were it proper for *un homme public et protestant* to interfere, I should be tempted to tell them that mercy is before sacrifice." Those individuals of arrested mental development who now make pilgrimages to our Lady of Lourdes had plenty of prototypes, even in the atheistical France of the Revolution.

In his letters home Morris occasionally made clear-headed comments on American affairs. He considered that "we should be unwise in the extreme to involve ourselves in the contests of European nations, where our weight could be but small, though the loss to ourselves would be certain. We ought to be extremely watchful of foreign affairs, but there is a broad line between vigilance and activity." Both France and England had violated their treaties with us; but the latter "had behaved worst, and with deliberate intention." He especially laid stress upon the need of our having a navy; "with twenty ships of the line at sea no nation on earth will dare to insult us;" even aside from individual losses, five years of war would involve more national expense than the support of a navy for twenty years, and until we rendered ourselves respectable, we should continue to be insulted. He never showed greater wisdom than in his views about our navy; and his party, the federalists, started to give us one; but it had hardly been begun before the Jeffersonians came into power, and, with singular foolishness, stopped the work.

Washington heartily sympathized with Morris's views as to the French Revolution; he wrote him that events had more than made good his gloomiest predictions. Jefferson, however, was utterly opposed to his theories, and was much annoyed at the forcible way in which he painted things as they were; characteristically enough, he only showed his annoyance by indirect methods,—leaving Morris's letters unanswered, keeping him in the dark as to events at home, etc. Morris understood all this perfectly, and was extremely relieved when Randolph became secretary of state in Jefferson's stead. Almost immediately afterwards, however, he was himself recalled. The United States, having requested the French government to withdraw Genet, a harlequin rather than a diplomat, it was done at once, and in return a request was forwarded that the United States would reciprocate by relieving Morris, which of course had to be done also. The revolutionary authorities both feared and disliked Morris; he could neither be flattered nor bullied, and he was known to disapprove of their excesses. They also took umbrage at his haughtiness; an unfortunate expression he used in one of his official letters to them, "*ma cour*," gave great offense, as being unrepublican—precisely as they had previously objected to Washington's using the phrase "your people" in writing to the king.

Washington wrote him a letter warmly approving of his past conduct. Nevertheless Morris was not over-pleased at being recalled. He thought that, as things then were in France, any minister who gave satisfaction to its government would prove forgetful of the interests of America. He was probably right; at any rate, what he feared was just what happened under his successor, Monroe—a very amiable gentleman, but distinctly one who comes in the category of those whose greatness is thrust upon them. However, under the circumstances, it was probably impossible for our government to avoid recalling Morris.

He could say truthfully: "I have the consolation to have made no sacrifice either of personal or national dignity, and I believe I should have obtained everything if the American government had refused to recall me." His services had been invaluable to us; he had kept our national reputation at a high point, by the scrupulous heed with which he saw that all our obligations were fulfilled, as well as by the firm courage with which he insisted on our rights being granted us. He believed "that all our treaties, however onerous, must be strictly fulfilled according to their true intent and meaning. The honest nation is that which, like the honest man, 'hath to its plighted faith and vow forever firmly stood, and though it promise to its loss, yet makes that promise good;" and in return he demanded that others should mete to us the same justice we meted to them. He met each difficulty the instant it arose, ever on the alert to protect his country and his countrymen; and what an ordinary diplomat could barely have done in time of peace, he succeeded in doing amid the wild, shifting tumult of the Revolution, when almost every step he made was at his own personal hazard. He took precisely the right stand; had he taken too hostile a position, he would have been driven from the country, whereas had he been a sympathizer, he would have more or less compromised America, as his successor afterwards did. We have never had a foreign minister who deserved more honor than Morris.

One of the noteworthy features in his letters home was the accuracy with which he foretold the course of events in the political world. Luzerne once said to him, "Vous dites toujours les choses extraordinaires qui se realisent;" and many other men, after some given event had taken place, were obliged to confess their wonder at the way in which Morris's predictions concerning it had been verified. A notable instance was his writing to Washington:

"Whatever may be the lot of France in remote futurity ... it seems evident that she must soon be governed by a single despot. Whether she will pass to that point through the medium of a triumvirate or other small body of men, seems as yet undetermined. I think it most probable that she will." This was certainly a remarkably accurate forecast as to the precise stages by which the already existing despotism was to be concentrated in a single individual. He always insisted that, though it was difficult to foretell how a single man would act, yet it was easy with regard to a mass of men, for their peculiarities neutralized each other, and it was necessary only to pay heed to the instincts of the average animal. He also gave wonderfully clear-cut sketches of the more prominent actors in affairs; although one of his maxims was that "in examining historical facts we are too apt to ascribe to individuals the events which are produced by general causes." Danton, for instance, he described as always believing, and, what was worse for himself, maintaining, that a popular system of government was absurd in France; that the people were too ignorant, too inconstant, too corrupt, and felt too much the need of a master; in short, that they had reached the point where Cato was a madman, and Cæsar a necessary evil. He acted on these principles; but he was too voluptuous for his ambition, too indolent to acquire supreme power, and he cared for great wealth rather than great fame; so he "fell at the feet of Robespierre." Similarly, said Morris, there passed away all the men of the 10th of August, all the men of the 2d of September; the same mob that hounded them on with wild applause when they grasped the blood-stained reins of power, a few months later hooted at them with ferocious derision as they went their way to the guillotine. Paris ruled France, and the *sans culottes* ruled Paris; factions continually arose, waging inexplicable war, each in turn acquiring a momentary influence which was founded on fear alone, and all alike unable to build up any stable or lasting government.

Each new stroke of the guillotine weakened the force of liberal sentiment, and diminished the chances of a free system. Morris wondered only that, in a country ripe for a tyrant's rule, four years of convulsions among twenty-four millions of people had brought forth neither a soldier nor yet a statesman, whose head was fitted to wear the cap that fortune had woven. Despising the mob as utterly as did Oliver Cromwell himself, and realizing the supine indifference with which the French people were willing to accept a master, he yet did full justice to the pride with which they resented outside

attack, and the enthusiasm with which they faced their foes. He saw the immense resources possessed by a nation to whom war abroad was a necessity for the preservation of peace at home, and with whom bankruptcy was but a starting-point for fresh efforts. The whole energy and power lay in the hands of the revolutionists; the men of the old regime had fled, leaving only that "waxen substance," the propertied class, "who in foreign wars count so much, and in civil wars so little." He had no patience with those despicable beings, the traders and merchants who have forgotten how to fight, the rich who are too timid to guard their wealth, the men of property, large or small, who need peace, and yet have not the sense and courage to be always prepared to conquer it.

In his whole attitude towards the Revolution, Morris represents better than any other man the clear-headed, practical statesman, who is genuinely devoted to the cause of constitutional freedom. He was utterly opposed to the old system of privilege on the one hand, and to the wild excesses of the fanatics on the other. The few liberals of the Revolution were the only men in it who deserve our true respect. The republicans who champion the deeds of the Jacobins, are traitors to their own principles; for the spirit of Jacobinism, instead of being identical with, is diametrically opposed to the spirit of true liberty. Jacobinism, socialism, communism, nihilism, and anarchism—these are the real foes of a democratic republic, for each one, if it obtains control, obtains it only as the sure forerunner of a despotic tyranny and of some form of the one-man power.

Morris, an American, took a clearer and truer view of the French Revolution than did any of the contemporary European observers. Yet while with them it was the all-absorbing event of the age, with him, as is evident by his writings, it was merely an important episode; for to him it was dwarfed by the American Revolution of a decade or two back. To the Europeans of the present day, as yet hardly awake to the fact that already the change has begun that will make Europe but a fragment, instead of the whole, of the civilized world, the French Revolution is the great historical event of our times. But in reality it affected only the people of western and central Europe; not the Russians, not the English-speaking nations, not the Spaniards who dwelt across the Atlantic. America and Australia had their destinies moulded by the crisis of 1776, not by the crisis of 1789. What the

French Revolution was to the states within Europe, that the American Revolution was to the continents without.

CHAPTER XI.

STAY IN EUROPE.

Monroe, as Morris's successor, entered upon his new duties with an immense flourish, and rapidly gave a succession of startling proofs that he was a minister altogether too much to the taste of the frenzied Jacobinical republicans to whom he was accredited. Indeed, his capers were almost as extraordinary as their own, and seem rather like the antics of some of the early French commanders in Canada, in their efforts to ingratiate themselves with their Indian allies, than like the performance we should expect from a sober Virginian gentleman on a mission to a civilized nation. He stayed long enough to get our affairs into a snarl, and was then recalled by Washington, receiving from the latter more than one scathing rebuke.

However, the fault was really less with him than with his party and with those who sent him. Monroe was an honorable man with a very un-original mind, and he simply reflected the wild, foolish views held by all his fellows of the Jeffersonian democratic-republican school concerning France—for our politics were still French and English, but not yet American. His appointment was an excellent example of the folly of trying to carry on a government on a "non-partisan" basis. Washington was only gradually weaned from this theory by bitter experience; both Jefferson and Monroe helped to teach him the lesson. It goes without saying that in a well-ordered government the great bulk of the employees in the civil service, the men whose functions are merely to execute faithfully routine departmental work, should hold office during good behavior, and should be appointed without reference to their politics; but if the higher public servants, such as the heads of departments and the foreign ministers, are not in complete accord with their chief, the only result can be to introduce halting indecision and vacillation into the counsels of the nation, without gaining a single compensating advantage, and without abating by one iota the virulence of party passion. To appoint Monroe, an extreme Democrat, to France, while at the same time appointing Jay, a strong Federalist, to England, was not only an absurdity which did nothing towards reconciling the Federalists and

Democrats, but, bearing in mind how these parties stood respectively towards England and France, it was also an actual wrong, for it made our foreign policy seem double-faced and deceitful. While one minister was formally embracing such of the Parisian statesmen as had hitherto escaped the guillotine, and was going through various other theatrical performances that do not appeal to any but a Gallic mind, his fellow was engaged in negotiating a treaty in England that was so obnoxious to France as almost to bring us to a rupture with her. The Jay treaty was not altogether a good one, and a better might perhaps have been secured; still, it was better than nothing, and Washington was right in urging its adoption, even while admitting that it was not entirely satisfactory. But certainly, if we intended to enter into such engagements with Great Britain, it was rank injustice to both Monroe and France to send such a man as the former to such a country as the latter.

Meanwhile Morris, instead of returning to America, was forced by his business affairs to prolong his stay abroad for several years. During this time he journeyed at intervals through England, the Netherlands, Germany, Prussia, and Austria. His European reputation was well established, and he was everywhere received gladly into the most distinguished society of the time. What made him especially welcome was his having now definitely taken sides with the anti-revolutionists in the great conflict of arms and opinions then raging through Europe; and his brilliancy, the boldness with which he had behaved as minister during the Terror, and the reputation given him by the French *émigrés*, all joined to cause him to be hailed with pleasure by the aristocratic party. It is really curious to see the consideration with which he was everywhere treated, although again a mere private individual, and the terms of intimacy on which he was admitted into the most exclusive social and diplomatic circles at the various courts. He thus became an intimate friend of many of the foremost people of the period. His political observation, however, became less trustworthy than heretofore; for he was undoubtedly soured by his removal, and the excesses of the revolutionists had excited such horror in his mind as to make him no longer an impartial judge. His forecasts and judgments on the military situation in particular, although occasionally right, were usually very wild. He fully appreciated Napoleon's utter unscrupulousness and marvelous mendacity; but to the end of his life he remained unwilling to do justice to the emperor's still more remarkable warlike genius, going so far, after the final

Russian campaign, as to speak of old Kutusoff as his equal. Indeed, in spite of one or two exceptions,—notably his predicting almost the exact date of the retreat from Moscow,—his criticisms on Napoleon's military operations do not usually stand much above the rather ludicrous level recently reached by Count Tolstoï.

Morris was relieved by Monroe in August, 1794, and left Paris for Switzerland in October. He stopped at Coppet and spent a day with Madame de Staël, where there was a little French society that lived at her expense and was as gay as circumstances would permit. He had never been particularly impressed with the much vaunted society of the salon, and this small survival thereof certainly had no overpowering attraction for him, if we may judge by the entry in his diary: "The road to her house is up-hill and execrable, and I think I shall not again go thither." Mankind was still blind to the grand beauty of the Alps,—it must be remembered that the admiration of mountain scenery is, to the shame of our forefathers be it said, almost a growth of the present century,—and Morris took more interest in the Swiss population than in their surroundings. He wrote that in Switzerland the spirit of commerce had brought about a baseness of morals which nothing could cure but the same spirit carried still further:—"It teaches eventually fair dealing as the most profitable dealing. The first lesson of trade is, My son, get money. The second is, My son, get money, honestly if you can, but get money. The third is, My son, get money; but honestly, if you would get much money."

He went to Great Britain in the following summer, and spent a year there. At one time he visited the North, staying with the Dukes of Argyle, Atholl and Montrose, and was very much pleased with Scotland, where everything he saw convinced him that the country was certain of a rapid and vigorous growth. On his return he stopped with the Bishop of Landaff, at Colgate Park. The bishop announced that he was a stanch opposition man, and a firm whig; to which statement Morris adds in his diary: "Let this be as it will, he is certainly a good landlord and a man of genius."

But Morris was now a favored guest in ministerial, even more than in opposition circles; he was considered to belong to what the czar afterwards christened the "parti sain de l'Europe." He saw a good deal of both Pitt and Grenville, and was consulted by them not only about American, but also about European affairs; and a number of favors, which he asked for some of

his friends among the *émigrés*, were granted. All his visits were not on business, however; as, for instance, on July 14th: "Dine at Mr. Pitt's. We sit down at six. Lords Grenville, Chatham, and another come later. The rule is established for six precisely, which is right, I think. The wines are good and the conversation flippant." Morris helped Grenville in a number of ways, at the Prussian court for instance; and was even induced by him to write a letter to Washington, attempting to put the English attitude toward us in a good light. Washington, however, was no more to be carried off his feet in favor of the English than against them; and the facts he brought out in his reply showed that Morris had rather lost his poise, and had been hurried into an action that was ill advised. He was quite often at court; and relates a conversation with the king, wherein that monarch's language seems to have been much such as tradition assigns him—short, abrupt sentences, repetitions, and the frequent use of "what."

He also saw a good deal of the royalist refugees. Some of them he liked and was intimate with; but the majority disgusted him and made him utterly impatient with their rancorous folly. He commented on the strange levity and wild negotiations of the Count d'Artois, and prophesied that his character was such as to make his projected attempt on La Vendée hopeless from the start. Another day he was at the Marquis de Spinola's: "The conversation here, where our company consists of aristocrats of the first feather, turns on French affairs. They, at first, agree that union among the French is necessary. But when they come to particulars, they fly off and are mad. Madame Spinola would send the Duke of Orleans to Siberia. An abbé, a young man, talks much and loud, to show his *esprit*; and to hear them one would suppose they were quite at their ease in a *petit souper de Paris*." Of that ponderous exile, the chief of the House of Bourbon, and afterwards Louis XVIII, he said that, in his opinion, he had nothing to do but to try to get shot, thereby redeeming by valor the foregone follies of his conduct.

In June, 1796, Morris returned to the continent, and started on another tour, in his own carriage; having spent some time himself in breaking in his young and restive horses to their task. He visited all the different capitals, at one time or another; among them, Berlin, where, as usual, he was very well received. For all his horror of Jacobinism, Morris was a thorough American, perfectly independent, without a particle of the snob in his disposition, and valuing his acquaintances for what they were, not for their titles. In his

diary he puts down the Queen of England as "a well-bred, sensible woman," and the Empress of Austria as "a good sort of little woman," and contemptuously dismisses the Prussian king with a word, precisely as he does with any one else. One of the entries in his journal, while he was staying in Berlin, offers a case in point. "July 23d, I dine, very much against my will, with Prince Ferdinand. I was engaged to a very agreeable party, but it seems the highnesses must never be denied, unless it be from indisposition. I had, however, written a note declining the intended honor; but the messenger, upon looking at it, for it was a letter patent, like the invitation, said he could not deliver it; that nobody ever refused; all of which I was informed of after he was gone. On consulting I found that I must go or give mortal offense, which last I have no inclination to do; so I write another note, and send out to hunt up the messenger. While I am abroad this untoward incident is arranged, and of course I am at Bellevue." While at court on one occasion he met, and took a great fancy to, the daughter of the famous Baroness Riedesel; having been born in the United States, she had been christened America.

In one of his conversations with the king, who was timid and hesitating, Morris told him that the Austrians would be all right if he would only lend them some Prussian generals—a remark upon which Jena and Auerstadt later on offered a curious commentary. He became very impatient with the king's inability to make up his mind; and wrote to the Duchess of Cumberland that "the guardian angel of the French Republic kept him lingering on this side of the grave." He wrote to Lord Grenville that Prussia was "seeking little things by little means," and that the war with Poland was popular "because the moral principles of a Prussian go to the possession of whatever he can acquire. And so little is he the slave of what he calls vulgar prejudice, that, give him opportunity and means, and he will spare you the trouble of finding a pretext. This liberality of sentiment greatly facilitates negotiation, for it is not necessary to clothe propositions in honest and decent forms." Morris was a most startling phenomenon to the diplomatists of the day, trampling with utter disregard on all their hereditary theories of finesse and cautious duplicity. The timid formalists, and more especially those who considered double-dealing as the legitimate, and in fact the only legitimate, weapon of their trade, were displeased with him; but he was very highly thought of by such as could see the strength and originality of the views set forth in his frank, rather over-bold language.

At Dresden he notes that he was late on the day set down for his presentation at court, owing to his valet having translated *halb zwölf* as half past twelve. The Dresden picture galleries were the first that drew from him any very strong expressions of admiration. In the city were numbers of the *émigrés*, fleeing from their countrymen, and only permitted to stop in Saxony for a few days; yet they were serene and gay, and spent their time in busy sightseeing, examining everything curious which they could get at. Morris had become pretty well accustomed to the way in which they met fate; but such lively resignation surprised even him, and he remarked that so great a calamity had never lighted on shoulders so well fitted to bear it.

At Vienna he made a long stay, not leaving it until January, 1797. Here, as usual, he fraternized at once with the various diplomatists; the English ambassador, Sir Morton Eden, in particular, going out of his way to show him every attention. The Austrian prime minister, M. Thugut, was also very polite; and so were the foreign ministers of all the powers. He was soon at home in the upper social circles of this German Paris; but from the entries in his journal it is evident that he thought very little of Viennese society. He liked talking and the company of brilliant conversationalists, and he abominated gambling; but in Vienna every one was so devoted to play that there was no conversation at all. He considered a dumb circle round a card-table as the dullest society in the world, and in Vienna there was little else. Nor was he impressed with the ability of the statesmen he met. He thought the Austrian nobles to be on the decline; they stood for the dying feudal system. The great families had been squandering their riches with the most reckless extravagance, and were becoming broken and impoverished; and the imperial government was glad to see the humiliation of the haughty nobles, not perceiving that, if preserved, they would act as a buffer between it and the new power beginning to make itself felt throughout Europe, and would save the throne if not from total overthrow, at least from shocks so fierce as greatly to weaken it.

Morris considered Prince Esterhazy as an archtypical representative of the class. He was captain of the noble Hungarian Guard, a small body of tall, handsome men on fiery steeds, magnificently caparisoned. The Prince, as its commander, wore a Hungarian dress, scarlet, with fur cape and cuffs, and yellow morocco boots; everything embroidered with pearls, four hundred and seventy large ones, and many thousand small, but all put on in

good taste. He had a collar of large diamonds, a plume of diamonds in his cap; and his sword-hilt, scabbard, and spurs were inlaid with the same precious stones. His horse was equally bejeweled; steed and rider, with their trappings, "were estimated at a value of a quarter of a million dollars." Old Blücher would surely have considered the pair "very fine plunder."

The Prince was reported to be nominally the richest subject in Europe, with a revenue that during the Turkish war went up to a million guilders annually; yet he was hopelessly in debt already and getting deeper every year. He lived in great magnificence, but was by no means noted for lavish hospitality; all his extravagance was reserved for himself, especially for purposes of display. His Vienna stable contained a hundred and fifty horses; and during a six weeks' residence in Frankfort, where he was ambassador at the time of an imperial coronation, he spent eighty thousand pounds. Altogether, an outsider may be pardoned for not at first seeing precisely what useful function such a merely gorgeous being performed in the body politic; yet when summoned before the bar of the new world-forces, Esterhazy and his kind showed that birds of such fine feathers sometimes had beaks and talons as well, and knew how to use them, the craven flight of the French noblesse to the contrary notwithstanding.

Morris was often at court, where the constant theme of conversation was naturally the struggle with the French armies under Moreau and Bonaparte. After one of these mornings he mentions: "The levee was oddly arranged, all the males being in one apartment, through which the Emperor passes in going to chapel, and returns the same way with the Empress and imperial family; after which they go through their own rooms to the ladies assembled on the other side."

The English members of the *Corps Diplomatique* in all the European capitals were especially civil to him; and he liked them more than their continental brethren. But for some of their young tourist countrymen he cared less; and it is curious to see that the ridicule to which Americans have rightly exposed themselves by their absurd fondness for uniforms and for assuming military titles to which they have no warrant, was no less deservedly earned by the English at the end of the last century. One of Morris's friends, Baron Groshlaer, being, like the other Viennese, curious to know the object of his stay,—they guessed aright that he wished to get Lafayette liberated,—at last almost asked him outright about it. "Finally I

tell him that the only difference between me and the young Englishmen, of whom there is a swarm here, is, that I seek instruction with gray hairs and they with brown.... At the Archduchess's one of the little princes, brother to the Emperor, and who is truly an *arch-duke*, asks me to explain to him the different uniforms worn by the young English, of whom there are a great number here, all in regimentals. Some of these belong to no corps at all, and the others to yeomanry, fencibles and the like, all of which purport to be raised for the defense of their country in case she should be invaded; but now, when the invasion seems most imminent, they are abroad, and cannot be made to feel the ridiculous indecency of appearing in regimentals. Sir M. Eden and others have given them the broadest hints without the least effect. One of them told me that all the world should not laugh him out of his regimentals. I bowed.... I tell the prince that I really am not able to answer his question, but that, in general, their dresses I believe are worn for convenience in traveling. He smiles at this.... If I were an Englishman I should be hurt at these exhibitions, and as it is I am sorry for them.... I find that here they assume it as unquestionable that the young men of England have a right to adjust the ceremonial of Vienna. The political relations of the two countries induce the good company here to treat them with politeness; but nothing prevents their being laughed at, as I found the other evening at Madame de Groshlaer's, where the young women as well as the girls were very merry at the expense of these young men."

After leaving Vienna he again passed through Berlin, and in a conversation with the king he foreshadowed curiously the state of politics a century later, and showed that he thoroughly appreciated the cause that would in the end reconcile the traditional enmity of the Hohenzollerns and Hapsburgs. "After some trifling things I tell him that I have just seen his best friend. He asks who? and, to his great surprise, I reply, the Emperor. He speaks of him well personally, and I observe that he is a very honest young man, to which his Majesty replies by asking, "Mais, que pensez vous de Thugut." "Quant à cela, c'est une autre affaire, sire." I had stated the interest, which makes him and the Emperor good friends, to be their mutual apprehensions from Russia. "But suppose we all three unite?" "Ce sera un diable de fricassée, sire, si vous vous mettez tous les trois à casser les œufs.""

At Brunswick he was received with great hospitality, the Duke, and particularly the Duchess Dowager, the King of England's sister, treating him

very hospitably. He here saw General Riedesel, with whom he was most friendly; the general in the course of conversation inveighed bitterly against Burgoyne. He went to Munich also, where he was received on a very intimate footing by Count Rumford, then the great power in Bavaria, who was busily engaged in doing all he could to better the condition of his country. Morris was much interested in his reforms. They were certainly needed; the Count told his friend that on assuming the reins of power, the abuses to be remedied were beyond belief—for instance, there was one regiment of cavalry that had five field officers and only three horses. With some of the friends that Morris made—such as the Duchess of Cumberland, the Princess de la Tour et Taxis and others—he corresponded until the end of his life.

While at Vienna he again did all he could to get Lafayette released from prison, where his wife was confined with him; but in vain. Madame de Lafayette's sister, the Marquise de Montagu, and Madame de Staël, both wrote him the most urgent appeals to do what he could for the prisoners; the former writing, "My sister is in danger of losing the life you saved in the prisons of Paris ... has not he whom Europe numbers among those citizens of whom North America ought to be most proud, has not he the right to make himself heard in favor of a citizen of the United States, and of a wife, whose life belongs to him, since he has preserved it?" Madame de Staël felt the most genuine grief for Lafayette, and very sincere respect for Morris; and in her letters to the latter she displayed both sentiments with a lavish exaggeration that hardly seems in good taste. If Morris had needed a spur the letters would have supplied it; but the task was an impossible one, and Lafayette was not released until the peace in 1797, when he was turned over to the American consul at Hamburg, in Morris's presence.

Morris was able to render more effectual help to an individual far less worthy of it than Lafayette. This was the then Duke of Orleans, afterwards King Louis Philippe, who had fled from France with Dumouriez. Morris's old friend, Madame de Flahaut, appealed to him almost hysterically on the duke's behalf; and he at once did even more than she requested, giving the duke money wherewith to go to America, and also furnishing him with unlimited credit at his own New York banker's, during his wanderings in the United States. This was done for the sake of the Duchess of Orleans, to whom Morris was devotedly attached, not for the sake of the duke himself.

The latter knew this perfectly, writing: "Your kindness is a blessing I owe to my mother and to our friend" (Madame de Flahaut). The bourgeois king admirably represented the meanest, smallest side of the bourgeois character; he was not a bad man, but he was a very petty and contemptible one; had he been born in a different station of life, he would have been just the individual to take a prominent part in local temperance meetings, while he sanded the sugar he sold in his corner grocery. His treatment of Morris's loan was characteristic. When he came into his rights again, at the Restoration, he at first appeared to forget his debt entirely, and when his memory was jogged, he merely sent Morris the original sum, without a word of thanks; whereupon Morris, rather nettled, and as prompt to stand up for his rights against a man in prosperity as he had been to help him when in adversity, put the matter in the hands of his lawyer, through whom he notified Louis Philippe that if the affair was to be treated on a merely business basis, it should then be treated in a strictly business way, and the interest for the twenty years that had gone by should be forwarded also. This was accordingly done, although not until after Morris's death, the entire sum refunded being seventy thousand francs.

Morris brought his complicated business affairs in Europe to a close in 1798, and sailed from Hamburg on October 4th of that year, reaching New York after an exceedingly tedious and disagreeable voyage of eighty days.

CHAPTER XII.

SERVICE IN THE UNITED STATES SENATE.

Morris was very warmly greeted on his return; and it was evident that the length of his stay abroad had in nowise made him lose ground with his friends at home. His natural affiliations were all with the Federalist party, which he immediately joined.

During the year 1799 he did not take much part in politics, as he was occupied in getting his business affairs in order and in putting to rights his estates at Morrisania. The old manor house had become such a crazy, leaky affair that he tore it down and built a new one; a great, roomy building, not in the least showy, but solid, comfortable, and in perfect taste; having, across the tree-clad hills of Westchester, a superb view of the Sound, with its jagged coast and capes and islands.

Although it was so long since he had practiced law, he was shortly engaged in a very important case that was argued for eight days before the Court of Errors in Albany. Few trials in the State of New York have ever brought together such a number of men of remarkable legal ability; for among the lawyers engaged on one side or the other were Morris, Hamilton, Burr, Robert Livingstone, and Troup. There were some sharp passages of arms: and the trial of wits between Morris and Hamilton in particular were so keen as to cause a passing coolness.

During the ten years that had gone by since Morris sailed for Europe, the control of the national government had been in the hands of the Federalists; when he returned, party bitterness was at the highest pitch, for the Democrats were preparing to make the final push for power which should overthrow and ruin their antagonists. Four-fifths of the talent, ability, and good sense of the country were to be found in the Federalist ranks; for the Federalists had held their own so far, by sheer force of courage and intellectual vigor, over foes in reality more numerous. Their great prop had been Washington. His colossal influence was to the end decisive in party contests, and he had in fact, although hardly in name, almost entirely

abandoned his early attempts at non-partisanship, had grown to distrust Madison as he long before had distrusted Jefferson, and had come into constantly closer relations with their enemies. His death diminished greatly the chances of Federalist success; there were two other causes at work that destroyed them entirely.

One of these was the very presence in the dominant party of so many men nearly equal in strong will and great intellectual power; their ambitions and theories clashed; even the loftiness of their aims, and their disdain of everything small, made them poor politicians, and with Washington out of the way there was no one commander to overawe the rest and to keep down the fierce bickerings constantly arising among them; while in the other party there was a single leader, Jefferson, absolutely without a rival, but supported by a host of sharp political workers, most skillful in marshaling that unwieldy and hitherto disunited host of voters who were inferior in intelligence to their fellows.

The second cause lay deep in the nature of the Federalist organization: it was its distrust of the people. This was the fatally weak streak in Federalism. In a government such as ours it was a foregone conclusion that a party which did not believe in the people would sooner or later be thrown from power unless there was an armed break-up of the system. The distrust was felt, and of course excited corresponding and intense hostility. Had the Federalists been united, and had they freely trusted in the people, the latter would have shown that the trust was well founded; but there was no hope for leaders who suspected each other and feared their followers.

Morris landed just as the Federalist reaction, brought about by the conduct of France, had spent itself,—thanks partly to some inopportune pieces of insolence from England, in which country, as Morris once wrote to a foreign friend, "on a toujours le bon esprit de vouloir prendre les mouches avec du vinaigre." The famous alien and sedition laws were exciting great disgust, and in Virginia and Kentucky Jefferson was using them as handles wherewith to guide seditious agitation—not that he believed in sedition, but because he considered it good party policy, for the moment, to excite it. The parties hated each other with rancorous virulence; the newspapers teemed with the foulest abuse of public men, accusations of financial dishonesty were rife, Washington himself not being spared, and the most scurrilous personalities were bandied about between the different editors. The

Federalists were split into two factions, one following the President, Adams, in his efforts to keep peace with France, if it could be done with honor, while the others, under Hamilton's lead, wished war at once.

Pennsylvanian politics were already very low. The leaders who had taken control were men of mean capacity and small morality, and the State was not only becoming rapidly democratic but was also drifting along in a disorganized, pseudo-jacobinical, half insurrectionary kind of way that would have boded ill for its future had it not been fettered by the presence of healthier communities round about it. New England was the only part of the community, excepting Delaware, where Federalism was on a perfectly sound footing; for in that section there was no caste spirit, the leaders and their followers were thoroughly in touch, and all the citizens, shrewd, thrifty, independent, were used to self-government, and fully awake to the fact that honesty and order are the prerequisites of liberty. Yet even here Democracy had made some inroads.

South of the Potomac the Federalists had lost ground rapidly. Virginia was still a battlefield; as long as Washington lived, his tremendous personal influence acted as a brake on the democratic advance, and the state's greatest orator, Patrick Henry, had halted beside the grave to denounce the seditious schemes of the disunion agitators with the same burning, thrilling eloquence that, thirty years before, had stirred to their depths the hearts of his hearers when he bade defiance to the tyrannous might of the British king. But when these two men were dead, Marshall,—though destined, as chief and controlling influence in the third division of our governmental system, to mould the whole of that system on the lines of Federalist thought, and to prove that a sound judiciary could largely affect an unsound executive and legislature,—even Marshall could not, single-handed, stem the current that had gradually gathered head. Virginia stands easily first among all our commonwealths for the statesmen and warriors she has brought forth; and it is noteworthy that during the long contest between the nationalists and separatists, which forms the central fact in our history for the first three quarters of a century of our national life, she gave leaders to both sides at the two great crises: Washington and Marshall to the one, and Jefferson to the other, when the question was one of opinion as to whether the Union should be built up; and when the appeal to arms was made to tear it down, Farragut and Thomas to the north, Lee and Jackson to the south.

There was one eddy in the tide of democratic success that flowed so strongly to the southward. This was in South Carolina. The fierce little Palmetto state has always been a free lance among her southern sisters; for instance, though usually ultra-democratic, she was hostile to the two great democratic chiefs, Jefferson and Jackson, though both were from the south. At the time that Morris came home, the brilliant little group of Federalist leaders within her bounds, headed by men of national renown like Pinckney and Harper, kept her true to Federalism by downright force of intellect and integrity; for they were among the purest as well as the ablest statesmen of the day.

New York had been going through a series of bitter party contests; any one examining a file of papers of that day will come to the conclusion that party spirit was even more violent and unreasonable then than now. The two great Federalist leaders, Hamilton and Jay, stood head and shoulders above all their democratic competitors, and they were backed by the best men in the state, like Rufus King, Schuyler and others. But, though as orators and statesmen they had no rivals, they were very deficient in the arts of political management. Hamilton's imperious haughtiness had alienated the powerful family of the Livingstones, who had thrown in their lot with the Clintonians; and a still more valuable ally to the latter had arisen in that consummate master of "machine" politics, Aaron Burr. In 1792, Jay, then chief justice of the United States, had run for governor against Clinton, and had received the majority of the votes; but had been counted out by the returning board in spite of the protest of its four Federalist members—Gansevoort, Roosevelt, Jones, and Sands. The indignation was extreme, and only Jay's patriotism and good sense prevented an outbreak. However, the memory of the fraud remained fresh in the minds of the citizens, and at the next election for governor he was chosen by a heavy majority, having then just come back from his mission to England. Soon afterwards his treaty was published, and excited a whirlwind of indignation; it was only ratified in the senate through Washington's great influence, backed by the magnificent oratory of Fisher Ames, whose speech on this occasion, when he was almost literally on his death-bed, ranks among the half dozen greatest of our country. The treaty was very objectionable in certain points, but it was most necessary to our well-being, and Jay was probably the only American who could have negotiated it. As with the Ashburton treaty many years later, extreme sections in England attacked it as fiercely as did the extreme

sections here; and Lord Sheffield voiced their feelings when he hailed the war of 1812 as offering a chance to England to get back the advantages out of which "Jay had duped Grenville."

But the clash with France shortly afterwards swept away the recollection of the treaty, and Jay was reëlected in 1798. One of the arguments, by the way, which was used against him in the canvass was that he was an abolitionist. But, in spite of his reëlection, the New York Democrats were steadily gaining ground.

Such was the situation when Morris returned. He at once took high rank among the Federalists, and in April, 1800, just before the final wreck of their party, was chosen by them to fill an unexpired term of three years in the United States Senate. Before this he had made it evident that his sympathies lay with Hamilton and those who did not think highly of Adams. He did not deem it wise to renominate the latter for the Presidency. He had even written to Washington, earnestly beseeching him to accept the nomination; but Washington died a day or two after the letter was sent. In spite of the jarring between the leaders, the Federalists nominated Adams and Pinckney. In the ensuing Presidential election many of the party chiefs, notably Marshall of Virginia, already a strong Adams man, faithfully stood by the ticket in its entirety; but Hamilton, Morris, and many others at the North probably hoped in their hearts that, by the aid of the curious electoral system which then existed, some chance would put the great Carolinian in the first place and make him President. Indeed, there is little question that this might have been done, had not Pinckney, one of the most high-minded and disinterested statesmen we have ever had, emphatically declined to profit in any way by the hurting of the grim old Puritan.

The house thus divided against itself naturally fell, and Jefferson was chosen President. It was in New York that the decisive struggle took place, for that was the pivotal state; and there the Democrats, under the lead of the Livingstones and Clintons, but above all by the masterly political manoeuvres of Aaron Burr, gained a crushing victory. Hamilton, stung to madness by the defeat, and sincerely believing that the success of his opponents would be fatal to the republic,—for the two parties hated each other with a blind fury unknown to the organizations of the present day,—actually proposed to Jay, the governor, to nullify the action of the people by the aid of the old legislature, a Federalist body, which was still holding

over, although the members of its successor had been chosen. Jay, as pure as he was brave, refused to sanction any such scheme of unworthy partisanship. It is worth noting that the victors in this election introduced for the first time the "spoils system," in all its rigor, into our state affairs; imitating the bad example of Pennsylvania a year or two previously.

When the Federalists in Congress, into which body the choice for President had been thrown, took up Burr, as a less objectionable alternative than Jefferson, Morris, much to his credit, openly and heartily disapproved of the movement, and was sincerely glad that it failed. For he thought Burr far the more dangerous man of the two, and, moreover, did not believe that the evident intention of the people should be thwarted. Both he and Hamilton, on this occasion, acted more wisely and more honestly than did most of their heated fellow-partisans. Writing to the latter, the former remarked: "It is dangerous to be impartial in politics; you, who are temperate in drinking, have never perhaps noticed the awkward situation of a man who continues sober after the company are drunk."

Morris joined the Senate at Philadelphia in May, 1800, but it almost immediately adjourned, to meet at Washington in November, when he was again present. Washington, as it then was, was a place whose straggling squalor has often been described. Morris wrote to the Princess de la Tour et Taxis, that it needed nothing "but houses, cellars, kitchens, well-informed men, amiable women, and other little trifles of the kind to make the city perfect;" that it was "the very best city in the world for a future residence," but that as he was "not one of those good people whom we call posterity," he would meanwhile like to live somewhere else.

During his three years' term in the Senate he was one of the strong pillars of the Federalist party; but he was both too independent and too erratic to act always within strict party lines, and while he was an ultra-Federalist on some points, he openly abandoned his fellows on others. He despised Jefferson as a tricky and incapable theorist, skillful in getting votes, but in nothing else; a man who believed "in the wisdom of mobs, and the moderation of Jacobins," and who found himself "in the wretched plight of being forced to turn out good officers to make room for the unworthy."

After the election that turned them out of power, but just before their opponents took office, the Federalists in the Senate and House passed the

famous judiciary bill, and Adams signed it. It provided for a number of new federal judges to act throughout the states, while the supreme court was retained as the ultimate court of decision. It was an excellent measure, inasmuch as it simplified the work of the judiciary, saved the highest branch from useless traveling, prevented the calendars from being choked with work, and supplied an upright federal judiciary to certain districts where the local judges could not be depended upon to act honestly. On the other hand, the Federalists employed it as a means to keep themselves partly in power, after the nation had decided that they should be turned out. Although the Democrats had bitterly opposed it, yet if, as was only right, the offices created by it had been left vacant until Jefferson came in, it would probably have been allowed to stand. But Adams, most improperly, spent the last hours of his administration in putting in the new judges.

Morris, who heartily championed the measure, wrote his reasons for so doing to Livingstone; giving, with his usual frankness, those that were political and improper, as well as those based on some public policy, but apparently not appreciating the gravity of the charges he so lightly admitted. He said: "The new judiciary bill may have, and doubtless has, many little faults, but it answers the double purpose of bringing justice near to men's doors, and of giving additional fibre to the root of government. You must not, my friend, judge of other states by your own. Depend on it, that in some parts of this Union, justice cannot be readily obtained in the state courts." So far, he was all right, and the truth of his statements, and the soundness of his reasons, could not be challenged as to the propriety of the law itself; but he was much less happy in giving his views of the way in which it would be carried out: "That the leaders of the federal party may use this opportunity to provide for friends and adherents is, I think, probable; and if they were my enemies, I should blame them for it. Whether I should do the same thing myself is another question.... They are about to experience a heavy gale of adverse wind; can they be blamed for casting many anchors to hold their ship through the storm?" Most certainly they should be blamed for casting this particular kind of anchor; it was a very gross outrage for them to "provide for friends and adherents" in such a manner.

The folly of their action was seen at once; for they had so maddened the Democrats that the latter repealed the act as soon as they came into power.

This also was of course all wrong, and was a simple sacrifice of a measure of good government to partisan rage. Morris led the fight against it, deeming the repeal not only in the highest degree unwise but also unconstitutional. After the repeal was accomplished, the knowledge that their greed to grasp office under the act was probably the cause of the loss of an excellent law, must have been rather a bitter cud for the Federalists to chew. Morris always took an exaggerated view of the repeal, regarding it as a death-blow to the constitution. It was certainly a most unfortunate affair throughout; and much of the blame attaches to the Federalists, although still more to their antagonists.

The absolute terror with which even moderate Federalists had viewed the victory of the Democrats was in a certain sense justifiable; for the leaders who led the Democrats to triumph were the very men who had fought tooth and nail against every measure necessary to make us a free, orderly, and powerful nation. But the safety of the nation really lay in the very fact that the policy hitherto advocated by the now victorious party had embodied principles so wholly absurd in practice that it was out of the question to apply them at all to the actual running of the government. Jefferson could write or speak—and could feel too—the most high-sounding sentiments; but once it came to actions he was absolutely at sea, and on almost every matter—especially where he did well—he had to fall back on the Federalist theories. Almost the only important point on which he allowed himself free scope was that of the national defenses; and here, particularly as regards the navy, he worked very serious harm to the country. Otherwise he generally adopted and acted on the views of his predecessors; as Morris said, the Democrats "did more to strengthen the executive than Federalists dared think of, even in Washington's day." As a consequence, though the nation would certainly have been better off if men like Adams or Pinckney had been retained at the head of affairs, yet the change resulted in far less harm than it bade fair to.

On the other hand the Federalists cut a very sorry figure in opposition. We have never had another party so little able to stand adversity. They lost their temper first and they lost their principles next, and actually began to take up the heresies discarded by their adversaries. Morris himself, untrue to all his previous record, advanced various states-rights doctrines; and the Federalists, the men who had created the Union, ended their days under the

grave suspicion of having desired to break it up. Morris even opposed, and on a close vote temporarily defeated, the perfectly unobjectionable proposition to change the electoral system by designating the candidates for President and Vice-President; the reason he gave was that he believed parties should be forced to nominate both of their best men, and that he regarded the Jefferson-Burr tie as a beautiful object-lesson for teaching this point!

On one most important question, however, he cut loose from his party, who were entirely in the wrong, and acted with the administration, who were behaving in strict accordance with Federalist precepts. This was in reference to the treaty by which we acquired Louisiana.

While in opposition, one of the most discreditable features of the Republican-Democratic party had been its servile truckling to France, which at times drove it into open disloyalty to America. Indeed this subservience to foreigners was a feature of our early party history; and the most confirmed pessimist must admit that, as regards patriotism and indignant intolerance of foreign control, the party organizations of to-day are immeasurably superior to those of eighty or ninety years back. But it was only while in opposition that either party was ready to throw itself into the arms of outsiders. Once the Democrats took the reins they immediately changed their attitude. The West demanded New Orleans and the valley of the Mississippi; and what it demanded it was determined to get. When we only had the decaying weakness of Spain to deal with, there was no cause for hurry; but when Louisiana was ceded to France, at the time when the empire of Napoleon was a match for all the rest of the world put together, the country was up in arms at once.

The Administration promptly began to negotiate for the purchase of Louisiana. Morris backed them up heartily, thus splitting off from the bulk of the Federalists, and earnestly advocated far stronger measures than had been taken. He believed that so soon as the French should establish themselves in New Orleans, we should have a war with them; he knew it would be impossible for the haughty chiefs of a military despotism long to avoid collisions with the reckless and warlike backwoodsmen of the border. Nor would he have been sorry had such a war taken place. He said that it was a necessity to us, for we were dwindling into a race of mere speculators

and driveling philosophers, whereas ten years of warfare would bring forth a crop of heroes and statesmen, fit timber out of which to hew an empire.

Almost his last act in the United States Senate was to make a most powerful and telling speech in favor of at once occupying the territory in dispute, and bidding defiance to Napoleon. He showed that we could not submit to having so dangerous a neighbor as France, an ambitious and conquering nation, at whose head was the greatest warrior of the age. With ringing emphasis he claimed the western regions as peculiarly our heritage, as the property of the fathers of America which they held in trust for their children. It was true that France was then enjoying the peace which she had wrung from the gathered armies of all Europe; yet he advised us to fling down the gauntlet fearlessly, not hampering ourselves by an attempt at alliance with Great Britain or any other power, but resting confident that, if America was heartily in earnest, she would be able to hold her own in any struggle. The cost of the conquest he brushed contemptuously aside; he considered "that counting-house policy, which sees nothing but money, a poor, short-sighted, half-witted, mean, and miserable thing, as far removed from wisdom as is a monkey from a man." He wished for peace; but he did not believe the Emperor would yield us the territory, and he knew that his fellow-representatives, and practically all the American people, were determined to fight for it if they could get it in no other way; therefore he advised them to begin at once, and gain forthwith what they wanted, and perhaps their example would inspire Europe to rise against the tyrant.

It was bold advice, and if need had arisen it would have been followed; for we were bound to have Louisiana, if not by bargain and sale then by fair shock of arms. But Napoleon yielded, and gave us the land for fifteen millions, of which, said Morris, "I am content to pay my share to deprive foreigners of all pretext for entering our interior country; if nothing else were gained by the treaty, that alone would satisfy me."

Morris's term as senator expired on March 4th, 1803, and he was not reelected; for New York State had passed into the hands of the Democrats. But he still continued to play a prominent part in public affairs, for he was the leader in starting the project of the Erie canal. It was to him that we owe the original idea of this great water-way, for he thought of it and planned it out long before any one else. He had publicly proposed it during the revolutionary period; in 1803 he began the agitation in its favor that

culminated in its realization, and he was chairman of the Canal Commissioners from the time of their appointment, in 1810, until within a few months of his death. The three first reports of the Commission were all from his pen. As Stephen Van Rensselaer, himself one of the commissioners from the beginning, said, "Gouverneur Morris was the father of our great canal." He hoped ultimately to make it a ship canal. While a member of the commission, he not only discharged his duties as such with characteristic energy and painstaking, but he also did most effective outside work in advancing the enterprise, while he mastered the subject more thoroughly in all its details than did any other man.

He spent most of his time at Morrisania, but traveled for two or three months every summer, sometimes going out to the then "far West," along the shores of Lakes Erie and Ontario, and once descending the St. Lawrence. At home he spent his time tilling his farm, reading, receiving visits from his friends, and carrying on a wide correspondence on business and politics. Jay's home was within driving distance, and the two fine old fellows saw much of each other. On the 25th of December, 1809, Morris, then fifty-six years old, married Miss Anne Cary Randolph, a member of the famous Virginia family; he was very happy with her, and by her he had one son. Three weeks after the marriage he wrote Jay a pressing request to visit him: "I pray you will, with your daughters, embark immediately in your sleigh, after a very early breakfast, and push on so as to reach this house in the evening. My wife sends her love, and says she longs to receive her husband's friend; that his sickness must be no excuse, for she will nurse him. Come, then, and see your old friend perform his part in an old-fashioned scene of domestic enjoyment." Jay was very simple in his way of living; but Morris was rather formal. When he visited his friend he always came with his valet, was shown straight to his room without seeing any one, dressed himself with scrupulous nicety,—being very particular about his powdered hair,—and then came down to see his host.

Although his letters generally dealt with public matters, he sometimes went into home details. He thus wrote an amusing letter to a good friend of his, a lady, who was desirous, following the custom of the day, to send her boy to what was called a "college" at an absurdly early age; he closed by warning her that "these children of eleven, after a four years' course, in which they may learn to smatter a little of everything, become bachelors of arts before

they know how to button their clothes, and are the most troublesome and useless, sometimes the most pernicious, little animals that ever infested a commonwealth."

At one time he received as his guest Moreau, the exiled French general, then seeking service in the United States. Writing in his diary an account of the visit, he says: "In the course of our conversation, touching very gently the idea of his serving (in case of necessity) against France, he declares frankly that, when the occasion arrives, he shall feel no reluctance; that France having cast him out, he is a citizen of the country where he lives, and has the same right to follow his trade here as any other man."

He took the keenest pleasure in his life, and always insisted that America was the pleasantest of all places in which to live. Writing to a friend abroad, and mentioning that he respected the people of Britain, but did not find them congenial, he added: "But were the manners of those countries as pleasant as the people are respectable, I should never be reconciled to their summers. Compare the uninterrupted warmth and splendor of America, from the first of May to the last of September, and her autumn, truly celestial, with your shivering June, your July and August sometimes warm but often wet, your uncertain September, your gloomy October, and your dismal November. Compare these things, and then say how a man who prizes the charm of Nature can think of making the exchange. If you were to pass one autumn with us, you would not give it for the best six months to be found in any other country.... There is a brilliance in our atmosphere of which you can have no idea."

He thoroughly appreciated the marvelous future that lay before the race on this continent. Writing in 1801, he says: "As yet we only crawl along the outer shell of our country. The interior excels the part we inhabit in soil, in climate, in everything. The proudest empire in Europe is but a bauble compared to what America *will* be, *must* be, in the course of two centuries, perhaps of one!" And again, "With respect to this country, calculation outruns fancy, and fact outruns calculation."

Until his hasty, impulsive temper became so soured by partisanship as to warp his judgment, Morris remained as well satisfied with the people and the system of government as with the land itself. In one of his first letters after his return to America he wrote: "There is a fund of good sense and

calmness of character here, which will, I think, avoid all dangerous excesses. We are free: we know it: and we know how to continue free." On another occasion, about the same time, he said: "*Nil desperandum de republica* is a sound principle." Again, in the middle of Jefferson's first term: "We have indeed a set of madmen in the administration, and they will do many foolish things; but there is a vigorous vegetative principle at the root which will make our tree flourish, let the winds blow as they may."

He at first took an equally just view of our political system, saying that in adopting a republican form of government he "not only took it, as a man does his wife, for better or worse, but, what few men do with their wives, knowing all its bad qualities." He observed that there was always a counter current in human affairs, which opposed alike good and evil. "Thus the good we hope is seldom attained, and the evil we fear is rarely realized. The leaders of faction must for their own sakes avoid errors of enormous magnitude; so that, while the republican form lasts, we shall be fairly well governed." He thought this form the one best suited for us, and remarked that "every kind of government was liable to evil; that the best was that which had fewest faults; that the excellence even of that best depended more on its fitness for the nation where it was established than on intrinsic perfection." He denounced, with a fierce scorn that they richly merit, the despicable demagogues and witless fools who teach that in all cases the voice of the majority must be implicitly obeyed, and that public men have only to carry out its will, and thus "acknowledge themselves the willing instruments of folly and vice. They declare that in order to please the people they will, regardless alike of what conscience may dictate or reason approve, make the profligate sacrifice of public right on the altar of private interest. What more can be asked by the sternest tyrant of the most despicable slave? Creatures of this sort are the tools which usurpers employ in building despotism."

Sounder and truer maxims never were uttered; but unfortunately the indignation naturally excited by the utter weakness and folly of Jefferson's second term, and the pitiable incompetence shown both by him, by his successor, and by their party associates in dealing with affairs, so inflamed and exasperated Morris as to make him completely lose his head, and hurried him into an opposition so violent that his follies surpassed the worst of the follies he condemned. He gradually lost faith in our republican

system, and in the Union itself. His old jealousy of the West revived more strongly than ever; he actually proposed that our enormous masses of new territory, destined one day to hold the bulk of our population, "should be governed as provinces, and allowed no voice in our councils." So hopelessly futile a scheme is beneath comment; and it cannot possibly be reconciled with his previous utterances when he descanted on our future greatness as a people, and claimed the West as the heritage of our children. His conduct can only be unqualifiedly condemned; and he has but the poor palliation that, in our early history, many of the leading men in New York, and an even larger proportion in New England, felt the same narrow, illiberal jealousy of the West which had formerly been felt by the English statesmen for America as a whole.

It is well indeed for our land that we of this generation have at last learned to think nationally, and, no matter in what state we live, to view our whole country with the pride of personal possession.

CHAPTER XIII.

THE NORTHERN DISUNION MOVEMENT AMONG THE FEDERALISTS.

It is a painful thing to have to record that the closing act in a great statesman's career not only compares ill with what went before, but is actually to the last degree a discreditable and unworthy performance.

Morris's bitterness and anger against the government grew apace; and finally his hatred for the administration became such, that, to hurt it, he was willing also to do irreparable harm to the nation itself. He violently opposed the various embargo acts, and all the other governmental measures of the decade before the war; and worked himself up to such a pitch, when hostilities began, that, though one of the founders of the Constitution, though formerly one of the chief exponents of the national idea, and though once a main upholder of the Union, he abandoned every patriotic principle and became an ardent advocate of Northern secession.

To any reasoning student of American history it goes without saying that there was very good cause for his anger with the administration. From the time the House of Virginia came into power, until the beginning of Monroe's administration, there was a distinctly anti-New England feeling at Washington, and much of the legislation bore especially heavily on the Northeast. Excepting Jefferson, we have never produced an executive more helpless than Madison, when it came to grappling with real dangers and difficulties. Like his predecessor, he was only fit to be President in a time of profound peace; he was utterly out of place the instant matters grew turbulent, or difficult problems arose to be solved, and he was a ridiculously incompetent leader for a war with Great Britain. He was entirely too timid to have embarked on such a venture of his own accord, and was simply forced into it by the threat of losing his second term. The fiery young Democrats of the South and West, and their brothers of the Middle States, were the authors of the war; they themselves, for all their bluster, were but

one shade less incompetent than their nominal chief, when it came to actual work, and were shamefully unable to make their words good by deeds.

The administration thus drifted into a war which it had neither the wisdom to avoid, nor the forethought to prepare for. In view of the fact that the war was their own, it is impossible to condemn sufficiently strongly the incredible folly of the Democrats in having all along refused to build a navy or provide any other adequate means of defense. In accordance with their curiously foolish theories, they persisted in relying on that weakest of all weak reeds, the militia, who promptly ran away every time they faced a foe in the open. This applied to all, whether eastern, western, or southern; the men of the northern states in 1812 and 1813 did as badly as, and no worse than, the Virginians in 1814. Indeed, one of the good results of the war was that it did away forever with all reliance on the old-time militia, the most expensive and inefficient species of soldiery that could be invented. During the first year the monotonous record of humiliations and defeats was only relieved by the splendid victories of the navy which the Federalists had created twelve years previously, and which had been hurt rather than benefited in the intervening time. Gradually, however, the people themselves began to bring out leaders: two, Jackson and Scott, were really good generals, under whom our soldiers became able to face even the English regulars, then the most formidable fighting troops in the world; and it must be remembered that Jackson won his fights absolutely unhelped by the administration. In fact, the government at Washington does not deserve one shred of credit for any of the victories we won, although to it we directly owe the greater number of our defeats.

Granting, however, all that can be said as to the hopeless inefficiency of the administration, both in making ready for and in waging the war, it yet remains true that the war itself was eminently justifiable, and was of the greatest service to the nation. We had been bullied by England and France until we had to fight to preserve our national self-respect; and we very properly singled out our chief aggressor, though it would perhaps have been better still to have acted on the proposition advanced in Congress, and to have declared war on both. Although nominally the peace left things as they had been, practically we gained our point; and we certainly came out of the contest with a greatly increased reputation abroad. In spite of the ludicrous series of failures which began with our first attempt to invade Canada, and

culminated at Bladensburg, yet in a succession of contests on the ocean and the lakes, we shattered the charmed shield of British naval invincibility; while on the northern frontier we developed under Scott and Brown an infantry which, unlike any of the armies of continental Europe, was able to meet on equal terms the British infantry in pitched battle in the open; and at New Orleans we did what the best of Napoleon's marshals, backed by the flower of the French soldiers, had been unable to accomplish during five years of warfare in Spain, and inflicted a defeat such as no English army had suffered during a quarter of a century of unbroken warfare. Above all, the contest gave an immense impetus to our national feeling, and freed our politics forever from any dependence on those of a foreign power.

The war was distinctly worth fighting, and resulted in good to the country. The blame that attaches to Madison and the elder democratic-republican leaders, as well as to their younger associates, Clay, Calhoun, and the rest, who fairly flogged them into action, relates to their utter failure to make any preparations for the contest, to their helpless inability to carry it on, and to the extraordinary weakness and indecision of their policy throughout; and on all these points it is hardly possible to visit them with too unsparing censure.

Yet, grave though these faults were, they were mild compared to those committed by Morris and the other ultra-Federalists of New York and New England. Morris's opposition to the war led him to the most extravagant lengths. In his hatred of the opposite party he lost all loyalty to the nation. He championed the British view of their right to impress seamen from our ships; he approved of peace on the terms they offered, which included a curtailment of our western frontier, and the erection along it of independent Indian sovereignties under British protection. He found space in his letters to exult over the defeats of Bonaparte, but could spare no word of praise for our own victories.

He actually advocated repudiating our war debt,^[3] on the ground that it was void, being founded on a moral wrong; and he wished the Federalists to make public profession of their purpose, so that when they should come back to power, the holders might have no reason to complain that there had been no warning of their intention. To Josiah Quincy, on May 15th, he wrote: "Should it be objected, as it probably will to favor lenders and their associates, that public faith is pledged, it may be replied that a pledge

wickedly given is not to be redeemed." He thus advanced the theory that in a government ruled by parties, which come into power alternately, any debt could be repudiated, at any time, if the party in power happened to disapprove of its originally being incurred. No greenback demagogue of the lowest type ever advocated a proposition more dishonest or more contemptible.

He wrote that he agreed with Pickering that it was impious to raise taxes for so unjust a war. He endeavored, fortunately in vain, to induce Rufus King in the Senate to advocate the refusal of supplies of every sort, whether of men or money, for carrying on the war; but King was far too honorable to turn traitor. Singularly forgetful of his speeches in the Senate ten years before, he declared that he wished that a foreign power might occupy and people the West, so as, by outside pressure, to stifle our feuds. He sneered at the words union and constitution, as being meaningless. He railed bitterly at the honest and loyal majority of his fellow-Federalists in New York, who had professed their devotion to the Union; and in a letter of April 29th, to Harrison Gray Otis,—who was almost as bad as himself,—he strongly advocated secession, writing among other things that he wished the New York Federalists to declare publicly that "the Union, being the means of freedom, should be prized as such, but that the end should not be sacrificed to the means." By comparing this with Calhoun's famous toast at the Jefferson birthday dinner in 1880, "The Union; next to our liberty the most dear; may we all remember that it can only be preserved by respecting the rights of the states and distributing equally the benefit and the burden of the Union," it can be seen how completely Morris's utterances went on all fours with those of the great nullifier.

To Pickering he wrote, on October 17th, 1814: "I hear every day professions of attachment to the Union, and declarations as to its importance. I should be glad to meet with some one who could tell me what has become of the Union, in what it consists, and to what useful purpose it endures." He regarded the dissolution of the Union to be so nearly an accomplished fact that the only question was whether the boundary should be "the Delaware, the Susquehanna, or the Potomac"; for he thought that New York would have to go with New England. He nourished great hopes of the Hartford convention, which he expected would formally come out for secession; he wrote Otis that the convention should declare that the Union

was already broken, and that all that remained to do was to take action for the preservation of the interests of the Northeast. He was much chagrined when the convention fell under the control of Cabot and the moderates. As late as January 10, 1815, he wrote that the only proceeding from which the people of his section would gain practical benefit would be a "severance of the Union."

In fact, throughout the war of 1812 he appeared as the open champion of treason to the nation, of dishonesty to the nation's creditors, and of cringing subserviency to a foreign power. It is as impossible to reconcile his course with his previous career and teachings as it is to try to make it square with the rules of statesmanship and morality. His own conduct affords a conclusive condemnation of his theories as to the great inferiority of a government conducted by the multitude, to a government conducted by the few who should have riches and education. Undoubtedly he was one of these few; he was an exceptionally able man, and a wealthy one; but he went farther wrong at this period than the majority of our people—the "mob" as he would have contemptuously called them—have ever gone at any time; for though every state in turn, and almost every statesman, has been wrong upon some issue or another, yet in the long run the bulk of the people have always hitherto shown themselves true to the cause of right. Morris strenuously insisted upon the need of property being defended from the masses; yet he advocated repudiation of the national debt, which he should have known to be quite as dishonest as the repudiation of his individual liabilities, and he was certainly aware that the step is a short one between refusing to pay a man what *ought* to be his and taking away from him what actually is his.

There were many other Federalist leaders in the same position as himself, especially in the three southern New England states, where the whole Federalist party laid itself open to the gravest charges of disloyalty. Morris was not alone in his creed at this time. On the contrary, his position is interesting because it is typical of that assumed by a large section of his party throughout the Northeast. In fact, the Federalists in this portion of the Union had split in three, although the lines of cleavage were not always well marked. Many of them remained heartily loyal to the national idea; the bulk hesitated as to whether they should go all lengths or not; while a large and influential minority, headed by Morris, Pickering, Quincy, Lowell and

others, were avowed disunionists. Had peace not come when it did, it is probable that the moderates would finally have fallen under the control of these ultras. The party developed an element of bitter unreason in defeat; it was a really sad sight to see a body of able, educated men, interested and skilled in the conduct of public affairs, all going angrily and stupidly wrong on the one question that was of vital concern to the nation.

It is idle to try to justify the proceedings of the Hartford convention, or of the Massachusetts and Connecticut legislatures. The decision to keep the New England troops as an independent command was of itself sufficient ground for condemnation; moreover, it was not warranted by any show of superior prowess on the part of the New Englanders, for a portion of Maine continued in possession of the British till the close of the war. The Hartford resolutions were so framed as to justify seceding or not seceding as events turned out; a man like Morris could extract comfort from them, while it was hoped they would not frighten those who were more loyal. The majority of the people in New England were beyond question loyal, exactly as in 1860 a majority of Southerners were opposed to secession; but the disloyal element was active and resolute, and hoped to force the remainder into its own way of thinking. It failed signally, and was buried beneath a load of disgrace; and New England was taught thus early and by heart the lesson that wrongs must be righted within, and not without the Union. It would have been well for her sister section of the South, so loyal in 1815, if forty-five years afterwards she had spared herself the necessity of learning the same lesson at an infinitely greater cost.

The truth is that it is nonsense to reproach any one section with being especially disloyal to the Union. At one time or another almost every state has shown strong particularistic leanings; Connecticut and Pennsylvania, for example, quite as much as Virginia or Kentucky. Fortunately the outbursts were never simultaneous in a majority. It is as impossible to question the fact that at one period or another of the past, many of the states in each section have been very shaky in their allegiance as it is to doubt that they are now all heartily loyal. The secession movement of 1860 was pushed to extremities, instead of being merely planned and threatened, and the revolt was peculiarly abhorrent, because of the intention to make slavery the "corner-stone" of the new nation, and to reintroduce the slave-trade, to the certain ultimate ruin of the Southern whites; but at least it was

entirely free from the meanness of being made in the midst of a doubtful struggle with a foreign foe. Indeed, in this respect the ultra-Federalists of New York and New England in 1814 should be compared with the infamous Northern copperheads of the Vallandigham stripe rather than with the gallant confederates who risked and lost all in fighting for the cause of their choice. Half a century before the "stars and bars" waved over Lee's last intrenchments, perfervid New England patriots were fond of flaunting "the flag with five stripes," and drinking to the health of the—fortunately stillborn—new nation. Later on, the disunion movement among the Northern abolitionists, headed by Garrison, was perhaps the most absolutely senseless of all, for its success meant the immediate abandonment of every hope of abolition.

In each one of these movements men of the highest character and capacity took part. Morris had by previous services rendered the whole nation his debtor; Garrison was one of the little band who, in the midst of general apathy, selfishness, and cowardice, dared to demand the cutting out of the hideous plague spot of our civilization; while Lee and Jackson were as remarkable for stainless purity and high-mindedness as they were for their consummate military skill. But the disunion movements in which they severally took part were wholly wrong. An Englishman of to-day may be equally proud of the valor of Cavalier and Roundhead; but, if competent to judge, he must admit that the Roundhead was right. So it is with us. The man who fought for secession warred for a cause as evil and as capable of working lasting harm as the doctrine of the divine right of kings itself. But we may feel an intense pride in his gallantry; and we may believe in his honesty as heartily as we believe in that of the only less foolish being who wishes to see our government strongly centralized, heedless of the self-evident fact that over such a vast land as ours the nation can exist only as a Federal Union; and that, exactly as the liberty of the individual and the rights of the states can only be preserved by upholding the strength of the nation, so this same localizing of power in all matters not essentially national is vital to the wellbeing and durability of the government.

Besides the honorable men drawn into such movements there have always been plenty who took part in or directed them for their own selfish ends, or whose minds were so warped and their sense of political morality so crooked as to make them originate schemes that would have reduced us to

the impotent level of the Spanish-American republics. These men were peculiar to neither section. In 1803, Aaron Burr of New York was undoubtedly anxious to bring about in the Northeast^[4] what sixty years later Jefferson Davis of Mississippi so nearly succeeded in doing in the South; and the attempt in the South to make a hero of the one is as foolish as it would be to make a hero of the other in the North. If there are such virtues as loyalty and patriotism, then there must exist the corresponding crime of treason; if there is any merit in practicing the first, then there must be equal demerit in committing the last. Emasculated sentimentalists may try to strike from the national dictionary the word treason; but until that is done, Jefferson Davis must be deemed guilty thereof.

There are, however, very few of our statesmen whose characters can be painted in simple, uniform colors, like Washington and Lincoln on the one hand, or Burr and Davis on the other. Nor is Morris one of these few. His place is alongside of men like Madison, Samuel Adams, and Patrick Henry, who did the nation great service at times, but each of whom, at some one or two critical junctures, ranged himself with the forces of disorder.

After the peace Morris accommodated himself to the altered condition with his usual buoyant cheerfulness; he was too light-hearted, and, to say the truth, had too good an opinion of himself, to be cast down even by the signal failure of his expectations and the memory of the by no means creditable part he had played. Besides, he had the great virtue of always good-humoredly yielding to the inevitable. He heartily wished the country well, and kept up a constant correspondence with men high in influence at Washington. He disliked the tariff bill of 1816; he did not believe in duties or imposts, favoring internal, although not direct, taxation. He was sharp-sighted enough to see that the Federal party had shot its bolt and outlived its usefulness, and that it was time for it to dissolve. To a number of Federalists at Philadelphia, who wished to continue the organization, he wrote strongly advising them to give up the idea, and adding some very sound and patriotic counsel. "Let us forget party and think of our country. That country embraces both parties. We must endeavor, therefore, to save and benefit both. This cannot be effected while political delusions array good men against each other. If you abandon the contest, the voice of reason, now drowned in factious vociferation, will be listened to and heard. The pressure of distress will accelerate the moment of reflection; and when it arrives the

people will look out for men of sense, experience, and integrity. Such men may, I trust, be found in both parties; and if our country be delivered, what does it signify whether those who operate her salvation wear a federal or democratic cloak?" These words formed almost his last public utterance, for they were penned but a couple of months before his death; and he might well be content to let them stand as a fit closing to his public career.

He died November 6, 1816, when sixty-four years old, after a short illness. He had suffered at intervals for a long time from gout; but he had enjoyed general good health, as his erect, commanding, well-built figure showed; for he was a tall and handsome man. He was buried on his own estate at Morrisania.

There has never been an American statesman of keener intellect or more brilliant genius. Had he possessed but a little more steadiness and self-control he would have stood among the two or three very foremost. He was gallant and fearless. He was absolutely upright and truthful; the least suggestion of falsehood was abhorrent to him. His extreme, aggressive frankness, joined to a certain imperiousness of disposition, made it difficult for him to get along well with many of the men with whom he was thrown in contact. In politics he was too much of a free lance ever to stand very high as a leader. He was very generous and hospitable; he was witty and humorous, a charming companion, and extremely fond of good living. He had a proud, almost hasty temper, and was quick to resent an insult. He was strictly just; and he made open war on all traits that displeased him, especially meanness and hypocrisy. He was essentially a strong man, and he was an American through and through.

Perhaps his greatest interest for us lies in the fact that he was a shrewder, more far-seeing observer and recorder of contemporary men and events, both at home and abroad, than any other American or foreign statesman of his time. But aside from this he did much lasting work. He took a most prominent part in bringing about the independence of the colonies, and afterwards in welding them into a single powerful nation, whose greatness he both foresaw and foretold. He made the final draft of the United States Constitution; he first outlined our present system of national coinage; he originated and got under way the plan for the Erie Canal; as minister to France he successfully performed the most difficult task ever allotted to an American representative at a foreign capital. With all his faults, there are

few men of his generation to whom the country owes more than to
Gouverneur Morris.

FOOTNOTES:

[1] The habit of constantly importing indentured Irish servants, as well as German laborers, under contract, prevailed throughout the colonies; and the number of men thus imported was quite sufficient to form a considerable element in the population, and to add a new, although perhaps not very valuable, strain to our already mixed blood. In taking up at random the file of the *New York Gazette* for 1766, we find among the advertisements many offering rewards for runaway servants; such as "three pounds for the runaway servant Conner O'Rourke," "ten pounds for the runaway Irish servant, Philip Maginnis," "five pounds apiece for certain runaway German miners—Bruderlein, Baum, Ostmann, etc.—imported under contract;" all this mixed in with advertisements of rewards of about the same money value for "the mulatto man named Tom," or the "negroes Nero and Pompey." Still, in speaking of the revolutionary armies, the word "Irish" must almost always be understood as meaning Presbyterian Irish; the Catholic Irish had but little hand in the war, and that little was limited to furnishing soldiers to some of the British regiments. The Presbyterian Irish, however, in the revolutionary armies, played a part as manful and valiant as, and even more important than, that taken by the Catholic Irish soldiers who served so bravely during the great contest between the North and South. The few free Catholic Irish already in America in 1776 were for the most part heartily loyal; but they were not numerous enough to be of the least consequence.

[2] The italics are mine.

[3] As, for instance, in a letter to David R. Ogden, April 5, 1813.

[4] People sometimes forget that Burr was as willing to try sedition in the East as in the West.

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